Index of Evidence Bundle: Report on Crimes Against Humanity Committed by Hong Kong Government Officials in Hong Kong and Several Other Places

A - Jurisdiction of the ICC & Relevant Legal Frameworks

B - International Findings & Legal Standards

C - Detention, Violence, and Other Repressive Practices

D - Official Narratives, State Policy & Testimony of Former Government Employees

E - Individual Case Studies

F - Extraterritorial Conduct

G - Individual Liability

EXHIBIT A1

Title:

The Hong Kong (British Nationality) Order 1986. (U.K.)

Source:

Legislation.gov.uk

Date:

5 June 1986

Document Type:

Law

Summary:

This Order establishes the legal status of British National (Overseas) (BNO) for individuals connected to Hong Kong prior to the 1997 handover, defining their nationality classification under United Kingdom law and confirming their recognition as British nationals.

Relevance:

This document is relevant to the ICC's personal jurisdiction as it demonstrates that a significant number of Hong Kong residents possess a form of British nationality. As nationals of a State Party to the Rome Statute (the United Kingdom), such individuals fall within the ICC's jurisdiction under Article 12(2)(b) of the Rome Statute, thereby supporting jurisdiction over crimes committed by them.

Hyperlink:

https://www.legislation.gov.uk/uksi/1986/948/made

EXHIBIT A2

Title:

International Criminal Court Act 2001

Source:

Legislation.gov.uk

Date:

11 May 2001

Document Type:

Law

Relevant Section(s):

67

Summary:

Section 67(1) defines ‘United Kingdom national’ for the purposes of Part 5 of the Act as including a British citizen, a British overseas territories citizen, a British National (Overseas) and a British Overseas citizen, together with British subjects and British protected persons under the British Nationality Act 1981.

Relevance:

This provision is relevant to the ICC’s personal jurisdiction as it demonstrates the United Kingdom’s implementation of its obligations under the Rome Statute, including jurisdiction over its nationals in relation to ICC-related offences. It supports the argument that individuals holding British nationality (including BNO status) may fall within the jurisdictional framework of the ICC through a State Party.

Hyperlink:

https://www.legislation.gov.uk/ukpga/2001/17/section/67

EXHIBIT A3

Title:

The Basic Law of the Hong Kong Special Administrative Region of the People's Republic of China (Hong Kong Basic Law)

Source:

Government of the Hong Kong Special Administrative Region

Date:

4 April 1990

Document Type:

Law

Relevant Article(s):

39, 52, 73(2), 86, 90

Summary:

The Hong Kong Basic Law serves as the constitutional framework of the Hong Kong Special Administrative Region. It establishes the “One Country, Two Systems” principle, preserves the common law system, and guarantees fundamental rights and freedoms. It also sets out the institutional structure of government and prescribes requirements for public office, including nationality and allegiance obligations for key officials.

Relevance:

The Basic Law provides the constitutional baseline for Hong Kong’s legal system, illustrating how institutions are intended to function under normal conditions. It is also relevant to the ICC’s jurisdiction as it specifies nationality requirements for certain public officials, which may be pertinent in assessing whether individuals involved fall within the ICC’s personal jurisdiction.

Hyperlink:

https://www.basiclaw.gov.hk/en/basiclaw/index.html

EXHIBIT A4

Title:

British Nationality (Hong Kong) Act 1990

Source:

Legislation.gov.uk

Date:

26 July 1990

Document Type:

Law

Summary:

The British Nationality (Hong Kong) Act 1990 provides for the registration of certain Hong Kong residents as British citizens, particularly those who met specified criteria related to their connection to Hong Kong prior to the 1997 handover. It supplements existing nationality frameworks by granting full British citizenship to a selected group of individuals.

Relevance:

This Act is relevant to the ICC's personal jurisdiction as it establishes that certain Hong Kong residents hold full British citizenship, i.e., nationality of a State Party to the Rome Statute (the United Kingdom). This supports the argument that crimes committed by such individuals fall within the ICC's jurisdiction under Article 12(2)(b) of the Rome Statute.

Hyperlink:

https://www.legislation.gov.uk/ukpga/1990/34

EXHIBIT A5

Title:

Cap. 383 Hong Kong Bill of Rights Ordinance

Relevant Section(s):

Part II, Section 8, Article 11(2)(g)

Source:

Hong Kong e-Legislation

Date:

8 June 1991

Document Type:

Law

Summary:

The Hong Kong Bill of Rights Ordinance (Cap. 383) incorporates into Hong Kong law the relevant provisions of the International Covenant on Civil and Political Rights as applied to Hong Kong. Article 11(2)(g) protects the minimum guarantees in criminal proceedings, including the right not to be compelled to testify against oneself or to confess guilt.

Relevance:

This authority is relevant because it sets out core fair trial protections recognized in Hong Kong domestic law. Article 11(2)(g) is directly relevant to concerns about coercion, compelled self-incrimination, or pressure on an accused person in criminal proceedings. It can therefore be cited to show that due process and trial fairness guarantees are protected not only under international human rights standards but also under Hong Kong's own statutory framework.

Hyperlink:

https://www.elegislation.gov.hk/hk/cap383

EXHIBIT A6

Title:

Cap. 200 Crimes Ordinance [Past Version]

Source:

Hong Kong e-Legislation

Date:

19 November 1971

Document Type:

Law

Relevant Section(s):

9 - 14

Summary:

This provision of the Crimes Ordinance sets out the offence of sedition, including acts, publications, or expressions deemed to incite hatred, contempt, or disaffection against the government. Although originating from a colonial-era legal framework, these provisions remained largely dormant for decades before being revived and actively enforced in recent years.

Relevance:

This document is relevant as it demonstrates the legal basis for the prosecution of individuals on sedition-related charges. The revival and application of these broadly defined offences support allegations of the criminalisation of expression and dissent, and provide evidence of a legal framework being used to facilitate repression and procedural violations.

Hyperlink:

https://www.elegislation.gov.hk/hk/cap200!en@2021-10-08T00:00:00?xpid=ID_1438402821397_002&INDEX_CS=N

EXHIBIT A7

Title:

The Law of the People's Republic of China on Safeguarding National Security in the Hong Kong Special Administrative Region (The Hong Kong National Security Law)

Relevant Article(s):

12 - 15, 16, 17, 19, 36 - 38, 42, 44, 46, 47, 48, 49, 55

Source:

Hong Kong e-Legislation

Date:

30 June 2020

Document Type:

Law

Summary:

The Hong Kong National Security Law establishes a legal regime criminalising acts of secession, subversion, terrorist activities, and collusion with foreign forces. The provisions are broadly framed and encompass a wide range of non-violent conduct, including forms of expression and political activity. The law further introduces expanded enforcement powers, restrictive bail conditions, and mechanisms affecting judicial independence, as well as asserting extraterritorial jurisdiction.

Relevance:

This law is central to establishing the legal framework through which alleged acts have been carried out. Its breadth and application to non-violent conduct, including peaceful expression, support allegations that prosecutions are not limited to legitimate security concerns but form part of a broader policy targeting a civilian population. The combination of expansive offences, restrictive procedural safeguards, and extraterritorial reach is relevant to assessing whether the conduct constitutes a widespread or systematic attack pursuant to Article 7 of the Rome Statute, and whether such acts are carried out pursuant to or in furtherance of a State

policy.

Hyperlink:

https://www.elegislation.gov.hk/doc/hk/a302/eng_translation_(a302)_en.pdf

EXHIBIT A8

Title:

Cap. 232 Police Force Ordinance

Relevant Section(s):

52

Source:

Hong Kong e-Legislation

Date:

20 August 1948

Document Type:

Law

Summary:

Section 52 of the Police Force Ordinance establishes that individuals arrested by the police must be brought before a magistrate as soon as practicable. This provision reflects a requirement of prompt judicial oversight and limits the duration of detention without charge within Hong Kong's ordinary criminal justice framework.

Relevance:

This provision is relevant as it demonstrates the existence of fundamental safeguards against arbitrary detention, including prompt judicial supervision and strict temporal limits on police custody. It provides a baseline for assessing whether subsequent legal frameworks depart from established procedural protections, particularly in the context of national security enforcement.

Hyperlink:

https://www.elegislation.gov.hk/hk/cap232!en

EXHIBIT A9

Title:

Instrument A305 Safeguarding National Security Ordinance

Relevant Section(s):

76 - 78, 79

Source:

Hong Kong e-Legislation

Date:

23 March 2024

Document Type:

Law

Summary:

Sections 76-78 of the Safeguarding National Security Ordinance introduce expanded powers of detention and investigation in national security cases. These provisions permit extended detention periods and enhanced investigative measures beyond those ordinarily applicable under general criminal procedure.

Relevance:

This exhibit is relevant as it demonstrates a significant expansion of executive and law enforcement powers in national security cases. The extension of detention without charge beyond ordinary limits supports concerns regarding arbitrary detention and the weakening of procedural safeguards. It is probative of a legal framework that enables more restrictive treatment of individuals accused of national security-related conduct.

Hyperlink:

https://www.elegislation.gov.hk/hk/a305

EXHIBIT A10

Title:

Cap. 221 Criminal Procedure Ordinance

Relevant Section(s):

9D

Source:

Hong Kong e-Legislation

Date:

7 July 1899

Document Type:

Law

Summary:

Section 9D of the Criminal Procedure Ordinance establishes a presumption in favour of bail in Hong Kong's ordinary criminal justice system. Bail may only be denied where there are substantial grounds to believe that the accused would abscond, commit further offences, or interfere with the administration of justice.

Relevance:

This provision is relevant as it reflects a fundamental safeguard protecting personal liberty and the presumption of innocence. It provides a point of comparison for more restrictive bail provisions applicable in national security cases, thereby supporting arguments that such cases operate under materially different procedural conditions. This is pertinent to assessing potential limitations on fair trial rights and due process guarantees.

Hyperlink:

https://www.elegislation.gov.hk/hk/cap221!en

EXHIBIT A11

Title:

Implementation Rules for Article 43 of the Law of the People's Republic of China on Safeguarding National Security in the Hong Kong Special Administrative Region

Relevant Section(s):

Schedule 1, Section 5;

Schedule 7, Section 2(13)

Source:

Hong Kong e-Legislation

Date:

7 July 2020

Document Type:

Law

Summary:

The Implementation Rules for Article 43 of the Hong Kong National Security Law establish additional enforcement powers in national security investigations. These include provisions requiring individuals to comply with information requests from law enforcement authorities, including the obligation to answer questions and provide access to electronic devices and related data, such as passwords. Failure to comply with such requirements may constitute a criminal offence.

Relevance:

This exhibit is relevant as it demonstrates the expansion of investigative powers in national security cases, including measures that may compel individuals to provide information or access to personal data. Such provisions raise concerns regarding the protection against self-incrimination and the right to silence, which are fundamental components of fair trial guarantees. This is pertinent to assessing whether individuals subject to national security investigations are afforded procedural safeguards consistent with international standards, and

whether such measures contribute to a broader pattern of coercive enforcement under Article 7 of the Rome Statute.

Hyperlink:

https://www.elegislation.gov.hk/hk/A303!en

EXHIBIT B1

Title:

Joint Declaration on the question of Hong Kong

Source:

United Nations

Date:

19 December 1984

Document Type:

International Treaty

Summary:

The Sino-British Joint Declaration is an international treaty between the United Kingdom and the People's Republic of China setting out the terms for the transfer of sovereignty over Hong Kong in 1997. It establishes the principle of "One Country, Two Systems," under which Hong Kong would retain its existing legal, economic, and social systems, as well as rights and freedoms, for 50 years after the handover.

Relevance:

This document provides essential historical and legal context for the "One Country, Two Systems" framework governing Hong Kong. It establishes the original international commitments regarding Hong Kong's autonomy, rule of law, and protection of rights, which serve as a benchmark for assessing subsequent state conduct and alleged deviations from those guarantees.

Hyperlink:

https://treaties.un.org/Pages/showDetails.aspx?objid=08000002800d4d6e

EXHIBIT B2 (a, b & c)

Title:

(a) Coroners and Justice Act 2009, c. 25, s. 73. (U.K.)

(b) National Security Legislation Amendment Act 2010. (Australia.)

(c) S.G. Vombatkere v. Union of India, Writ Petition (Civil) No. 682 of 2021. (Supreme Court of India, May 11, 2022)

Document Type:

Law

Summary:

These materials demonstrate a broader legal trend among Commonwealth jurisdictions to abolish, repeal, or suspend sedition offences. The United Kingdom abolished sedition as a criminal offence under the Coroners and Justice Act 2009. Australia repealed its federal sedition provisions through legislative reform in 2010. In India, the Supreme Court in *S.G. Vombatkere v. Union of India* (2022) suspended the operation of the colonial-era sedition law, recognising its potential to unjustifiably restrict freedom of expression.

Relevance:

This comparative legal evidence shows that the revival and enforcement of sedition offences in Hong Kong runs counter to prevailing international and Commonwealth standards. It supports the argument that such offences are widely regarded as vague, overly broad, and incompatible with democratic values and the right to free expression. This divergence is relevant in assessing whether the use of sedition laws forms part of a broader pattern of repression and procedural violations.

B2 (a) Hyperlink:

https://www.legislation.gov.uk/ukpga/2009/25/section/73

B2 (b) Hyperlink:

https://www.aph.gov.au/Parliamentary_Business/Bills_Legislation/Bills_Search_Results/Result?bId=r4435

B2 (c) Hyperlink:

https://www.scribd.com/document/573664966/SG-Vombatkere-v-UOI

EXHIBIT B3

Title:

General comment No. 35 Article 9 (Liberty and security of person)

Reference Number:

CCPR/C/GC/35

Source:

United Nations International Covenant on Civil and Political Rights Human Rights Committee

Date:

16 December 2014

Document Type:

General comment by United Nations Human Rights Committee

Relevant Paragraph(s):

15, 38

Summary:

This General Comment provides an authoritative interpretation of Article 9 of the International Covenant on Civil and Political Rights, including principles relating to arbitrary detention, the requirement of prompt judicial oversight, and the prohibition of prolonged pre-trial detention as a general practice.

Relevance:

Relied upon to demonstrate that prolonged and systematic pre-trial detention, and restrictions on liberty without adequate justification, are recognised as violations of fundamental rights. Further relied upon to support the inference that the detention practices described are inconsistent with established international standards, and that their harmful effects were foreseeable.

Hyperlink:

https://docs.un.org/en/CCPR/C/GC/35

EXHIBIT B4

Title:

Opinions adopted by the Working Group on Arbitrary Detention at its ninety-sixth session, 27 March–5 April 2023

Opinion No. 30/2023 concerning Ms. Hang Tung Chow (Hong Kong, China)

Reference Number:

A/HRC/WGAD/2023/30

Source:

United Nations Human Rights Council Working Group on Arbitrary Detention

Date:

1 May 2023

Document Type:

Opinion of a United Nations Human Rights Mechanism

Summary:

This opinion sets out the Working Group's findings concerning the detention of Ms Chow Hang-tung, including concerns regarding arbitrary detention, restrictions on legal representation, and the compatibility of the proceedings with international human rights standards.

Relevance:

Relied upon as evidence of comparable detention practices affecting political dissidents in Hong Kong, and to support the inference that such practices are systemic in nature and subject to international concern.

Hyperlink:

https://www.ohchr.org/sites/default/files/documents/issues/detention-wg/opinions/session96/A-HRC-WGAD-2023-30-AEV.pdf

EXHIBIT B5

Title:

Opinions adopted by the Working Group on Arbitrary Detention at its 100th session, 26–30 August 2024

Opinion No. 34/2024 concerning Mr. Jimmy Lai Chee-ying (Hong Kong, China)

Reference Number:

A/HRC/WGAD/2024/34

Source:

United Nations Human Rights Council Working Group on Arbitrary Detention

Date:

26 September 2024

Document Type:

Opinion of a United Nations Human Rights Mechanism

Relevant Paragraph(s):

35, 117

Summary:

This opinion sets out the Working Group's findings concerning the detention of Mr Jimmy Lai, including concerns regarding prolonged detention, conditions of confinement, access to legal representation, and the compatibility of the proceedings with international human rights standards.

Relevance:

Relied upon as evidence that the conditions of detention and treatment of Mr Lai have been subject to international scrutiny, and to support the foreseeability of harm and the inference that such conditions are capable of giving rise to severe physical and mental suffering.

Hyperlink:

https://www.ohchr.org/sites/default/files/documents/issues/detention-wg/opinions/session100/a-hrc-wgad-2024-34-china-hong-kong-advance.pdf

EXHIBIT B6

Title:

United Nations Standard Minimum Rules for the Treatment of Prisoners (Nelson Mandela Rules)

Source:

United Nations

Date:

2015

Document Type:

International Legal Standard

Relevant Rule(s):

43, 44, 45

Summary:

Defines prolonged solitary confinement (exceeding 15 days) and states that such conditions may amount to torture or other cruel, inhuman or degrading treatment.

Relevance:

Relied upon to establish that prolonged solitary confinement is capable of constituting severe mental suffering and to demonstrate the foreseeability of harm.

Hyperlink:

https://www.unodc.org/documents/justice-and-prison-reform/Nelson_Mandela_Rules-E-ebook.pdf

EXHIBIT B7

Title:

Torture and other cruel, inhuman or degrading treatment or punishment

Note by the Secretary-General

Reference Number:

A/66/268

Source:

United Nations General Assembly

Date:

5 August 2011

Document Type:

Note by the Secretary-General of the United Nations

Relevant Paragraph(s):

26

Summary:

This report notes that prolonged solitary confinement, particularly where exceeding a limited duration, may cause severe mental pain and suffering, and may amount to torture or cruel, inhuman or degrading treatment due to its harmful psychological effects.

Relevance:

Relied upon to demonstrate that the harmful effects of prolonged solitary confinement are well recognised and foreseeable, and that such conditions are capable of constituting severe mental suffering for the purposes of Article 7(1)(f)/(k) of the Rome Statute.

Hyperlink:

https://docs.un.org/en/A/66/268

EXHIBIT B8

Title:

Torture and other cruel, inhuman or degrading treatment or punishment

Note by the Secretary-General

Reference Number:

A/63/175

Relevant Paragraph(s):

56

Source:

United Nations General Assembly

Date:

28 July 2008

Document Type:

Note by the Secretary-General of the United Nations

Summary:

This report identifies the serious psychological harm associated with prolonged or indefinite solitary confinement, including the risk of lasting mental damage, and highlights concerns regarding its use in detention settings.

Relevance:

Relied upon to support the inference that the psychological harm arising from prolonged isolation is well documented, and that the continuation of such conditions is capable of demonstrating awareness of their harmful effects.

Hyperlink:

https://docs.un.org/en/A/63/175

EXHIBIT B9

Title:

UN calls for release of Hong Kong publisher Jimmy Lai following 20-year sentence

Source:

United Nations High Commissioner for Human Rights Volker Türk

Date:

9 February 2026

Document Type:

Statements from the United Nations

Summary:

UN Human Rights Chief Volker Türk deplored the 20-year prison sentence imposed on Jimmy Lai under Hong Kong's national security legislation, describing it as a violation of international human rights law. He stated that Mr. Lai "is a publisher sentenced to 20 years in prison for exercising rights protected under international law," and highlighted how the vague and overly broad provisions of the legislation have been interpreted and enforced in breach of Hong Kong's international obligations. Türk called for the verdict to be "promptly quashed as incompatible with international law" and appealed for Mr. Lai's immediate release on humanitarian grounds, citing his advanced age (78), health concerns, and the impact of over five years in detention. The statement also notes broader repressive trends, including the criminalisation of fundamental freedoms (expression, media freedom, association) and the use of pre-NSL conduct in establishing guilt.

Relevance:

This recent UN statement directly supports the report by confirming international concern over the compatibility of Mr. Lai's prosecution, conviction, and sentence with international human rights standards (including ICCPR Articles 14, 19). It reinforces the lack of effective domestic remedy (as the verdict is deemed incompatible with international law) and the humanitarian urgency of release, given prolonged detention and health deterioration. While not explicitly addressing conditions of detention (e.g., solitary confinement), it bolsters the

overall inference of arbitrary and coercive treatment in national security cases, aligning with prior WGAD opinions *(EXHIBITS B4–B5)* and Mandela Rules concerns *(EXHIBIT B6)*.

Hyperlink:

https://news.un.org/en/story/2026/02/1166923

EXHIBIT B10

Title:
Opinions adopted by the Working Group on Arbitrary Detention at its 105th session, 23 March–1 April 2026

Opinion No. 26/2026 concerning Owen Chow Ka-shing (Hong Kong, China)

Reference Number:

A/HRC/WGAD/2026/26

Source:
United Nations Human Rights Council Working Group on Arbitrary Detention

Date:
12 June 2026

Document Type:
Opinion of a United Nations Human Rights Mechanism

Summary:

This is a formal Opinion of the United Nations Working Group on Arbitrary Detention concerning Owen Chow Ka-shing, one of the pro-democracy figures prosecuted in the "Hong Kong 47" primary-election case. The Working Group found his deprivation of liberty to be arbitrary under categories I, II, III and V. It found, among other matters, that he was arrested without a warrant and without being informed of the reasons; that Article 22(3) of the National Security Law ("with a view to subverting the State power") is so vague and overbroad as to violate the principle of legality; that his detention resulted from the peaceful exercise of the rights to freedom of expression, assembly, association and political participation; and that the fair-trial violations were of such gravity as to render the detention arbitrary, including a delay of 761 days between arrest and the start of trial, prolonged solitary confinement impairing the preparation of his defence, an in-camera trial, the concentration of all designated national-security judges in a single Magistrates' Court, the removal of trial by jury by certificate of the Secretary for Justice, and the appointment of national-security judges by the Chief Executive from a list not made public together with the

power to issue binding certificates as to national security and State secrets – features found incompatible with judicial independence under Article 14(1) of the ICCPR. The Working Group recorded that approximately 74 per cent of persons charged with national-security offences have been denied bail under the reverse presumption in Article 42 of the National Security Law, including 11 children, some for more than a year; observed that solitary confinement beyond 15 days may itself constitute torture or cruel, inhuman or degrading treatment; and held, applying Article 4(1) of the International Law Commission's Articles on the Responsibility of States for Internationally Wrongful Acts, that the People's Republic of China is responsible for the conduct of the Government of Hong Kong as a State organ.

Relevance:

This Opinion is an authoritative determination by a United Nations human-rights mechanism of facts directly relevant to several of the crimes alleged. It supports the imprisonment and severe deprivation of physical liberty relied upon under Article 7(1)(e), including the reverse presumption against bail, the prolonged pre-trial detention, and the systematic targeting of an identifiable political group. It supports the persecution alleged under Article 7(1)(h) through the denial of fair-trial rights, in particular the designation of national-security judges by the Chief Executive from a non-public list, the concentration of such judges, the removal of trial by jury, and the resulting absence of judicial independence – matters directly relevant to the responsibility of the designated national-security judges addressed elsewhere in this report. It further supports the torture and other inhumane acts alleged under Article 7(1)(f) and 7(1)(k), through the finding that prolonged solitary confinement may amount to torture or cruel, inhuman or degrading treatment. Finally, the Working Group's application of Article 4(1) of the Articles on State Responsibility supports the attribution of the conduct of the Hong Kong authorities to the People's Republic of China and the existence of a State policy for the purposes of Article 7(2)(a). The Working Group determines the arbitrariness of detention under international human-rights law and does not make a determination of criminal responsibility for crimes against humanity; this Opinion is relied upon as authoritative evidence of the underlying facts and of their contrariety to international law.

Hyperlink:

https://www.ohchr.org/sites/default/files/documents/issues/detention-wg/opinions/session105/a-hrc-wgad-2026-26-aev.pdf

EXHIBIT C1

Title:

半年發1.6萬催淚彈 港警佈防大三罷

(Hong Kong Police Fire 16,000 Tear Gas Rounds in Six Months, Deploy Forces Ahead of Citywide Strike)

Source:

DW News Chinese (International Media Outlet)

Date:

9 December 2019

Document Type:

News Report

Summary:

This report documents the Hong Kong Police Force's response to the 2019 protests, including large-scale crowd-control operations and deployments. During the first six months of the protests, the authorities officially acknowledged the deployment of approximately 16,000 shots of tear gas and 13,900 bullets. It highlights the scale and intensity of force used in response to widespread demonstrations and strikes.

Relevance:

This report is relevant as evidence of widespread and sustained use of force by state authorities in response to civilian protests. The scale and frequency of tear gas and projectile deployment support the existence of a broader pattern of violent suppression, which may be indicative of a state policy under Article 7 of the Rome Statute. It also provides contextual support for assessing whether such conduct forms part of a widespread or systematic attack against a civilian population.

Hyperlink:

https://www.dw.com/zh-hant/%E5%8D%8A%E5%B9%B4%E7%99%BC16%E8%90%AC%E5%82%AC%E6%B7%9A%E5%BD%88-%E6%B8%AF%E8%AD%A6%E4%BD%88%E9%98%B2%E5%A4%A7%E4%B8%89%E7%BD%B7/a-51583266

EXHIBIT C2

Title:

Anti-government protests enter their seventh month

Source:

Radio Television Hong Kong (RTHK), Government Media Outlet of Hong Kong

Date:

9 December 2019

Document Type:

News Report

Summary:

This news report documents the continuation of large-scale anti-government protests in Hong Kong into their seventh consecutive month. It reports on sustained public demonstrations, the scale of participation, and ongoing confrontations between protesters and law enforcement authorities.

Relevance:

This exhibit establishes the prolonged and widespread nature of the protests, providing contextual background for the scale and persistence of civilian participation. It also supports the inference that a significant number of civilians were exposed to law enforcement operations over an extended period. The fact that the original report has been removed and is only accessible through an archived version further raises concerns regarding the preservation and accessibility of public information relevant to these events.

Hyperlink:

https://web.archive.org/web/20200212153705/https://news.rthk.hk/rthk/en/component/k2/1496806-20191209

EXHIBIT C3

Title:

Hong Kong police slammed as ‘trigger-happy’ after teen shot

Source:

AP News (International Media Outlet)

Date:

2 October 2019

Document Type:

News Report

Summary:

This report describes an incident during the 2019 Hong Kong protests in which a police officer shot a teenage protester at close range. The article details the circumstances of the shooting, including clashes between protesters and police, and the resulting serious injury to the teenager. It also highlights public backlash and criticism of police use of live ammunition, with concerns raised about excessive force and escalation in protest policing tactics.

Relevance:

This exhibit demonstrates the escalation in the use of force by law enforcement during the 2019 protests, including the deployment of live ammunition against civilians. The incident and subsequent public criticism support arguments regarding disproportionate use of force, violations of the right to life and personal security, and failure to adhere to international standards on policing. It contributes to a broader pattern of concerns about excessive force and lack of accountability in protest management.

Hyperlink:

https://apnews.com/article/shootings-ap-top-news-international-news-police-hong-kong-01c893ae64754d029280eaf56e92b5f1

EXHIBIT C4

Title:

Almost 3,000 people, including 517 minors, prosecuted so far over 2019 Hong Kong protests

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

27 October 2022

Document Type:

News Report

Summary:

This report states that nearly 3,000 individuals have been prosecuted in connection with the 2019 Hong Kong protests (until October 2022), including 517 minors. It outlines the scale of legal proceedings brought against protesters and highlights the involvement of children and young persons in such prosecutions.

Relevance:

This report is relevant as evidence of the extensive use of criminal prosecution against individuals involved in protest-related activities, including minors. The scale of prosecutions supports allegations of widespread repression targeting a civilian population and raises concerns regarding proportionality and procedural safeguards. It contributes to the assessment of whether such conduct forms part of a widespread or systematic pattern under Article 7 of the Rome Statute.

Hyperlink:

https://hongkongfp.com/2022/10/27/almost-3000-people-including-517-minors-prosecuted-so-far-over-2019-hong-kong-protests/

EXHIBIT C5

Title:

Hong Kong: over-the-top punishment for 2019 democracy protesters, report finds

Source:

The Guardian (International Media Outlet)

Date:

1 November 2023

Document Type:

News Report

Summary:

This report highlights findings regarding the scale of arrests and sentencing arising from the 2019 protests in Hong Kong. It notes that over 10,000 individuals were arrested for protest-related or political activities across the city, including a significant number of minors. The report further describes concerns that punishments imposed on protesters were excessive and disproportionate.

Relevance:

This report is relevant as evidence of the large-scale targeting of civilians for political participation, including the arrest of minors. The scale of arrests and the severity of penalties support allegations of widespread repression and punitive measures directed at a civilian population. It also contributes to the assessment of whether such conduct forms part of a widespread or systematic pattern under Article 7 of the Rome Statute.

Hyperlink:

https://www.theguardian.com/world/2023/nov/01/hong-kong-over-the-top-punishment-for-2019-democracy-protesters-report-finds

EXHIBIT C6

Title:

Mob Attack at Hong Kong Train Station Heightens Seething Tensions in City

Source:

The New York Times (International Media Outlet)

Date:

22 July 2019

Document Type:

News Report

Summary:

This report documents the events of 21 July 2019 at Yuen Long MTR station, where armed individuals carried out coordinated attacks against protesters, commuters, and journalists using sticks and metal rods. Multiple victims sustained injuries. The report further notes that police response was significantly delayed, with officers arriving only after substantial violence had already occurred.

Relevance:

This exhibit demonstrates a failure by state authorities to provide timely protection to civilians in the face of foreseeable and ongoing violence. The delayed law enforcement response raises concerns regarding breach of the duty to protect, potential acquiescence, and unequal enforcement of the law, all of which are relevant to assessing state policy and patterns of conduct.

Hyperlink:

https://www.nytimes.com/2019/07/22/world/asia/hong-kong-protest-mob-attack-yuen-long.html

EXHIBIT C7

Title:

Chinese official urged Hong Kong villagers to drive off protesters before violence at train station

Source:

Reuters (International Media Outlet)

Date:

27 July 2019

Document Type:

News Report

Summary:

This report indicates that, prior to the Yuen Long attack, a Chinese official publicly urged local actors to "drive off" anti-government protesters. Shortly thereafter, groups of individuals carried out violent assaults at the station against protesters, bystanders, and journalists.

Relevance:

This exhibit is relevant in suggesting that the violence may have been foreseeable and potentially encouraged or condoned by state-linked actors. It supports inferences regarding prior knowledge, tacit approval, or indirect incitement, which are pertinent to establishing state responsibility and the existence of a broader policy context.

Hyperlink:

https://www.reuters.com/article/world/chinese-official-urged-hong-kong-villagers-to-drive-off-protesters-before-violen-idUSKCN1UL0L2/

EXHIBIT C8

Title:

【睇片】元朗站惡煞木棒打人 《立場》記者市民被追打受傷 事發半小時未見警員執法 ([Video] Armed attackers beat people at Yuen Long Station; Stand News reporter and civilians chased and injured; no police presence for half an hour).

Source:

立場新聞 Stand News (Local Hong Kong Media Outlet Later Shut Down Following the National Security Law)

Date:

21 July 2019

Document Type:

News Report

Summary:

This contemporaneous report, supported by video evidence, documents armed individuals indiscriminately attacking civilians and journalists inside Yuen Long MTR station and on train carriages. Victims were chased and beaten, and no police presence was observed for approximately 30 minutes after the violence began.

Relevance:

This exhibit provides direct visual and eyewitness evidence of the scale and nature of the violence, as well as the absence of timely law enforcement intervention. It reinforces claims of failure to protect civilians and supports arguments concerning possible acquiescence or deliberate inaction by authorities.

Hyperlink:

https://web.archive.org/web/20190721220857/https://thestandnews.com/politics/%E5%85%83%E6%9C%97%E7%AB%99%E6%83%A1%E7%85%9E%E6%89%8B%E6%8C%81%E6%9C%A8%E6%A3%92%E6%89%93%E4%BA%BA-%E5%B8%82%E6%B0%91%E8%A8%98%E8%80%85%E8%A2%AB%E8%BF%BD%E6%89%93%E5%8F%97%E5%82%B7-%E6%9C%AA%E8%A6%8B%E8%AD%A6%E5%93%A1%E5%9F%B7%E6%B3%95/

EXHIBIT C9

Title:

'Where were the police?' Hong Kong outcry after masked thugs launch attack.

Source:

The Guardian (International Media Outlet)

Date:

22 July 2019

Document Type:

News Report

Summary:

This report captures widespread public outrage following the Yuen Long attack, particularly regarding the apparent absence and delayed response of police despite multiple emergency calls. It documents injuries sustained by victims and growing public concern over law enforcement conduct.

Relevance:

This exhibit demonstrates the immediate societal impact of the incident and the erosion of public confidence in law enforcement. It supports arguments that the authorities' response was perceived as inadequate and inconsistent with their duty to protect, reinforcing claims of systemic failure and selective enforcement.

Hyperlink:

https://www.theguardian.com/world/2019/jul/22/where-were-the-police-hong-kong-outcry-after-masked-thugs-launch-attack

EXHIBIT C10

Title:

Former Hong Kong lawmaker gets 3 more years after being injured by mob

Source:

Radio Free Asia (International Media Outlet)

Date:

28 February 2025

Document Type:

News Report

Summary:

This report describes the subsequent prosecution and imprisonment of a former lawmaker who had been injured during the Yuen Long attack. Despite being a victim of the violence, the individual received an additional prison sentence related to protest activities.

Relevance:

This exhibit highlights apparent disparities in accountability between victims and perpetrators. The prosecution of an injured victim supports concerns regarding selective enforcement, misuse of prosecutorial discretion, and violations of equality before the law, which are relevant to establishing patterns of persecution and denial of due process.

Hyperlink:

https://www.rfa.org/english/china/2025/02/28/china-hong-kong-yuen-long-attacks-victims-jailed/

EXHIBIT C11

Title:

Yuen Long attack: Hong Kong police accused of 're-writing history'

Source:

BBC News (International Media Outlet)

Date:

26 August 2020

Document Type:

News Report

Summary:

This report examines criticism of the official police narrative of the Yuen Long incident, including allegations that authorities downplayed the attack by characterizing it as a “clash.” It further highlights concerns regarding inconsistencies in official accounts and dissatisfaction with investigative efforts.

Relevance:

This exhibit is relevant to issues of accountability and transparency. Allegations that authorities mischaracterized the incident support concerns regarding institutional bias, lack of impartial investigation, and potential obstruction of accountability, all of which are pertinent to assessing state conduct and the integrity of legal processes.

Hyperlink:

https://www.bbc.com/news/world-asia-china-53915500

EXHIBIT C12

Title:

港區國安法近五年定罪率逾九成半　林定國:反映檢控有理有據　批有勢力抹黑、阻礙國家發展

(Over 95% Conviction Rate Under Hong Kong National Security Law in Nearly Five Years; Paul Lam Says It Reflects Evidence-Based Prosecutions, Criticizes Forces for Smearing Law and Obstructing National Development)

Source:

i-CABLE News (Hong Kong Local Media Outlet)

Date:

22 June 2025

Document Type:

News Report / Interview with Government Officials

Summary:

This report covers statements by the Hong Kong Secretary for Justice, Paul Lam, indicating that the conviction rate for National Security Law cases over nearly five years exceeds 95%. The Secretary asserted that this reflects prosecutions based on sufficient evidence and conducted in accordance with the law, while also criticising external actors for allegedly undermining national development.

Relevance:

This exhibit is relevant as an official acknowledgment of an exceptionally high conviction rate in national security cases. Such a rate, in the context of criminal proceedings, may raise concerns regarding prosecutorial discretion, judicial independence, and the effective operation of fair trial guarantees. It is probative in assessing whether national security prosecutions operate under conditions that may undermine the presumption of innocence and contribute to a pattern of systematic enforcement against a defined group.

Hyperlink:

https://www.i-cable.com/%E6%96%B0%E8%81%9E%E8%B3%87%E8%A8%8A/361065/

%E6%B8%AF%E5%8D%80%E5%9C%8B%E5%AE%89%E6%B3%95%E8%BF%91%E4%BA%94%E5%B9%B4%E5%AE%9A%E7%BD%AA%E7%8E%87%E9%80%BE%E4%B9%9D%E6%88%90%E5%8D%8A-%E6%9E%97%E5%AE%9A%E5%9C%8B-%E5%8F%8D%E6%98%A0

EXHIBIT C13

Title:

Prosecutions Hong Kong 2024

Source:

Hong Kong Department of Justice

Document Type:

Government Report

Summary:

This official report published by the Hong Kong Department of Justice provides statistical data on conviction rates within the ordinary criminal justice system. It indicates that conviction rates in the Magistrates' Courts were approximately 60.7% in 2023 and 60.8% in 2024, while in the Court of First Instance – where criminal cases are generally tried by a jury – the rates were 55.8% in 2023 and 58.7% in 2024.

Relevance:

This exhibit provides a baseline for comparison with national security prosecutions. The significantly lower conviction rates in ordinary criminal proceedings, particularly in cases involving jury trials, highlight a marked disparity when contrasted with the reported conviction rate exceeding 95% *(see EXHIBIT C12)* in national security cases. This disparity is relevant to assessing whether national security proceedings are subject to materially different procedural conditions, and supports concerns regarding fair trial rights, including equality of arms, judicial independence, and the presumption of innocence under international human rights law.

Hyperlink:

https://www.doj.gov.hk/en/publications/pdf/doj2024pd_statistics.pdf

EXHIBIT C14

Title:

‘We Were Made to Suffer’: Systemic Abuse and Political Control Inside Hong Kong’s Prisons

Source:

Committee for Freedom in Hong Kong (CFHK) Foundation (Human Rights NGO)

Date:

September 2025

Document Type:

Report

Summary:

Documents the use of prolonged solitary confinement, medical neglect, and psychological abuse against political detainees.

Relevance:

Relied upon as evidence of systemic detention conditions capable of causing severe suffering.

Hyperlink:

https://thecfhk.org/research/we-were-made-to-suffer-systemic-abuse-and-political-control-inside-hong-kongs-prisons/

EXHIBIT C15

Title:

日均還柙人數創25年新高 6懲教院所迫爆 收容率超100%

(Average daily remand population hits 25-year high; Six Correctional Institutions Over Capacity, Occupancy Rate Exceeds 100%)

Source:

am730 through Yahoo News (Local & International Media Outlet)

Date:

23 February 2026

Document Type:

News Report

Summary:

This report cites data released by the Hong Kong Correctional Services Department in February 2026, indicating a significant increase in both the overall prison population and the remand population in 2025. The average daily prison population reached 10,315, with the overall occupancy rate rising from 85% to 92%. Notably, the average daily remand population increased to 4,217, representing an approximate 16% rise from the previous year and marking the highest level since 2000. Among approximately 30 correctional institutions, six recorded average occupancy rates exceeding 100%, including Tung Tau Correctional Institution (146%), Stanley Prison (132%), and Tai Lam Centre for Women (125%). The report further notes that authorities have reallocated capacity across institutions to address overcrowding and have commenced partial redevelopment works at Lai Chi Kok Reception Centre. Overall, the data reflect a persistent and serious overcrowding problem within Hong Kong's correctional facilities.

Relevance:

This document provides evidence of systemic overcrowding within Hong Kong's detention and correctional system, particularly in relation to the rising remand population and the sustained overcapacity of multiple institutions. Such conditions are directly relevant to the treatment, living conditions, and access to adequate medical care of detained persons, and

may adversely affect their physical and mental well-being. In legal arguments concerning arbitrary detention, prolonged pre-trial detention, or compliance with international human rights standards–particularly Article 9 of the International Covenant on Civil and Political Rights and related General Comments–this report serves as a recent and publicly available source supporting claims of deteriorating detention conditions and structural strain within the system.

Hyperlink:

https://web.archive.org/web/20260305155706/https://hk.news.yahoo.com/%E6%97%A5%E5%9D%87%E9%82%84%E6%9F%99%E4%BA%BA%E6%95%B8%E5%89%B525%E5%B9%B4%E6%96%B0%E9%AB%98-6%E6%87%B2%E6%95%99%E9%99%A2%E6%89%80%E8%BF%AB%E7%88%86-%E6%94%B6%E5%AE%B9%E7%8E%87%E8%B6%85100-200000070.html

EXHIBIT C16

Title:

Number of persons under CSD management

Source:

Hong Kong Correctional Service Department

Date:

24 November 2025

Document Type:

Government Statistics

Summary:

This official statistical page published by the Hong Kong Correctional Services Department (CSD) provides data on the number of persons under its management, including sentenced prisoners, remand detainees, and other categories of persons in custody. The data show fluctuations and an overall upward trend in the custodial population in recent years, with a notable proportion comprising remand detainees. The statistics distinguish between different categories of persons in custody and provide insight into institutional capacity pressures and population composition within Hong Kong's correctional system.

Relevance:

This document serves as an official government source confirming the scale and composition of the custodial population in Hong Kong. It is directly relevant to demonstrating the increasing reliance on detention, particularly pre-trial (remand) detention, and provides authoritative statistical support for claims of rising custodial numbers and systemic pressure on correctional facilities. When read together with evidence of overcrowding, it strengthens arguments concerning prolonged detention, institutional strain, and potential incompatibility with international human rights standards, including Article 9 of the International Covenant on Civil and Political Rights.

Hyperlink:

https://web.archive.org/web/20260130192251/https://www.csd.gov.hk/english/statistics/ins_mgt/npuc.html

EXHIBIT C17

Title:

Young activists recall abuse at Hong Kong juvenile correctional facility

Source:

Radio Free Asia (International Media Outlet)

Date:

30 March 2024

Document Type:

News Report

Summary:

This report documents testimonies from multiple young activists who were detained in Hong Kong juvenile correctional facilities. The former detainees describe experiencing physical violence, intimidation, and sexual abuse while in custody. According to their accounts, certain inmates–reportedly referred to as “B-boys”–were allowed or encouraged by correctional officers to target other prisoners, particularly those identified as political detainees. The report further highlights the vulnerability of minors in detention, including allegations that a 15-year-old boy was subjected to anal rape. These accounts suggest an environment in which abuse was not only prevalent but enabled through institutional tolerance or complicity.

Relevance:

This exhibit provides direct witness testimony supporting allegations of systematic abuse within Hong Kong’s correctional institutions, particularly against political prisoners and minors. It is relevant to demonstrating a pattern of tolerated or facilitated violence, including sexual abuse, which may amount to sexual violence, torture or other inhumane acts under Article 7 of the Rome Statute. The involvement or acquiescence of correctional officers, as described, supports the existence of state policy or organizational endorsement, and

contributes to establishing the contextual elements of a widespread or systematic attack against a civilian population.

Hyperlink:

https://www.rfa.org/english/news/china/hong-kong-prison-abuse-03302024103914.html

EXHIBIT C18

Title:

I was an American political prisoner in Hong Kong – and saw the savagery and squalor firsthand

Source:

New York Post (International Media Outlet)

Date:

7 September 2025

Document Type:

Opinion Published by International Media Outlet

Summary:

This opinion piece, authored by Samuel Bickett, a former detainee identifying as an American political prisoner in Hong Kong, provides a first-hand account of detention conditions. The author describes overcrowded and unsanitary facilities, harsh treatment by correctional staff, and a climate of intimidation and violence within prisons. The account further alleges that certain inmates were informally empowered by prison authorities to exert control over others, contributing to abuse and coercion. The author portrays the prison environment as degrading and punitive, particularly toward individuals detained in politically sensitive cases.

Relevance:

This exhibit constitutes direct testimonial evidence regarding detention conditions in Hong Kong, supporting allegations of inhumane treatment and degrading prison conditions. While presented as an opinion piece, it is grounded in first-hand experience and corroborates other evidence indicating a pattern of abuse, coercion, and institutional tolerance of violence within correctional facilities. It is relevant to establishing conditions of detention as part of a broader system of repression, and supports the characterization of such conduct as “other inhumane acts” under Article 7 of the Rome Statute, particularly when considered alongside corroborating witness accounts.

Hyperlink:

https://nypost.com/2025/09/07/opinion/i-was-an-american-political-prisoner-in-hong-kong-and-saw-the-savagery-and-squalor-firsthand/

EXHIBIT C19

Title:

監獄修訂規則本周五刊憲即時生效　保安局稱及早防範化解國安風險

(Prisons (Amendment) Rules to Be Gazetted This Friday and Take Immediate Effect. Security Bureau Says Early Prevention Needed to Defuse National Security Risks.)

Source:

Radio Television Hong Kong (RTHK), Government Media Outlet of Hong Kong

Date:

16 July 2025

Document Type:

News Report

Summary:

This report concerns amendments to Hong Kong's Prison Rules, gazetted on 18 July 2025 and taking immediate effect. The revised rules expand the powers of correctional authorities on grounds of "national security," including the authority to restrict or prohibit access to prisoners by certain legal representatives and religious personnel. The stated justification by the Security Bureau is the need for early prevention and mitigation of national security risks within custodial institutions. These measures introduce discretionary controls over prisoners' access to legal counsel and spiritual support.

Relevance:

This exhibit demonstrates the institutionalization of restrictions on fundamental safeguards within detention, particularly the right to legal representation and access to independent counsel, as well as freedom of religion. The invocation of "national security" as a basis for denying such access introduces broad and vague discretionary powers, which may be used to isolate political detainees and impede their ability to prepare a defense.

Such measures are relevant to establishing deprivation of due process and fair trial rights, as well as persecutions under Article 7 of the Rome Statute, particularly where denial of legal and external contact contributes to coercion, isolation, or abuse. When considered alongside other evidence, this supports the existence of a systematic framework enabling the control and repression of political prisoners through custodial regulations.

Hyperlink:

https://news.rthk.hk/rthk/ch/component/k2/1813603-20250716.htm

EXHIBIT C20

Title:

Hong Kong protester shot at close range by police – video

Source:

The Guardian (International Media Outlet)

Date:

10 November 2019

Document Type:

News Report / Video

Summary:

Video footage published by The Guardian shows a police officer in Hong Kong shooting a protester at close range during street unrest. The footage captures the immediate circumstances of the incident and the proximity between the officer and the unarmed individual at the moment the shot was fired.

Relevance:

This exhibit is relevant as contemporaneous visual evidence of the use of potentially lethal force by law enforcement during the 2019 crackdown on protests. It supports allegations concerning excessive force against civilians and is further relevant to the subsequent absence of effective accountability measures, including failed attempts to pursue private prosecution arising from the incident. It may also assist in assessing whether patterns of force formed part of a broader attack directed against a civilian population.

Hyperlink:

https://www.theguardian.com/global/video/2019/nov/11/hong-kong-protester-shot-at-close-range-by-police-video

EXHIBIT C21

Title:

Video: Taxi rams into pro-democracy protesters outside local Hong Kong gov't offices, driver beaten

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

6 October 2019

Document Type:

News Report / Video

Summary:

A report by Hong Kong Free Press includes video footage of a taxi driving into a crowd of pro-democracy protesters outside local government offices in Hong Kong during the 2019 unrest. The footage captures the vehicle entering the crowd, resulting in chaos at the scene.

Relevance:

This exhibit is relevant as contemporaneous visual evidence of serious violence directed at protesters during the 2019 protests. It supports allegations concerning threats to civilian safety and potentially deliberate attacks against demonstrators. It is further relevant because domestic judicial authorities reportedly found sufficient grounds for a prosecution for dangerous driving, yet the case was later discontinued through administrative intervention, which may support allegations of impunity and the absence of genuine accountability mechanisms.

Hyperlink:

https://hongkongfp.com/2019/10/06/video-taxi-rams-pro-democracy-protesters-outside-local-hong-kong-govt-offices-driver-beaten/

EXHIBIT C22

Title:

CONSTITUTIONAL AND ADMINISTRATIVE LAW LIST NO 2270 OF 2020

Source:

High Court of Hong Kong

Reference Number:

HCAL 2270/2020
[2021] HKCFI 1208

Date:

7 May 2021

Document Type:

Court Judgement

Summary:

This judgment of the High Court of Hong Kong concerned a judicial review challenge arising from decisions of the Secretary for Justice to intervene in and discontinue private prosecutions initiated by former lawmaker Ted Hui (Hui Chi-fung). The private prosecutions related to two 2019 protest-era incidents: the shooting of a protester by a police officer and a taxi driver allegedly driving into protesters. The Court dismissed the challenge and upheld the Secretary for Justice's decisions to take over and terminate the prosecutions.

Relevance:

This exhibit is relevant to the question of whether genuine domestic accountability mechanisms existed in relation to serious allegations of violence arising from the 2019 crackdown. It evidences that attempts by private individuals to pursue criminal accountability for alleged violence against protesters were ultimately discontinued through executive intervention, with subsequent judicial review unsuccessful. It may therefore support allegations of impunity, institutional protection from prosecution, and the absence of effective domestic remedies.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=135568&TP=JU

EXHIBIT C23

Title:

Submission from Hong Kong Watch (HKW), Freiheit für Hongkong e.V. (FfHK), and Hongkonger in Deutschland e.V. (HKDE) to the Committee on the Elimination of Discrimination against Women on the Implementation of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) in the Hong Kong Special Administrative Region (HKSAR)

Source:

Office of the United Nations High Commissioner for Human Rights

Date:

March 2023

Document Type:

Submission to a United Nations Committee by Civil Society Organizations

Summary:

This is a joint submission by Hong Kong Watch, Freiheit für Hongkong e.V. and Hongkonger in Deutschland e.V. to the United Nations Committee on the Elimination of Discrimination against Women, prepared in advance of the Committee's review of the Hong Kong Special Administrative Region. Drawing on first-hand testimony from exiled women human rights defenders and open-source material, it documents gender-based violence against women during and after the 2019 protests, including sexual assault and harassment by police officers, the case of the then 18-year-old complainant referred to publicly as Ms X, and reported sexual violence at the San Uk Ling Holding Centre.

Relevance:

This submission is relevant to the material element of sexual violence under Article 7(1)(g) and to the absence of genuine domestic remedies. It sets out the timeline of the Ms X case –

the rape complaint of 22 October 2019, the attempted seizure of her medical records, the police characterisation of the complaint as containing “fake information”, and the subsequent decision to pursue her for “making a false statement” – and documents the reported sexual violence and forced strip searches at San Uk Ling and the absence of any investigation. It further evidences the deterrent effect on other women and the dysfunction of the complaints mechanisms, supporting the inference that sexual violence operated as an instrument of repression directed against an identifiable group.

Hyperlink:

https://tbinternet.ohchr.org/_layouts/15/TreatyBodyExternal/DownloadDraft.aspx?key=TO7aDdcVS2jybL828YGQcRjFqjnUH4RVy35udLywUzQM17/tCZT66veJS7exp9Zv

EXHIBIT C24

Title:

Open Letter Condemning Police Seizure of Medical Records (Hong Kong Public Doctors' Association - HKPDA)

Source:

Hong Kong Public Doctors' Association

Date:

21 November 2019

Document Type:

Open Letter from Professional Group

Summary:

This is an open letter from the Hong Kong Public Doctors' Association to the Chief Executive of the Hospital Authority, expressing grave concern that patients' medical records had been disclosed to the police, purportedly pursuant to search warrants, without the patients' knowledge or consent. It refers to the case of Ms X, sets out the duty of doctor-patient confidentiality under the Code of Professional Conduct, and calls on the Hospital Authority to challenge such warrants, to facilitate patients' own legal challenges, and to protect seized records.

Relevance:

This letter is relevant to the use of coercive investigative powers against a complainant of sexual violence. It independently corroborates the police attempt to seize Ms X's medical records and establishes that a professional medical body publicly condemned that conduct as incompatible with the duty of medical confidentiality. It supports the contention that the investigative process was directed against the victim rather than the alleged perpetrators, and that institutional safeguards for patients were disregarded.

Hyperlink:

https://www.hkpda.org.hk/wp-content/uploads/2020/05/letter-to-HAHO-for-patient-confidentiality-211129.pdf

EXHIBIT C25

Title:

'I Had The Courage to Report Rape'

Source:

Radio Free Asia (International Media Outlet)

Date:

14 May 2020

Document Type:

News Report

Summary:

This is a Radio Free Asia news report concerning the young woman who alleged that she had been raped by police officers following her detention at Tsuen Wan Police Station, and the subsequent public announcement that she faced arrest for allegedly making a false statement after she had left Hong Kong.

Relevance:

This report is relevant to the deployment of the criminal process against the complainant and to the absence of genuine domestic accountability. It corroborates the public announcement – made while Chris Tang Ping-keung was Commissioner of Police – that the complainant faced arrest for "making a false statement", evidencing the transformation of a victim of alleged sexual violence into a criminal suspect and supporting the inference of persecution and of an obstruction of accountability for the conduct of police officers.

Hyperlink:

https://www.rfa.org/english/news/china/rape-05142020105156.html

EXHIBIT C26

Title:

Victoria Tin-bor Hui

Associate Professor in Political Science, University of Notre Dame

Testimony before the U.S.-China Economic and Security Review Commission

"U.S.-China Relations in 2019: A Year in Review"

Source:

U.S.-China Economic and Security Review Commission, United States Congress

Date:

4 September 2019

Document Type:

Testimony to the United States Congress

Summary:

This is the written testimony of Professor Victoria Tin-bor Hui before the U.S.-China Economic and Security Review Commission of the United States Congress, documenting the policing of the 2019 Hong Kong protests. It records, among other matters, the transfer of arrested persons to the San Uk Ling Holding Centre, the denial of timely access to lawyers, and serious injuries sustained in detention, including hospitalisations, bone fractures, head injuries and a case of bleeding on the brain.

Relevance:

This testimony is relevant to the assessment of torture and other inhumane acts under Article 7(1)(f) and 7(1)(k). It establishes the conditions at San Uk Ling – the remote and effectively incommunicado detention of arrested persons, the denial of access to legal representation, and

injuries consistent with severe beatings, including the police's own acknowledgment that detainees had been hospitalised with fractures and head injuries. As testimony formally placed before a legislature of a State, it provides a contemporaneous and recorded account of the treatment of detainees.

Hyperlink:

https://www.uscc.gov/sites/default/files/Panel%20III%20Hui_Written%20Testimony.pdf

EXHIBIT C27

Title:

Hong Kong police violence escalates dramatically: unarmed protesters shot with live rounds

Source:

Global Voices by Hong Kong Free Press (International & Local Media Outlet)

Date:

11 November 2019

Document Type:

News Report

Summary:

This is a Global Voices report, republished under a content partnership with the Hong Kong Free Press, compiling contemporaneous reporting on the escalation of police violence in Hong Kong in early November 2019. It records the shooting of an unarmed protester with live rounds at Sai Wan Ho, the death of a 22-year-old student, and the allegation of gang rape at Tsuen Wan Police Station – including that the police confirmed receiving the complaint on 22 October, that the complainant underwent an abortion on 5 November, and that DNA had been gathered from the foetus as evidence – together with the police statement of 26 October concerning the San Uk Ling Holding Centre.

Relevance:

This report is relevant to the Ms X case and to the absence of an effective complaints mechanism. It corroborates the preservation of DNA from the foetus as potential forensic evidence, and records that on 26 October 2019, four days after the police complaints office had been notified, a police spokesperson stated that no complaint of sexual assault had been received in respect of the San Uk Ling Holding Centre, while declining to say whether

complaints had been received in respect of Tsuen Wan Police Station or other facilities. It also provides contextual evidence of the escalation of potentially lethal force during the relevant period.

Hyperlink:

https://globalvoices.org/2019/11/11/hong-kong-police-violence-escalates-dramatically-as-they-shoot-unarmed-protesters-with-live-round-over-road-block-action/

EXHIBIT C28

Title:

Independent Expert Panel Position Statement / Report of Progress (8 Nov 2019)

Source:

International Experts Panel for Hong Kong Independent Police Complaints Council

Date:

8 November 2019

Document Type:

Independent Expert Panel Position Statement of Government Oversight Body

Summary:

This is the Position Statement and Report of Progress of the International Expert Panel appointed to advise the Independent Police Complaints Council (IPCC), dated 8 November 2019 and published through the social-media account of panel member Professor Clifford Stott. It records that the panel's analysis had indicated a shortfall in the IPCC's powers, capacity and independent investigative capability, and that structural limitations inhibited the IPCC's ability to establish a coherent and representative body of evidence.

Relevance:

This is primary-source evidence, in the panel's own words, that the statutory police-oversight body lacked the powers and capacity necessary to conduct a rigorous inquiry into the policing of the protests. It is relevant to the absence of an effective domestic oversight mechanism and, in turn, to the admissibility of the situation before the ICC under Article 17 of the Rome Statute.

Hyperlink:

https://x.com/cliffordstott/status/1193086839416078336

Archive.today Webpage Capture (28 October 2026):

https://archive.ph/lyehV

EXHIBIT C29

Title:

Hong Kong police watchdog lacks power to investigate ongoing protests, says int'l experts

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

10 November 2019

Document Type:

News Report

Summary:

This is a Hong Kong Free Press report on the assessment by the International Expert Panel that the IPCC lacked the powers necessary to investigate the policing of the protests. It records panel member Professor Clifford Stott's public call for a more comprehensive investigation by an independent body possessed of the requisite powers, and describes the IPCC's structural limitations, including its dependence on complaints forwarded by the police and its inability to compel the production of documents or the attendance of witnesses.

Relevance:

This report is relevant to the absence of an effective domestic remedy. It corroborates both the structural limitations of the IPCC and Professor Stott's public statement, supporting the contention that the only standing body charged with the oversight of police conduct was incapable of conducting a genuine investigation into the conduct alleged in this report.

Hyperlink:

https://hongkongfp.com/2019/11/10/hong-kong-police-watchdog-lacks-power-investigate-ongoing-protests-says-intl-experts/

EXHIBIT C30

Title:

Int'l experts to quit Hong Kong investigation into police handling of protests

Source:

Hong Kong Free Press by Agence France-Presse (AFP) (Local & International Media Outlet)

Date:

11 December 2019

Document Type:

News Report

Summary:

This is an Agence France-Presse report, carried by Hong Kong Free Press, of the announcement on 11 December 2019 that the International Expert Panel appointed to advise the IPCC, chaired by Sir Denis O'Connor, had "taken the decision to formally stand aside from its role". The Panel stated that "a crucial shortfall was evident in the powers, capacity and independent investigative capability of IPCC", that discussions with the IPCC over the preceding month had produced no progress, and that a fully independent inquiry would be better suited to the task. The report also records that the Chief Executive and the police had repeatedly rejected calls for an independent inquiry into police conduct.

Relevance:

This report is relevant to the absence of a genuine and effective domestic accountability mechanism and to admissibility. It establishes the appointment and composition of the international panel, its formal withdrawal on 11 December 2019 after its recommendations were not adopted, the IPCC's structural limitations, and the Government's refusal to establish an independent commission of inquiry vested with the power to compel evidence.

Hyperlink:

https://hongkongfp.com/2019/12/11/breaking-international-experts-quit-hong-kong-investigation-police-handling-protests/

EXHIBIT C31

Title:

Hong Kong: Impotent and biased IPCC report into protests fails to bring justice any closer

Source:

Amnesty International

Date:

15 May 2020

Document Type:

Statement from Human Rights Group

Summary:

This is a statement by Amnesty International concerning the IPCC's report of May 2020 into the protests. It assesses the report as making no attempt to establish accountability for police misconduct, characterises it as failing to address widespread and systemic human rights violations, and calls on the Government to establish a commission of inquiry consistent with international standards.

Relevance:

This statement is relevant to the absence of genuine domestic remedies and to complementarity under Article 17 of the Rome Statute. It evidences that the domestic oversight process, having run its course, produced no individual accountability for the conduct of police officers during the protests, notwithstanding the withdrawal of the international experts and the documented allegations of serious misconduct.

Hyperlink:

https://www.amnesty.org/en/latest/news/2020/05/hong-kong-impotent-and-biased-ipcc-report-into-protests-fails-to-bring-justice-any-closer/

EXHIBIT C32

Title:

Hong Kong protests: Equal Opportunities Commission gets 300 inquiries during unrest, mostly third-party allegations of sexual discrimination against police

Source:

South China Morning Post (Hong Kong Local Media Outlet)

Date:

18 October 2019

Document Type:

News Report

Summary:

This is a South China Morning Post report that the Equal Opportunities Commission, Hong Kong's statutory anti-discrimination body, had received more than 300 inquiries connected to the protests since mid-June 2019, the majority concerning allegedly inappropriate or violating conduct by police officers during arrests and stop-and-search operations. It records the Commission chairman's explanation that none of the inquiries was treated as a formal complaint because none had been made directly by a person identifying as a victim.

Relevance:

This report is relevant to the contextual (widespread) element and to the absence of an effective avenue of redress. It corroborates the scale of third-party allegations of sexual misconduct by police officers, while the absence of any direct victim complaint is consistent with the deterrent effect on victims described elsewhere and with the wider absence of a functioning mechanism through which such conduct could be investigated. It should not, however, be relied upon as establishing the number of substantiated incidents.

Hyperlink:

https://www.scmp.com/news/hong-kong/law-and-crime/article/3033188/hong-kongs-equal-opportunities-commission-gets-300

EXHIBIT C33

Title:

Submission from Hong Kong Watch to the Committee on the Rights of the Child's 103rd Pre-Sessional Working Group

Alternative Report on the People's Republic of China (Hong Kong Special Administrative Region)

Source:

Hong Kong Watch (submission to the United Nations Committee on the Rights of the Child)

Date:

July 2026

Document Type:

Submission to a United Nations Treaty Body by a Civil Society Organisation

Summary:

This submission documents the ill-treatment of children in Hong Kong's juvenile correctional facilities, drawing substantially upon the CFHK Foundation's September 2025 report based on interviews with 17 former prisoners. It records that juvenile facilities are notorious for excessive violence, and that the Correctional Services Department (CSD) operates an inmate hierarchy in which designated orderlies (known as "B-boys") are permitted to beat, extort and sexually assault other juvenile detainees. It documents the case of a political activist imprisoned at the age of 17 who was subjected to prolonged physical and sexual violence over a three-month detention at Pik Uk Correctional Institution, including being forced to perform oral sex under threat of further violence; records that at least eight of the seventeen former prisoners interviewed had been subjected to or had witnessed severe physical abuse; and describes a further 17-year-old repeatedly assaulted by a privileged inmate while guards "turned a blind eye", who emerged with post-traumatic stress disorder. It further records the routine use of solitary confinement ("removal from association", with 879 recorded cases in 2024), the CSD's exclusive control of its own grievance process and its retaliation against those who complain, and the absence of any independent international monitoring of juvenile

facilities. It records that more than 10,000 persons have been arrested on protest-related charges since 2020, including children, and that minors have been convicted and imprisoned under the National Security Law, including a 16-year-old sentenced to 42 months' imprisonment in December 2025.

Relevance:

This submission is relevant to the assessment of sexual violence under Article 7(1)(g), evidencing that the victims of sexual violence in custodial settings included minors, and corroborating the allegation that such violence formed part of the conduct in detention facilities. It is relied upon on the basis that the sexual and physical violence occurred through a custodial hierarchy imposed and tolerated by the Correctional Services Department, which also controlled and suppressed the mechanism through which such conduct could be reported – such that the conduct is attributable to the State through institutional design and acquiescence, rather than constituting isolated inmate misconduct. It further supports the torture and other inhumane acts alleged under Article 7(1)(f) and 7(1)(k), through the severe physical abuse of juvenile detainees and the routine use of prolonged solitary confinement, and supports the widespread character of the attack under Article 7(1) through the scale of imprisonment and the extension of prosecution and imprisonment to children. This exhibit is a civil-society submission drawing substantially upon the underlying CFHK Foundation report (*see EXHIBIT C14*); the submission's separate treatment of academic freedom in schools is not relied upon for the purposes of Article 7.

Hyperlink:

https://static1.squarespace.com/static/58ecfa82e3df284d3a13dd41/t/6a6b347201b61e03028856c6/1785410674552/Submission_Hong+Kong+Watch+to+CRC+2026.pdf

EXHIBIT C34

Title:

Hong Kong: Submission to the UN Committee on the Rights of the Child, 103rd Pre-Sessional Working Group, List of Issues

Index:

ASA 17/1334/2026

Source:

Amnesty International

Date:

1 August 2026

Document Type:

Submission to a United Nations Treaty Body by an International Human Rights Organisation

Summary:

This submission to the UN Committee on the Rights of the Child documents children's-rights violations in Hong Kong under the National Security Law and the Safeguarding National Security Ordinance. Drawing on Amnesty International's research, including its June 2025 report (ASA 17/9556/2025), it records that approximately 85 per cent of concluded national-security cases involved only legitimate expression that should not have been criminalised, that bail was denied in approximately 89 percent of national-security cases, and that the average period of pre-trial detention was 11 months. It records the arrest of a 15-year-old boy in July 2025 for membership of a Taiwan-based diaspora group and his sentence, following a guilty plea, to 42 months' imprisonment for incitement to secession, absent any evidence of violence. On conditions of detention, it records interviews conducted in 2025 with nine persons detained between 2016 and 2023 across 11 facilities (including facilities for children), who reported physical violence, prolonged solitary confinement and dangerous conditions; that violence was particularly prevalent in facilities holding those aged

14 to 20; that officers took detainees to areas not covered by closed-circuit television and administered blows by a method ("chicken wing") intended to avoid leaving visible injuries; and that a former correctional officer admitted assaulting an 18-year-old detainee by thrusting a stick into his rectum, causing permanent injury, the officer's supervisor also being prosecuted. It further records that, as of 31 August 2022, 1,754 of those arrested in connection with the 2019 protests were under 18, and 517 of those prosecuted were under 18.

Relevance:

Relevant to persecution under Article 7(1)(h): the finding that approximately 85 per cent of concluded national-security cases involved only legitimate expression supports the contention that the criminal process was directed at protected conduct by reason of political opinion rather than at genuine criminality. Relevant to imprisonment and other severe deprivation of physical liberty under Article 7(1)(e), through the 89-per-cent bail-refusal rate and the 11-month average pre-trial detention. Relevant to sexual violence, torture and other inhumane acts under Article 7(1)(g), 7(1)(f) and 7(1)(k), through the documented physical and penetrative assault of young detainees by a State agent – causing permanent injury, and resulting in criminal conviction – and the deliberate concealment of ill-treatment from recording. It further supports the widespread character of the attack and its extension to children under Article 7(1), through the figures for minors arrested and prosecuted. This is an authoritative submission by an international human-rights organisation; the underlying court records and Amnesty International's cited reports should be exhibited directly where the primary account is relied upon.

Hyperlink:

https://www.amnesty.org/en/documents/asa17/1334/2026/en/

EXHIBIT C35

Title:

CSO Alternative Report to the United Nations Committee on the Rights of the Child (103rd Pre-Sessional Working Group) – Comprehensive Report covering clusters 1–5, 7, 10, 11

Source:

Hong Kong Centre for Human Rights (HKCHR)

Date:

3 August 2026

Document Type:

Submission to a United Nations Treaty Body by a Civil Society Organisation

Summary:

This civil-society alternative report to the UN Committee on the Rights of the Child documents the treatment of children in Hong Kong following the 2020 National Security Law and the 2024 Safeguarding National Security Ordinance. It records, among other matters: the misuse of Care and Protection Orders under the Protection of Children and Juveniles Ordinance (Cap. 213) to detain minors who had not been charged with any offence – including a 13-year-old held for 27 days at the Tuen Mun Children and Juvenile Home and restricted from family contact before a magistrate rejected the police application, with at least four children made subject to such orders by October 2019; the systematic use by the Department of Justice of sentence-review applications to the Court of Appeal to replace minors' non-custodial, rehabilitative sentences with custodial detention, in at least 14 cases involving minors over six years; systemic physical abuse in juvenile penal facilities, including a case at the Pik Uk Correctional Institution in which a correctional officer, in collusion with inmates, assaulted an 18-year-old remand prisoner with a wooden stick, causing a torn anus and permanent injury; mandatory "patriotic" education, "re-education" of those assessed as holding "extreme ideological views", and military-style foot drills imposed on youth in custody; and a conditional non-prosecution scheme keeping the cases of

approximately 7,000 uncharged protesters in legal limbo for up to seven years, conditioned upon "rehabilitation" and mainland "exchange tours", which a legal scholar has stated lacks any legal basis.

Relevance:

Relevant to imprisonment and other severe deprivation of physical liberty under Article 7(1)(e), through the misuse of a child-welfare mechanism to detain uncharged minors without trial and the coercive replacement of rehabilitative sentences with custodial detention. Relevant to torture and other inhumane acts under Article 7(1)(f) and 7(1)(k), through the physical abuse of juvenile detainees by, or with the collusion of, correctional officers, and the imposition of coercive ideological programmes. Relevant to persecution under Article 7(1)(h), through the deployment of the criminal and welfare-detention apparatus against children by reason of their political activity, and the use of prolonged prosecutorial threat to coerce ideological compliance from an identifiable group of young persons. This is a civil-society submission drawing in part upon secondary sources; the underlying court records and news reports should be exhibited directly where the primary account is relied upon.

Hyperlink:
https://hkchr.org/wp-content/uploads/2026/08/HKCHR-CRCsubmission20260804.pdf

EXHIBIT D1

Title:

EXPLAINED: What is the Article 23 security law in Hong Kong?

Source:

Radio Free Asia (International Media Outlet)

Date:

23 September 2024

Document Type:

News Report

Summary:

This report explains the enactment of the Safeguarding National Security Ordinance in March 2024, commonly referred to as the Basic Law Article 23 legislation. The law significantly expands the scope of national security offences, including broadening the definition of sedition and increasing the severity of penalties associated with such offences.

Relevance:

This report is relevant as evidence of the expansion and entrenchment of national security offences within Hong Kong's legal framework. The broadening of sedition and related offences supports allegations of an increasingly repressive legal regime used to criminalise expression and dissent. It further demonstrates the institutionalisation of measures that may facilitate violations of due process and fundamental rights.

Hyperlink:

https://www.rfa.org/english/news/china/article-23-hong-kong-09232024112926.html

EXHIBIT D2

Title:

Why Hong Kong Protesters Are Outraged by Extradition Bill

Source:

CNN (International Media Outlet)

Date:

11 June 2019

Document Type:

Opinions on Media Outlet

Summary:

This report highlights concerns raised by members of the judiciary and legal community regarding the proposed extradition bill and the broader legal framework in Hong Kong. It notes that, both prior to and during the 2019 protests, judges and legal professionals expressed criticism of the authorities, warning that the measures could undermine judicial independence, erode legal protections, and depart from fundamental democratic principles.

Relevance:

This report is relevant as evidence of contemporaneous concerns expressed by judicial and legal actors regarding the erosion of rule of law safeguards. Such concerns support the inference that subsequent prosecutions and enforcement measures took place within a compromised legal environment. This is pertinent to assessing whether the administration of justice was conducted in a manner consistent with due process, and whether it formed part of a broader pattern of conduct under Article 7 of the Rome Statute.

Hyperlink:

https://www.cnn.com/2019/06/11/opinions/hong-kong-protests-government-abuse-judiciary-cheung

EXHIBIT D3

Title:
就維護國家安全開支的專門款項的控制和管理向立法會提交報告

(Report to the Legislative Council on the Control and Management of the Dedicated Fund for Expenditure on Safeguarding National Security)

Source:
Legislative Council of the Hong Kong Special Administrative Region

Date:
30 July 2025

Document Type:
Hong Kong Government Record

Summary:

This official report submitted to the Legislative Council details expenditures related to safeguarding national security between 30 June 2020 and 30 July 2025, amounting to approximately HKD 13 billion (approximately USD 1.67 billion). The report states that the use and allocation of such funds are not subject to public disclosure, including to legislative oversight bodies.

Relevance:
This document is relevant as evidence of the institutionalisation and resourcing of national security enforcement measures on a significant scale. The absence of transparency and exemption from legislative oversight supports the inference of a coordinated State policy implemented without meaningful checks and balances. This is pertinent to assessing whether the alleged acts were carried out pursuant to or in furtherance of a State or organisational policy under Article 7 of the Rome Statute.

Hyperlink:

https://www.legco.gov.hk/yr2025/chinese/counmtg/papers/cm20250730-sp066-c.pdf

EXHIBIT D4

Title:

Hong Kong police group calls people who vandalised grave 'low lives,' 'cockroaches', 'not human'

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

29 July 2019

Document Type:

News Report

Summary:

This report concerns a statement by the Junior Police Officers' Association, the largest staff association of the Hong Kong Police Force, following the vandalism of the graves of the parents of pro-Beijing legislator Junius Ho in the days after the Yuen Long attack of 21 July 2019. The Association's chairman, Lam Chi-wai, described those responsible as "low lives", "cockroaches" and "not human".

Relevance:

This exhibit is evidence of dehumanising language used in an official capacity by the representative body of the Force's rank-and-file officers during the 2019 protests, towards persons who the Association connected with the protest movement. The characterisation of opponents as vermin and as "not human" is probative of the discriminatory animus underlying the conduct described in Part 5 of the Factual Summary, and of a climate in which mistreatment and excessive force may be normalised.

Hyperlink:

https://hongkongfp.com/2019/07/29/hong-kong-police-group-calls-people-vandalised-grave-low-lives-cockroaches-not-human/

EXHIBIT D5

Title:

Hong Kong and Insect Rhetoric: The Spatial Politics of Pokémon GO

Source:

Scientific Figure on ResearchGate

Date:

July 2020

Author:

Hugh Davies

Article:

Hong Kong and Insect Rhetoric: The Spatial Politics of Pokémon GO

Document Type:

Academic Research

Summary:

This exhibit includes academic documentation of visual propaganda depicting Hong Kong protesters as cockroaches, including imagery attributed to state-affiliated media. It illustrates the dissemination of dehumanising representations through digital and public platforms.

Relevance:

This exhibit is relevant as evidence that dehumanising narratives were not limited to individual actors but were amplified through state-linked media channels. The portrayal of protesters as sub-human supports the inference of a broader narrative framework that legitimises hostility and repression. This contributes to establishing intent and the normalisation of conduct directed against a civilian population.

Hyperlink:

https://www.researchgate.net/figure/Left-Hong-Kong-Facebook-page-of-Xinhua-news-agency-on-17082019-depicting-protesters-as_fig2_342976781

EXHIBIT D6

Title:

新华社:香港教育要正本清源必须铲除“教协”这颗毒瘤

(Xinhua: To Rectify Hong Kong Education at Its Roots, the “Poisonous Tumour” of the Hong Kong Professional Teachers’ Union Must Be Eradicated)

Source:

Xinhua commentary as republished by the Liaison Office of the Central People's Government in the Hong Kong Special Administrative Region

Date:

31 July 2021

Document Type:

Government Statement

Summary:

This government statement relays commentary describing the Hong Kong Professional Teachers’ Union as a “poisonous tumour” that must be eradicated. It frames the organisation as a threat to governance and national interests.

Relevance:

This exhibit is relevant as evidence of official use of highly inflammatory and dehumanising language against a civil society organisation. The characterisation of a professional body as a disease requiring eradication supports the inference of stigmatisation and delegitimisation of dissenting groups. It is probative of intent and supports the existence of a broader policy targeting identifiable groups.

Hyperlink:

http://www.locpg.gov.cn/2021-07/31/c_1211269639.htm

EXHIBIT D7

Title:

Hong Kong's largest teachers' union to disband following pressure from gov't and Chinese state media

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

10 August 2021

Document Type:

News Report

Summary:

This report describes the disbandment of the Hong Kong Professional Teachers' Union following sustained criticism and pressure from authorities and state-affiliated media. The organisation was publicly accused of misconduct and subjected to coordinated political pressure.

Relevance:

This exhibit is relevant as evidence of coercive measures directed at civil society actors outside formal judicial processes. The dissolution of a major organisation following sustained political pressure supports allegations of intimidation and suppression of dissent. It contributes to establishing a pattern of conduct directed against identifiable groups, relevant to Article 7 of the Rome Statute.

Hyperlink:

https://hongkongfp.com/2021/08/10/breaking-hong-kongs-largest-teachers-union-to-disband-following-pressure-from-govt-and-chinese-state-media/

EXHIBIT D8

Title:

香港 23條：進一步收緊潛逃者措施 即時撤專業資格及取消護照 (Hong Kong Article 23: Further Tightening Measures Against Fugitives Immediate Revocation of Professional Qualifications and Cancellation of Passports)

Source:

Radio France Internationale Chinese (International Media Outlet)

Date:

12 March 2024

Document Type:

News Report

Summary:

This report documents statements made during legislative discussions on Article 23 national security legislation, including remarks by a public official characterising individuals accused of national security offences as “worse than murderers or arsonists.” It also outlines proposed measures expanding punitive and administrative powers.

Relevance:

This exhibit is relevant as evidence of extreme stigmatisation by public officials of individuals accused of national security offences. Such characterisations support the inference that dissidents are treated not as ordinary criminal defendants but as exceptional threats, thereby justifying disproportionate punitive measures. This is probative of intent and relevant to assessing whether such conduct forms part of a widespread or systematic attack against a civilian population under Article 7 of the Rome Statute.

Hyperlink:

https://www.rfi.fr/tw/%E6%B8%AF%E6%BE%B3%E5%8F%B0/20240312-%E9%A6%99%E6%B8%AF-23%E6%A2%9D-%E9%80%B2%E4%B8%80%E6%AD%A5%E6%94%B6%E7%B7%8A%E6%BD%9B%E9%80%83%E8%80%85%E6%8E%AA%E6%96%BD-%E5%8D%B3%E6%99%82%E6%92%A4%E5%B0%88%E6%A5%AD%E8%B3%87%E6%A0%BC%E5%8F%8A%E5%8F%96%E6%B6%88%E8%AD%B7%E7%85%A7

EXHIBIT D9

Title:

The West Has Abandoned Hong Kong to Totalitarianism

Source:

Lord Jonathan Sumption on The New Statesman

Date:

20 December 2025

Document Type:

Article Written By Former Government Officials

Summary:

This article was written by Lord Jonathan Sumption, a former Non-Permanent Judge of the Hong Kong Court of Final Appeal (2019–2024). In the article, Lord Sumption reflects on developments in Hong Kong's legal system following the implementation of the National Security Law. He identifies two principal concerns: first, that the law itself is repressive; and second, that judicial decision-making may be affected even in circumstances where the law allows a degree of discretion.

Lord Sumption further raises concerns regarding potential political pressures affecting the judiciary in national security cases. He recounts a conversation with a senior judge of the Hong Kong Court of Appeal, who acknowledged the constraints faced by judges operating within the broader political context, stating: "We cannot conduct a guerilla war against the Chinese state… We are pressed by the West to uphold Western values as if we were a democracy, but what can the West offer Hong Kong except moral lectures and second passports?"

The article reflects the perspective of a former senior member of Hong Kong's highest court and provides insight into perceived institutional and systemic pressures within the judiciary.

Relevance:

This document is relevant as it provides a first-hand account and expert opinion from a former judge of the Hong Kong Court of Final Appeal regarding the operation of the legal system under the National Security Law. His observations are pertinent to assessing judicial independence, the impact of political context on adjudication, and the broader integrity of the legal system.

In the context of international human rights law, this evidence may be used to support concerns regarding the independence and impartiality of the judiciary, particularly in politically sensitive cases. It is relevant to the assessment of fair trial guarantees under Article 14 of the International Covenant on Civil and Political Rights, including whether courts are able to operate free from undue external influence.

Hyperlink:
https://www.newstatesman.com/international-politics/2025/12/the-west-has-abandoned-hong-kong-to-totalitarianism

EXHIBIT D10

Title:

‘Becoming a Totalitarian State’: UK Judge on Why He Quit Hong Kong Court

Source:

BBC News (International Media Outlet)

Date:

11 June 2024

Document Type:

News Report

Summary:

This report covers the resignation of Lord Jonathan Sumption, a Non-Permanent Judge of the Hong Kong Court of Final Appeal, in June 2024. In explaining his decision, Lord Sumption publicly stated that Hong Kong was “becoming a totalitarian state” and expressed concerns about the erosion of political freedoms and the rule of law following the implementation of the National Security Law. The report situated his resignation within broader developments affecting Hong Kong’s legal and political environment, including increasing restrictions on dissent and changes to the judicial system.

Relevance:

This document provides contemporaneous reporting of the resignation and public statements of a former senior judge of Hong Kong’s highest court. His characterization of Hong Kong as “becoming a totalitarian state” is relevant to assessing the broader legal and institutional context in which national security cases are prosecuted and adjudicated.

In the context of international human rights law, this evidence supports concerns regarding the independence of the judiciary, the protection of fundamental freedoms, and the integrity of the rule of law. It is particularly relevant to the assessment of fair trial guarantees under Article 14 of the International Covenant on Civil and Political Rights, as well as the broader environment in which judicial decision-making occurs.

Hyperlink:

http://www.bbc.com/news/articles/c722094n135o

EXHIBIT D11

Title:

HKSAR Government strongly disagrees with opinions expressed by Lord Sumption

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

11 June 2024

Document Type:

Government Statement

Summary:

This press release issued by the Hong Kong Special Administrative Region (HKSAR) Government responds to public statements made by Lord Jonathan Sumption following his resignation from the Hong Kong Court of Final Appeal. The Government strongly rejects his characterization of Hong Kong's legal system and political environment, asserting that the rule of law remains robust and that the judiciary continues to exercise its powers independently. The statement emphasizes that the National Security Law is applied strictly in accordance with legal principles and safeguards, and reiterates the Government's position that judicial decisions are made free from political interference.

Relevance:

This document is relevant as it sets out the official position of the HKSAR Government in response to criticisms raised by a former senior judge *(see EXHIBITS D9–D10)*. It provides important contextual balance by demonstrating how the authorities characterize the operation of the legal system and the National Security Law.

In legal analysis, this statement may be used to contrast official assurances of judicial independence with external and expert concerns regarding the same. It is therefore relevant to

assessing the credibility of competing narratives concerning the rule of law, judicial independence, and fair trial guarantees under Article 14 of the International Covenant on Civil and Political Rights.

Hyperlink:
https://www.info.gov.hk/gia/general/202406/11/P2024061100028.htm

Internet Archive Wayback Machine (29 October 2026):

https://web.archive.org/web/20261029064315/https://www.info.gov.hk/gia/general/202406/11/P2024061100028.htm

EXHIBIT D12

Title:

Interview with Baroness Brenda Marjorie Hale of the United Kingdom; Entretien avec la Baronne Brenda Marjorie Hale du Royaume-Uni; 專訪英國最高法院前院長Brenda Marjorie Hale of Richmond女爵; Entrevista con la Baronesa Brenda Marjorie Hale del Reino Unido

Source:

Constitutional Studies

Date:

30 June 2025

Document Type:

Academic Interview with Former Government Officials

Summary:

This academic interview features Baroness Brenda Marjorie Hale, former President of the United Kingdom Supreme Court and former Non-Permanent Judge of the Hong Kong Court of Final Appeal. In the interview, she reflects on her resignation from the Hong Kong Court of Final Appeal in 2021 and discusses subsequent developments in Hong Kong's legal system. Baroness Hale expresses concern regarding the impact of the National Security Law, stating that it has "taken over the Basic Law." She also conveys sympathy for individuals prosecuted under the National Security Law, including media proprietor Jimmy Lai, and comments on the broader implications for rights and legal protections in Hong Kong. The interview provides a retrospective assessment from a former senior judicial figure with direct experience in Hong Kong's highest court.

Relevance:

This document is relevant as it provides expert opinion from a highly authoritative former judicial figure regarding the structural impact of the National Security Law on Hong Kong's constitutional order. Her statement that the National Security Law has "taken over the Basic Law" is pertinent to assessing the relationship between national security legislation and previously established legal protections.

In the context of international human rights law, this evidence is relevant to evaluating the continued effectiveness of constitutional safeguards, judicial independence, and fair trial guarantees. It supports concerns that the legal framework governing national security cases may override or significantly constrain protections ordinarily afforded under the Basic Law, with implications for rights protected under the International Covenant on Civil and Political Rights.

Hyperlink:
https://constitutionalstudies-ojs-utexas.tdl.org/cs/article/view/130

EXHIBIT D13

Title:

HKSAR Government spokesman: statement on HKNSL by former Court of Final Appeal non-permanent judge Brenda Hale far from truth

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

4 July 2025

Document Type:

Government Statement

Summary:

This press release issued by the Hong Kong Special Administrative Region (HKSAR) Government responds to public remarks made by Baroness Brenda Hale, former Non-Permanent Judge of the Hong Kong Court of Final Appeal. The Government states that her comments regarding the National Security Law are "far from the truth" and rejects her characterization of its impact on Hong Kong's legal system. The statement reiterates the Government's position that the National Security Law operates within the framework of the Basic Law, upholds the rule of law, and preserves judicial independence. It further emphasizes that rights and freedoms are protected in accordance with the law and denies that the National Security Law undermines constitutional safeguards.

Relevance:

This document is relevant as it provides the official response of the HKSAR Government to criticisms raised by a former senior judicial figure *(see EXHIBIT D12)*. It demonstrates the Government's consistent position that the National Security Law is compatible with the Basic Law and does not compromise judicial independence or fundamental rights.

In legal analysis, this statement is important for presenting the State's counter-narrative and allows for a balanced assessment of competing claims regarding the operation of the National

Security Law. It is particularly relevant when evaluating issues of judicial independence, constitutional integrity, and fair trial guarantees under international human rights law, including Article 14 of the International Covenant on Civil and Political Rights.

Hyperlink:
https://www.info.gov.hk/gia/general/202507/04/P2025070400780.htm

Internet Archive Wayback Machine (29 October 2026):

https://web.archive.org/web/20261029064534/https://www.info.gov.hk/gia/general/202507/04/P2025070400780.htm

EXHIBIT D14

Title:

Former Judges

Source:

Hong Kong Court of Final Appeal

Document Type:

Hong Kong Government Record

Hyperlink:

https://www.hkcfa.hk/en/about/who/judges/former/index_id_85.html

EXHIBIT D15

Title:

HKSAR Government strongly objects to unfair criticisms from UN Human Rights Committee

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

27 July 2022

Document Type:

Government Statement

Summary:

This press release issued by the Hong Kong Special Administrative Region (HKSAR) Government responds to concluding observations made by the United Nations Human Rights Committee under the International Covenant on Civil and Political Rights (ICCPR). The Government expresses strong objection to what it characterizes as "unfair criticisms," rejecting concerns raised by the Committee regarding the National Security Law and the human rights situation in Hong Kong. The statement reiterates the Government's position that rights and freedoms are protected in accordance with the law and asserts that the National Security Law is necessary and consistent with international standards. It also criticizes what it describes as external interference in Hong Kong's internal affairs.

Relevance:

This document is relevant as it evidences the HKSAR Government's repeated and emphatic rejection of findings and recommendations made by United Nations treaty bodies, including those under the ICCPR. Such responses are pertinent to assessing the State's level of engagement with international human rights oversight mechanisms.

In legal analysis, this material may support arguments that the Government has consistently dismissed or resisted international scrutiny, which may be relevant to evaluating the

effectiveness of safeguards under the ICCPR and the implementation of treaty obligations. It also provides context for assessing the divergence between international human rights assessments and the State's official position.

Hyperlink:
https://www.info.gov.hk/gia/general/202207/27/P2022072700588.htm

Internet Archive Wayback Machine (29 October 2026):

https://web.archive.org/web/20261029064738/https://www.info.gov.hk/gia/general/202207/27/P2022072700588.htm

EXHIBIT E1

Title:

Hong Kong judge finds five guilty over children's books

Source:

BBC News (International Media Outlet)

Date:

7 September 2022

Document Type:

News Report

Summary:

This report concerns the "Sheep Village" case, in which individuals were convicted and sentenced to imprisonment for publishing children's books that used allegorical storytelling to criticise the Hong Kong government. The court found that the books amounted to seditious publications, despite their use of metaphor and non-explicit political expression.

Relevance:

This report is relevant as evidence of the criminalisation of expressive conduct and the restriction of freedom of expression through judicial processes. It illustrates how courts have applied broadly framed offences, such as sedition, to penalise non-violent and symbolic speech, supporting allegations of procedural violations and the use of the judiciary as a tool of repression.

Hyperlink:

https://www.bbc.com/news/world-asia-62821043

EXHIBIT E2

Title:

Hong Kong: Pro-democracy activist Tony Chung jailed under security law

Source:

BBC News (International Media Outlet)

Date:

23 November 2021

Document Type:

News Report

Summary:

This report concerns the case of pro-democracy activist Tony Chung, who was sentenced to three years and seven months' imprisonment under the National Security Law at the age of 20. The conviction was based on social media posts advocating Hong Kong independence, which were deemed to constitute offences endangering national security.

Relevance:

This report is relevant as evidence of the criminalisation of political expression, particularly through online speech. It demonstrates the use of broadly defined national security offences to prosecute non-violent conduct, raising concerns regarding violations of due process and freedom of expression. It further supports allegations of judicial practices being employed to suppress dissent, particularly against young individuals.

Hyperlink:

https://www.bbc.com/news/world-asia-china-59390728

EXHIBIT E3

Title:

Hong Kong 47: Who are the campaigners jailed in controversial national security trial?

Source:

BBC News (International Media Outlet)

Date:

19 November 2024

Document Type:

News Report

Summary:

This report concerns the “Hong Kong 47” case, in which numerous opposition figures and pro-democracy campaigners were prosecuted and sentenced under the National Security Law for their involvement in organising and participating in unofficial primary elections. These activities were aimed at selecting candidates for local legislative elections but were deemed by authorities to constitute subversion.

Relevance:

This report is relevant as evidence of the criminalisation of political participation and opposition activity. It demonstrates how individuals were prosecuted and imprisoned for engaging in electoral processes, supporting allegations of violations of due process and the suppression of political rights. It further illustrates the use of judicial mechanisms to target opposition leaders and dismantle organised political dissent.

Hyperlink:

https://www.bbc.com/news/articles/c722wq7rgqgo

EXHIBIT E4

Title:

Three arrested in Hong Kong for ‘insulting’ Chinese anthem at World Cup qualifier

Source:

The Guardian (International Media Outlet)

Date:

7 June 2024

Document Type:

News Report

Summary:

This report concerns the arrest of three individuals in Hong Kong in June 2024 for allegedly “insulting” the Chinese national anthem during a World Cup qualifying match. The individuals were accused of failing to stand during the anthem in a large public venue, and were subsequently subjected to criminal enforcement measures.

Relevance:

This report is relevant as evidence of the extensive reach of national security-related enforcement into minor, non-violent conduct. The targeting of individuals for symbolic acts of non-compliance in a mass public setting supports the inference that enforcement measures extend beyond maintaining public order to regulating expressions of political loyalty. This contributes to the assessment of a broader pattern of repression directed at civilian behaviour, and is pertinent to determining whether such conduct forms part of a widespread or systematic course of action under Article 7 of the Rome Statute.

Hyperlink:

https://www.theguardian.com/world/article/2024/jun/07/three-arrested-in-hong-kong-for-insulting-chinese-anthem-at-world-cup-qualifier

EXHIBIT E5

Title:

Hong Kong court rejects media tycoon Jimmy Lai's bid to challenge foreign lawyer ban at top court

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

5 July 2024

Document Type:

News Report

Summary:

This report covers a decision by the Hong Kong Court of Appeal rejecting an application by media proprietor Jimmy Lai to challenge restrictions on the admission of foreign counsel in national security proceedings. The case concerned Lai's attempt to engage overseas legal representation in his defence, which had been opposed by the authorities on national security grounds. The court's decision follows earlier interventions by the Standing Committee of the National People's Congress (NPCSC), which issued an interpretation of the National Security Law addressing the participation of foreign lawyers in such cases. As a result, the ability of defendants in national security cases to instruct overseas counsel is subject to additional restrictions and approval mechanisms.

Relevance:

This document is relevant as it illustrates limitations placed on a defendant's ability to choose legal representation in national security proceedings. Restrictions on access to counsel of choice–particularly in complex and high-stakes cases–are directly pertinent to fair trial guarantees.

In the context of international human rights law, this evidence supports concerns regarding equality of arms and the right to adequate legal representation under Article 14 of the International Covenant on Civil and Political Rights. It may also be cited as an example of

how institutional and legal developments associated with the National Security Law affect procedural safeguards available to defendants.

Hyperlink:

https://hongkongfp.com/2024/07/05/hong-kong-court-rejects-media-tycoon-jimmy-lais-bid-to-challenge-foreign-lawyer-ban-at-top-court/

EXHIBIT E6

Title:

【黎智英案】控方指文章煽動　黎欲反駁　法官再三打斷：不容政治言論

(Jimmy Lai Case | Prosecution Says Articles Were Seditious; Lai Attempts to Respond, Judge Repeatedly Interrupts: "No Political Statements Will Be Allowed")

Source:

Radio Free Asia (International Media Outlet)

Date:

24 February 2025

Document Type:

News Report

Summary:

This report describes courtroom exchanges during the trial of media proprietor Jimmy Lai under the National Security Law. According to the report, while giving evidence, Lai was repeatedly interrupted by the presiding judges when attempting to explain the context and intent behind his published writings. The court restricted his responses and directed him to confine his answers, at times limiting him to answer only "agree" or "disagree". The judges also indicated that "political statements" would not be permitted during his testimony.

The report suggests that Lai sought to explain his state of mind and the background to his statements–issues directly relevant to the prosecution's allegations of intent and incitement–but was prevented from elaborating. The prosecution, meanwhile, was permitted to advance its interpretation of his motives and conduct.

Relevance:

This document is relevant as it provides a contemporaneous account of courtroom conduct in a high-profile national security trial, specifically concerning limitations placed on a defendant's ability to give evidence and explain his defence. Restrictions on a defendant's

ability to present contextual explanations of intent may directly affect the fairness of proceedings.

In the context of international human rights law, this evidence is pertinent to the assessment of fair trial guarantees under Article 14 of the International Covenant on Civil and Political Rights, including the right to examine witnesses, to present a defence, and to enjoy equality of arms. The reported limitations on testimony and asymmetry in the treatment of the defence and prosecution may be cited as raising concerns regarding whether the proceedings afforded the defendant a genuine opportunity to challenge the case against him.

Hyperlink:
https://www.rfa.org/cantonese/law-justice/2025/02/24/hong-kong-court-jimmy-lai-national-security-law-trial-updates/

EXHIBIT E7

Title:

Family Alarmed over Jimmy Lai's Deteriorating Health as He Languishes in Solitary Confinement in Hong Kong

Source:

The Guardian (International Media Outlet)

Date:

3 December 2025

Document Type:

News Report

Summary:

This report describes concerns raised by the family of media proprietor Jimmy Lai regarding his physical condition while in custody in Hong Kong. According to the report, Lai has been held in conditions of prolonged solitary confinement prior to the conclusion of legal proceedings. His family reported significant deterioration in his health, including substantial weight loss and visible physical decline. Allegations cited in the report include worsening dental condition and other symptoms affecting his overall well-being. The report situated these concerns within broader scrutiny of detention conditions for individuals held under the National Security Law.

Relevance:

This document is relevant as it provides evidence relating to the conditions of detention and the physical health of a detainee held for an extended period, including under solitary confinement. Such conditions are directly pertinent to the treatment of persons deprived of liberty and the potential impact on their physical and mental health.

In the context of international human rights law, this evidence is relevant to the assessment of whether detention conditions meet minimum standards of humane treatment, including under Articles 7 and 10 of the International Covenant on Civil and Political Rights. Prolonged solitary confinement and reported deterioration in health may also be cited in evaluating

whether the conditions of detention are compatible with the prohibition of inhuman or degrading treatment.

Hyperlink:

http://www.theguardian.com/world/2025/dec/03/jimmy-lai-health-concern-hong-kong-prison

EXHIBIT E8

Title:
蘋果案｜黎智英及親友未交任何求情信 辯方指懲教署稱黎獄中體重上升資料有誤

(Apple Daily Case | Jimmy Lai and Relatives Submit No Mitigation Letters. Defense Says Correctional Services' Claim of Weight Gain in Prison Is Incorrect)

Source:
追光者 PULSE HK (Hong Kong Diaspora Media Outlet)

Date:
12 January 2026

Document Type:
News Report

Summary:
This report describes exchanges during court proceedings in the trial of Jimmy Lai, focusing on disputes regarding his physical condition in custody and the treatment of related submissions by the defence. According to the report, defence counsel raised concerns about Lai's visible weight loss during his detention, noting a significant physical decline observable in court. This was raised in response to claims by the Correctional Services Department that Lai had gained approximately 6 kilograms during his time in custody. The prosecution, in turn, asserted that any weight change was minimal (approximately 0.8 kilograms) and described his condition as unremarkable.

The report further details the court's response to defence submissions regarding Lai's health and conditions of detention. It states that the judges dismissed concerns relating to his health and solitary confinement. In the course of these exchanges, the report attributes several remarks to the bench, including comments suggesting that Lai's medical conditions were common among elderly individuals, and that weight loss "could be a good thing or a bad thing," with an observation that some individuals might wish to lose weight. The report also states that the court expressed confidence in the prosecution's account of Lai's condition.

With respect to solitary confinement, the defence argued that such conditions imposed additional hardship and affected Lai's well-being, including claims that he was asked to sign documents without full opportunity to review them. The report indicates that the court questioned whether the conditions amounted to hardship, with an analogy drawn comparing the situation to choosing between different types of hotel accommodation. While acknowledging that solitary confinement could limit social interaction, the court was reported as taking the view that it did not constitute additional punishment.

Relevance:

This document is relevant as it provides a detailed account of courtroom conduct and judicial responses to defence submissions concerning a defendant's health and conditions of detention. The reported remarks and treatment of these issues may be pertinent to assessing the manner in which the court engaged with defence arguments relating to physical well-being and custodial conditions.

Hyperlink:

https://pulsehknews.com/20260112courtjl

EXHIBIT E9(a) & (b)

E9(a):

A picture of Jimmy Lai being escorted in custody in December 2020.



Source:

The Guardian (International Media Outlet)

Date:

December 2020

Document Type:

Photo

Summary:

This photograph, published by The Guardian, depicts Jimmy Lai being escorted in custody following his remand in December 2020. In the image, Lai appears restrained with a chain around his waist while being transported to court. The photograph provides a contemporaneous visual record of his physical condition and treatment at the early stage of his detention.

Relevance:

This image serves as a baseline reference for Jimmy Lai's physical condition at the beginning of his detention period. It may be used for comparative purposes in assessing subsequent

changes in his physical appearance and overall health during prolonged detention. It is also relevant to the conditions under which he was transported and handled while in custody.

Hyperlink:

https://www.theguardian.com/world/2020/dec/12/hong-kong-democracy-campaigner-jimmy-lai-denied-bail

E9(b):

A picture of Jimmy Lai while in custody in August 2023.



Source: AP News (International Media Outlet)
Date: August 2023

Document Type:
Photo

Summary:
This set of photographs, published by AP News, depicts Jimmy Lai while in custody in August 2023. According to accompanying reporting, Lai was held under conditions of prolonged solitary confinement, reportedly confined for approximately 23 hours per day with

limited time for solitary exercise. The images show Lai appearing significantly thinner compared to earlier photographs from 2020.

Relevance:

These images are relevant as visual evidence of changes in Jimmy Lai's physical condition during his detention. When compared with earlier photographs *(see EXHIBIT E9(a))*, they may support observations of weight loss and physical deterioration over time. The reported context of prolonged solitary confinement is also pertinent to assessing detention conditions and their potential impact on health, in light of international human rights standards concerning the treatment of detainees.

Hyperlink:

https://apnews.com/article/hong-kong-prodemocracy-china-activist-publisher-jimmy-lai-8e03b4415b10754255487d0b0f7b0097

EXHIBIT E10

Title:

HKSAR v LAI CHEE YING 1st Defendant (D1), APPLE DAILY LIMITED 2nd Defendant (D2), APPLE DAILY PRINTING LIMITED 3rd Defendant (D3) & AD INTERNET LIMITED 4th Defendant (D4) – Reasons for Verdict and Reasons for Sentence

Reference Number:

(REASONS FOR VERDICT) HCCC 51/2022 [2025] HKCFI 6291

(REASONS FOR SENTENCE) HCCC 51/2022 [2026] HKCFI 854

Source:
High Court of Hong Kong

Date:
15 December 2025, 9 February 2026

Document Type:
Court Verdict / Judgement

Summary:
This judgment concerns proceedings against Jimmy Lai under the National Security Law. The court examined, inter alia, Lai's interactions with foreign political figures prior to the promulgation of the National Security Law, including meetings with United States politicians and public advocacy concerning the human rights situation in Hong Kong.

In its reasoning, the court found that Lai's conduct, including his public statements and engagement with foreign actors, could amount to a form of "collusion with foreign forces." The court interpreted certain expressions of criticism of the National Security Law and calls for international attention as implicitly amounting to requests for sanctions or hostile actions.

At the same time, the judgment indicates that there was no evidence of financial transactions between Lai and foreign political actors or media organizations. The court emphasized that the conviction was not based on the mere holding of political opinions, but rather on what it characterized as the act of putting such views "into action."

The judgment does not address or provide relief in relation to Lai's conditions of detention, including issues concerning solitary confinement or his physical well-being.

Relevance:

This document is directly relevant as it provides the court's reasoning in applying the offence of "collusion with foreign forces," including the interpretation of political speech, international advocacy, and engagement with foreign actors. The court's approach to construing criticism and calls for international attention as implicit requests for sanctions may be pertinent to assessing the scope and foreseeability of the offence.

In the context of international human rights law, this evidence is relevant to the assessment of freedom of expression and fair trial guarantees under the International Covenant on Civil and Political Rights, including Articles 14 and 19. The distinction drawn by the court between holding opinions and "putting them into action" may be examined in light of whether the conduct in question falls within protected expression or lawful advocacy.

The absence of findings or remedies concerning detention conditions may also be relevant when considered alongside evidence relating to prolonged detention and alleged deterioration in health *(see EXHIBITS E7–E9)*, particularly in assessing whether the proceedings adequately engaged with issues affecting the defendant's treatment and well-being.

Hyperlink:

(REASONS FOR VERDICT)

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=175422&TP=RV

(REASONS FOR SENTENCE)

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=177110

EXHIBIT E11

Title:

Justice upheld in Court of First Instance's sentence regarding Lai Chee-ying case

Source:

HKSAR Government

Date:

9 February 2026

Document Type:

Government Statement

Summary:

This exhibit covers public statements made by the Chief Executive of the Hong Kong Special Administrative Region, John Lee Ka-chiu, following the sentencing of Jimmy Lai to 20 years' imprisonment by the High Court of Hong Kong. According to the exhibit, the Chief Executive described the offences as extremely serious and stated that the sentence was "deeply gratifying to the public."

The exhibit further refers to statements by a government spokesperson who characterized Lai as the "mastermind" of the offences and asserted that the severity of the sentence was justified, including allegations of collusion with foreign forces. These statements were made in close temporal proximity to the sentencing decision and reflect the official position of the executive authorities regarding both the conviction and the punishment imposed.

The exhibit also addresses the Government's response to concerns regarding Lai's detention conditions. A spokesperson denied that Lai was subject to solitary confinement, describing the arrangement instead as a cessation of association with other inmates, allegedly implemented in accordance with applicable procedures and with consideration of relevant factors, including the detainee's preferences. The Government further asserted that detention conditions remained safe, humane, and consistent with applicable standards.

Relevance:

This document is relevant as it evidences statements made at the highest level of the executive immediately following sentencing in a politically sensitive case. The characterization of the sentence as "deeply gratifying to the public," together with strongly condemnatory language directed at the defendant, may be pertinent to assessing the broader environment in which judicial proceedings take place.

In the context of international human rights law, such statements may be relevant to evaluating the appearance of judicial independence and the separation between the executive and the judiciary under Article 14 of the International Covenant on Civil and Political Rights. Public endorsement of the severity of a sentence by senior officials may raise concerns regarding whether the administration of justice is perceived as independent and impartial.

The document is also relevant to assessing competing accounts regarding detention conditions. While the Government asserts that the defendant's conditions do not constitute solitary confinement and are consistent with legal standards, this position may be contrasted with other evidence *(see EXHIBITS E7–E9)* indicating prolonged isolation and deterioration in health. This divergence is pertinent to evaluating whether detention conditions meet international standards, including those reflected in the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules).

Finally, insofar as the Government attributes aspects of the detention regime to the detainee's own preferences, this raises issues regarding the validity of consent in custodial settings. In legal analysis, it may be relevant to consider whether any such consent was freely given, and whether it can justify continued conditions of prolonged isolation, particularly in light of the foreseeable and cumulative impact on physical and mental health.

Hyperlink:
https://www.info.gov.hk/gia/general/202602/09/P2026020900400.htm

Internet Archive Wayback Machine (23 August 2026):

https://web.archive.org/web/20260823222931/https://www.info.gov.hk/gia/general/202602/09/P2026020900400.htm

EXHIBIT E12

Title:
HKSAR v [D5] NG Gordon Ching-hang (吳政亨), [D8] CHENG Tat-hung (鄭達鴻), [D10] YEUNG Suet-ying Clarisse (楊雪盈), [D11] PANG Cheuk-kei (彭卓棋), [D14] HO Kai-ming Kalvin (何啟明), [D16] LAU Wai-chung (劉偉聰), [D17] WONG Pik-wan (黃碧雲), [D24] SZE Tak-loy (施德來), [D33] HO Kwai-lam (何桂藍), [D36] CHAN Chi-chuen Raymond (陳志全), [D37] CHOW Ka-shing (鄒家成), [D38] LAM Cheuk-ting (林卓廷), [D41] LEUNG Kwok-hung (梁國雄), [D43] OR Yiu-lam Ricky (柯耀林), [D46] LEE Yue-shun (李予信) & [D47] YU Wai-ming Winnie (余慧明) – Reasons for Verdict

Reference Number:

HCCC 69/2022 [2024] HKCFI 1468

Source:
High Court of Hong Kong

Date:
30 May 2024

Document Type:
Court Verdict

Summary:

The High Court judgment in HCCC 69/2022 ([2024] HKCFI 1468) concerns the prosecution of 47 pro-democracy activists under the Hong Kong National Security Law (HKNSL) for "conspiracy to commit subversion." The defendants participated in an unofficial primary election in July 2020 aimed at coordinating electoral strategy to obtain a legislative majority in the Legislative Council (LegCo).

The prosecution argued that, if elected, the defendants intended to use their constitutional power to veto government budgets indiscriminately, thereby forcing the resignation of the Chief Executive under the Basic Law. The Court accepted that this coordinated plan

constituted a conspiracy to subvert state power under the HKNSL, even though the conduct involved participation in electoral processes and the prospective use of legislative powers.

Relevance:

This exhibit demonstrates the criminalization of ordinary political participation and opposition activity under the HKNSL. It shows that actions such as organizing or participating in primary elections, and planning to exercise legislative veto powers expressly provided under the Basic Law, were recharacterized as threats to national security.

The judgment illustrates how broadly defined "subversion" offenses are used to prosecute peaceful political coordination, thereby depriving individuals of their rights to political participation and due process. It further evidences the use of judicial mechanisms to legitimize politically motivated prosecutions, supporting the argument that the legal system is being instrumentalized to suppress dissent in a systematic manner.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=160373&TP=RV

EXHIBIT E13

Title:

AP PHOTOS: Hong Kong's June 4 candlelit vigil over the years

Source:

AP News (International Media Outlet)

Date:

4 June 2021

Document Type:

News Report

Summary:

This report documents the long-standing annual June 4 candlelight vigil in Hong Kong, organized by the Hong Kong Alliance in Support of Patriotic Democratic Movements of China since 1989. The vigil, held at Victoria Park, commemorated the victims of the Tiananmen Square Massacre and consistently drew thousands of participants each year.

The report highlights the significance of the event as a peaceful public assembly and a symbol of collective remembrance and political expression in Hong Kong. It also notes the broader context in which such commemorative activities have come under increasing restriction, with the Hong Kong Alliance and its members later charged under the Hong Kong National Security Law.

Relevance:

This exhibit demonstrates the suppression of peaceful assembly and collective remembrance activities under the HKNSL. It shows that long-standing, non-violent commemorative events–previously tolerated for decades–have been curtailed and criminalized following the introduction of national security legislation.

The inclusion of charges against the Hong Kong Alliance further illustrates how civil society organizations engaged in symbolic and historical expression are targeted under broadly defined national security offenses. This supports the argument that the legal framework is being used to dismantle organized civil society and restrict fundamental freedoms, including freedom of assembly and expression, in a systematic manner.

Hyperlink:

https://apnews.com/article/hong-kong-health-coronavirus-pandemic-532a6749a9c98ca80fd848341e3e795f

EXHIBIT E14

Title:

Hong Kong begins national security trial of Tiananmen vigil group

Source:

Reuters (International Media Outlet)

Date:

21 January 2026

Document Type:

News Report

Summary:

This report covers the commencement of the national security trial against key members of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China. Prominent defendants, including Lee Cheuk-yan, Albert Ho, and Chow Hang-tung, were charged with "inciting subversion of state power" under the Hong Kong National Security Law.

The report highlights that the defendants had been held in pre-trial detention for over 1,500 days after being repeatedly denied bail. The prosecution argued that the group's advocacy for "ending one-party rule" constituted incitement to subvert state power, on the basis that one-party rule by the Chinese Communist Party is embedded in the Chinese constitutional framework.

Relevance:

This exhibit demonstrates the criminalization of political speech and advocacy under the HKNSL, particularly expressions calling for democratic reform. It shows that peaceful political slogans – such as "ending one-party rule" – are recharacterized as threats to national security, thereby expanding the scope of criminal liability to include core political expression.

The prolonged pre-trial detention of the defendants, exceeding 1,500 days, further evidences serious due process concerns, including the denial of bail and the use of extended detention as a punitive measure prior to conviction.

Together, these elements support the argument that the legal system is being used to systematically suppress political opposition and civil society leadership, reinforcing patterns of persecution and deprivation of fundamental rights relevant to the ICC's assessment.

Hyperlink:

https://www.reuters.com/world/china/hong-kong-begins-national-security-trial-tiananmen-vigil-group-2026-01-21/

EXHIBIT E15

Title:
HKSAR v Chow Hang Tung (鄒幸彤) D1, Tang Ngok Kwan (鄧岳君) D2, Tsui Hon Kwong (徐漢光) D5 – Verdict

Reference Number:
WKCC 3633/2021 [2023] HKMagC 2

Source:
West Kowloon Magistrates' Court of Hong Kong

Date:
4 March 2023

Document Type:
Court Verdict

Summary:

This judgment concerns the prosecution of Chow Hang-tung, Tang Ngok-kwan, and Tsui Hon-kwong, members of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China, for failing to comply with a police notice requiring the disclosure of organizational information under the Implementation Rules of the Hong Kong National Security Law (HKNSL).

The Magistrates' Court convicted the three defendants, holding that the prosecution was not required to establish that the Hong Kong Alliance was in fact a "foreign agent." Instead, the Court accepted that the police could act on reasonable grounds to believe that the organization qualified as such. The Court considered the relatively low evidentiary threshold justified by the need for effective prevention and investigation of national security offences.

The Court also permitted the redaction of portions of the police investigation materials on public interest immunity grounds, concluding that the restricted disclosure would not undermine the defendants' right to a fair trial.

Relevance:

This exhibit provides direct judicial evidence of how the national security enforcement framework was interpreted and applied by the Magistrates' Court in 2023. By treating proof of actual "foreign agent" status as unnecessary for conviction, the Court adopted an interpretation that reduced the prosecution's evidentiary burden and expanded the practical scope of police information-gathering powers.

The Court's acceptance of restricted disclosure of investigative materials further illustrates the procedural disadvantages faced by defendants challenging national security investigations. These findings raise concerns regarding the presumption of innocence, access to evidence, and the ability of defendants to contest the factual basis of coercive state measures.

The judgment therefore documents an instance in which the lower court prioritized the operational effectiveness of national security enforcement over procedural protections asserted by civil society defendants. It is relevant to assessing how judicial proceedings could facilitate the exercise of coercive state powers against civil society organizations.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=150992&TP=RV

EXHIBIT E16

Title:

HKSAR v Chow Hang Tung (鄒幸彤) D1, Tang Ngok Kwan (鄧岳君) D2 & Tsui Hon Kwong (徐漢光) D5 – Reasons for Sentence

Reference Number:

WKCC 3633/2021 [2023] HKMagC 4

Source:
West Kowloon Magistrates' Court of Hong Kong

Date:

11 March 2023

Document Type:
Court Judgement

Summary:

This document sets out the sentencing reasons following the convictions of Chow Hang-tung, Tang Ngok-kwan, and Tsui Hon-kwong for failing to comply with a police notice requiring organizational information under the Hong Kong National Security Law framework.

The Court sentenced each defendant to four and a half months' imprisonment, against a statutory maximum of six months. In explaining the sentences, the Court emphasized that punishment for national security-related offences must reflect the law's objective of safeguarding national security and send a clear message that violations would not be tolerated.

The Court explicitly stated that sentencing should be "punitive and sufficiently deterrent" and considered immediate imprisonment generally inevitable. It regarded the defendants' public announcement of their refusal to comply with the police notice as evidence of deliberate non-compliance. The Court also rejected Chow Hang-tung's political rationale as a basis for mitigating her sentence.

Relevance:

This exhibit provides direct judicial evidence of the punitive and deterrent considerations applied in sentencing civil society members prosecuted under the national security enforcement framework.

The Court's emphasis on sending a clear message to society demonstrates how sentencing was expressly linked to reinforcing compliance with national security measures. Its conclusion that immediate imprisonment was generally inevitable, together with its rejection of political justifications for non-compliance as mitigating considerations, illustrates the weight given to deterrence and enforcement objectives.

The sentencing reasons are therefore relevant to examining how criminal punishment was used to discourage resistance to national security information demands and how judicial sentencing could reinforce pressure on civil society actors.

Within a broader assessment of alleged systematic repression, this exhibit helps document the punitive consequences imposed on individuals who challenged state demands for organizational information. It complements *EXHIBIT E15*, which addresses the legal and evidentiary reasoning underlying the original convictions.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=151163&TP=RS

EXHIBIT E17

Title:
HKSAR v Best Pencil (Hong Kong) Limited (D1), CHUNG Pui-kuen (D2) & LAM Shiu-tung (D3) – Reasons for Verdict

Reference Number:

DCCC 265/2022 [2024] HKDC 1430

Source:
District Court of Hong Kong

Date:
29 August 2024

Document Type:
Court Verdict

Summary:

The judgment in *HKSAR v Best Pencil, et al.* (29 August 2024) concerns the prosecution of Chung Pui-kuen and Patrick Lam, former editors of the now-defunct online media outlet Stand News. The defendants were convicted in relation to articles published by the outlet, including interviews with and commentaries by pro-democracy figures.

The Court held that the prosecution was not required to prove that the defendants intended to incite violence or even to cause disaffection against the government. The publications themselves were deemed sufficient to establish liability under the applicable offense, leading to punishment.

Relevance:
This exhibit demonstrates the criminalization of journalistic activity and the suppression of press freedom under Hong Kong's national security framework. It shows that media professionals can be held criminally liable for publishing or facilitating political discourse, even in the absence of intent to incite violence or disorder.

The Court's position that intent to incite violence or disaffection need not be proven represents a significant lowering of mens rea requirements, undermining fundamental criminal law principles and expanding the scope of liability to encompass ordinary journalistic functions.

This supports the argument that legal mechanisms are being systematically used to silence independent media and restrict freedom of expression. It further evidences the broader pattern of repression targeting not only political actors but also those who report on or give voice to dissent, which is relevant to the ICC's assessment of persecution and deprivation of fundamental rights.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=163283&TP=RV

EXHIBIT E18

Title:

HKSAR v LAI Man-ling (D1), YEUNG Yat-yee Melody (D2), NG Hau-yi Sidney(D3), CHAN Yuen-sum Samuel (D4) & FONG Tsz-ho (D5) – Reasons for Verdict

Reference Number:

DCCC 854/2021 [2022] HKDC 981

Source:

District Court of Hong Kong

Date:

7 September 2022

Document Type:

Court Verdict

Summary:

The judgment in *HKSAR v LAI Man-ling, et al.* concerns the prosecution of five speech therapists for producing and distributing a series of illustrated children's books. The books used allegorical storytelling–depicting sheep defending their village from wolves–to portray events related to the 2019 pro-democracy protests.

The Court found that the publications constituted seditious material and concluded that seditious intent could be inferred not only from the textual content but also from the subjective interpretation of the materials. The defendants were convicted and sentenced to imprisonment on this basis.

Relevance:

This exhibit demonstrates the expansive interpretation of "sedition" offenses to encompass creative and educational materials, including children's literature. It shows that symbolic or

allegorical expression can be criminalized, even where no direct incitement to violence is present.

The Court's approach–inferring intent beyond the text itself–illustrates a significant lowering of evidentiary thresholds and broad discretionary power in determining criminal liability. This undermines legal certainty and chills freedom of expression, particularly in educational and cultural contexts.

The prosecution of non-political professionals, such as speech therapists, further indicates that repression extends beyond traditional political actors to ordinary members of civil society. This supports the argument that the legal framework is being used systematically to suppress dissent across multiple sectors, contributing to patterns of persecution relevant to the ICC's assessment.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=147076&TP=RV

EXHIBIT E19

Title:

Case Summary (English Translation) HKSAR v Yuen Ching-ting (袁靜婷) WKCC 2602/2023; [2023] HKMagC 13 (West Kowloon Magistrates' Courts)

Source:

West Kowloon Magistrates' Courts of Hong Kong

Date:

Date of conviction: 26 October 2023

Date of sentence: 3 November 2023

Document Type:

Judiciary Press Summary

Summary:

The case summary of HKSAR v Yuen Ching-ting (WKCC 2602/2023; [2023] HKMagC 13) concerns the conviction and sentencing of Yuen Ching-ting, a 23-year-old student, for publishing online messages deemed seditious. The defendant was arrested upon returning to Hong Kong from Japan, in relation to 13 posts made on Facebook and Instagram between 2018 and 2023.

The court acknowledged that the posts consisted of slogans that did not contain radical language or provoke significant public reaction, and that the defendant's social media accounts had a relatively limited audience. She pleaded guilty; the Court treated her failure to delete the posts after the HKNSL came into force as part of her culpability.

Relevance:

This exhibit demonstrates the retroactive and expansive application of national security and sedition laws to ordinary individuals engaging in low-impact online expression. It shows that even non-violent, non-inciting content with minimal audience reach can result in criminal liability.

The treatment of a failure to delete past online content as part of the defendant's culpability highlights the imposition of ongoing legal obligations on individuals for prior expression, raising serious concerns regarding legality and foreseeability.

This case further illustrates that enforcement is not limited to prominent activists or organizations but extends to ordinary citizens, including students, thereby evidencing the widespread and systematic nature of repression. It supports the argument that fundamental freedoms–particularly freedom of expression–are being severely curtailed through the use of criminal law, relevant to the ICC's assessment of persecution and deprivation of fundamental rights.

Hyperlink:

https://www.hknslannot.gov.hk/en/home/pdf/HKMagC_13_2023_en.pdf

EXHIBIT E20

Title:

Hong Kongers who clapped in court jailed on sedition charges

Source:

AP News (International Media Outlet)

Date:

27 October 2022

Document Type:

News Report

Summary:

This report details the conviction of Garry Pang Moon-yuen, a Christian pastor, who was prosecuted for acts conducted inside a courtroom during proceedings related to the banned June 4 candlelight vigil.

The defendant was found guilty of sedition after clapping in support of the accused during the trial. The act, though non-violent and symbolic, was treated by authorities as a criminal offense under sedition laws, resulting in imprisonment.

Relevance:

This exhibit demonstrates the criminalization of minimal, non-violent expressions of support within judicial settings. It shows that even symbolic gestures–such as clapping in a courtroom–can be construed as seditious conduct, significantly expanding the scope of criminal liability.

The case highlights the extent to which freedom of expression is restricted, including within courtrooms where public participation is ordinarily protected. It further illustrates the use of sedition laws to penalize expressions of solidarity with defendants, contributing to a chilling effect on public engagement with judicial processes.

This supports the argument that repression extends beyond formal political activity to encompass everyday acts of expression, reinforcing patterns of systematic suppression of dissent relevant to the ICC's assessment.

Hyperlink:

https://apnews.com/article/hong-kong-government-and-politics-5268cf581cd78da5bd8d766d5c249c05

EXHIBIT E21

Title:

Hong Kong university removes Tiananmen massacre statue

Source:

NPR News (International Media Outlet)

Date:

23 December 2021

Document Type:

News Report

Summary:

This report covers the removal of the "Pillar of Shame," a sculpture created by Jens Galschiøt commemorating the victims of the 1989 Tiananmen Square Massacre. The statue had been displayed at The University of Hong Kong since June 1997, symbolizing public remembrance of the event.

Despite its long-standing presence, the sculpture was removed by the university authorities. The report notes that this occurred even though the artist had offered to retrieve and relocate the work, highlighting the abrupt and controversial nature of its removal.

Relevance:

This exhibit demonstrates the erasure of historical memory and suppression of symbolic expression related to politically sensitive events. The removal of a long-standing public memorial reflects a broader effort to eliminate spaces and symbols associated with dissent and collective remembrance.

It supports the argument that repression extends beyond legal prosecutions to include cultural and institutional measures aimed at reshaping public discourse and historical narrative. The

targeting of memorials linked to the Tiananmen Square Massacre further indicates a systematic effort to suppress politically sensitive history and identity.

This contributes to the overall pattern of restricting freedom of expression and cultural rights, reinforcing claims of widespread and systematic suppression relevant to the ICC's assessment.

Hyperlink:

https://www.npr.org/2021/12/23/1067163101/hong-kong-university-removes-tiananmen-massacre-statue

EXHIBIT E22

Title:

Hong Kong deports mainland Chinese student after she served 6-months jail over plan to display Tiananmen banner

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

13 October 2023

Document Type:

News Report

Summary:

This report details the case of Zeng Yuxuan, a mainland Chinese student who was arrested and prosecuted for planning to display a banner commemorating the Tiananmen Square Massacre. The planned banner referenced the "Pillar of Shame," a well-known memorial symbol.

Although the act was never carried out, the defendant was convicted and sentenced to six months' imprisonment in September 2023. Following completion of her sentence, she was deported from Hong Kong to mainland China.

Relevance:

This exhibit demonstrates the criminalization of mere intent to engage in peaceful expression, even where no act has been executed. It shows that symbolic and commemorative activities–particularly those relating to politically sensitive historical events–are treated as offenses under the prevailing legal framework.

The imposition of imprisonment followed by deportation further illustrates the use of additional punitive measures against individuals, including non-residents, thereby amplifying the consequences of political expression.

This case supports the argument that repression extends to anticipatory conduct and symbolic acts, contributing to a chilling effect on freedom of expression and assembly. It also highlights the transboundary dimension of enforcement, reinforcing patterns of systematic suppression relevant to the ICC's assessment.

Hyperlink:

https://hongkongfp.com/2023/10/13/mainland-chinese-student-deported-from-hong-kong-after-serving-6-month-jail-term-over-plan-to-display-tiananmen-banner/

EXHIBIT E23

Title:

Sedition law: 9 months jail for elderly Hong Kong activist who planned to protest 2022 Beijing Olympics

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

12 July 2022

Document Type:

News Report

Summary:

This report covers the conviction of veteran activist Koo Sze-yiu, who, despite suffering from terminal cancer and being in his mid-70s, was imprisoned for planning a symbolic protest using a coffin with political slogans.

Relevance:

This exhibit highlights the deprivation of freedom of expression affecting vulnerable and elderly individuals, demonstrating the severity of enforcement of sedition laws against non-violent political acts.

Hyperlink:

https://hongkongfp.com/2022/07/12/breaking-elderly-hong-kong-activist-convicted-under-sedition-law-over-plan-to-protest-2022-beijing-olympics/

EXHIBIT E24

Title:

‘I already miss Hong Kong’: Democracy activist Tony Chung flees to the UK

Source:

The Guardian (International Media Outlet)

Date:

29 December 2023

Document Type:

News Report

Summary:

This report details the case of pro-democracy activist Tony Chung, who was arrested under the charge of “secession” pursuant to the Hong Kong National Security Law at the age of 19. Following his release in June 2023 from prison, Chung was subjected to restrictive conditions, including prohibitions on speaking publicly about his conviction and on expressing or disseminating any content that could be perceived as supporting or promoting acts deemed to endanger national security. The report further notes that, due to these ongoing constraints and fears of re-arrest, Chung fled Hong Kong and sought refuge in the United Kingdom.

Relevance:

This exhibit demonstrates the continuing coercive control exercised over political prisoners even after release, including severe restrictions on freedom of expression. It is relevant to establishing a pattern of post-detention repression and intimidation, which extends punitive measures beyond imprisonment. Such restrictions support the argument that individuals convicted under the National Security Law remain subject to ongoing persecution on political grounds, contributing to a broader framework of systematic suppression of dissent. This evidence is pertinent to the characterization of such conduct as persecution under Article 7 of the Rome Statute, particularly when considered alongside other cases involving similar post-release constraints and forced exile.

Hyperlink:

https://www.theguardian.com/world/2023/dec/29/i-already-miss-hong-kong-democracy-activist-tony-chung-on-fleeing-to-the-uk

EXHIBIT E25

Title:

Hong Kong activist flees to UK citing ‘stringent surveillance’ by national security police following his prison release

Source:

CNN (International Media Outlet)

Date:

29 December 2023

Document Type:

News Report

Summary:

This report details the post-release conditions imposed on pro-democracy activist Tony Chung following his imprisonment under the Hong Kong National Security Law. After his release, Chung remained subject to stringent surveillance by national security police. He was required to attend regular reporting sessions every few weeks, during which authorities interrogated him extensively about his daily activities, personal associations, and private communications. He was also unable to take up employment without prior approval from authorities. The report further indicates that, in light of his financial hardship, authorities offered him monetary incentives to act as an informant. Facing continued monitoring and coercion, Chung ultimately fled Hong Kong and sought asylum in the United Kingdom.

Relevance:

This exhibit provides evidence of ongoing coercive control, surveillance, and intimidation exercised by state authorities after a detainee’s release, demonstrating that punitive measures extend beyond formal imprisonment. The imposition of regular interrogations, restrictions on employment, and attempts to recruit the individual as an informant illustrate a system of continuous monitoring and coercion targeting political dissidents. Such conduct is relevant to establishing persecution on political grounds under Article 7 of the Rome Statute, as well as demonstrating elements of other inhumane acts, including severe deprivation of fundamental rights such as privacy, freedom of association, and the right to work. When considered

alongside similar cases, this evidence supports the existence of a systematic practice of post-release repression forming part of a broader state policy.

Hyperlink:

https://www.cnn.com/2023/12/29/asia/hong-kong-tony-chung-asylum-uk-intl-hnk

EXHIBIT E26

Title:
23條首執行 國安囚犯未提早獲釋 倘按過往行為良好減刑1/3 二代美國隊長可出獄

(Article 23 Sees First Enforcement: National Security Prisoner Not Granted Early Release Under Previous One-Third Sentence Reduction for Good Behaviour, "Second-Generation Captain America" Could Have Been Freed)

Source:
明報 Ming Pao (Hong Kong Local Media Outlet)

Date:
26 March 2024

Document Type:
News Report

Summary:

This report examines the first application of Article 23-related measures affecting prisoners convicted of national security offences in Hong Kong. It highlights that such prisoners are no longer eligible for the standard one-third sentence reduction for good behaviour that is ordinarily granted to other inmates. Instead, they must satisfy an additional requirement of demonstrating that they will "not be detrimental to national security" in order to be considered for early release. The report further notes that this requirement has been applied retrospectively, affecting individuals already sentenced under the previous legal framework. As a result, prisoners who would otherwise have qualified for early release – such as the activist known as "Second-Generation Captain America" – remain incarcerated.

Relevance:
This exhibit demonstrates the differential and discriminatory treatment of individuals convicted of national security offences, including the denial of sentence reductions routinely available to other prisoners. The imposition of vague and subjective criteria–such as proving one will not endanger national security–introduces arbitrary decision-making and effectively prolongs detention. The retrospective application of these measures further underscores a departure from fundamental principles of legality and non-retroactivity.

This evidence is relevant to establishing persecution and severe deprivation of liberty on political grounds under Article 7 of the Rome Statute, as well as illustrating additional punitive measures imposed specifically on political prisoners, reinforcing the existence of a systematic policy of repression targeting dissenting individuals.

Hyperlink:

https://news.mingpao.com/pns/%E6%B8%AF%E8%81%9E/article/20240326/s00002/1711390871946/23%E6%A2%9D%E9%A6%96%E5%9F%B7%E8%A1%8C-%E5%9C%8B%E5%AE%89%E5%9B%9A%E7%8A%AF%E6%9C%AA%E6%8F%90%E6%97%A9%E7%8D%B2%E9%87%8B-%E5%80%98%E6%8C%89%E9%81%8E%E5%BE%80%E8%A1%8C%E7%82%BA%E8%89%AF%E5%A5%BD%E6%B8%9B%E5%88%911-3-%E4%BA%8C%E4%BB%A3%E7%BE%8E%E5%9C%8B%E9%9A%8A%E9%95%B7%E5%8F%AF%E5%87%BA%E7%8D%84

EXHIBIT E27

Title:

HKSAR v Lee Cheuk Yan and Others (HCCC 155/2022) – Press Summary

Source:

Judiciary of the Hong Kong Special Administrative Region (Legal Reference System)

Date:

11 September 2026

Document Type:

Judiciary Press Summary

Summary:

This is the Judiciary's press summary of the judgment of a panel of three designated national-security judges (Alex Lee Wan-tang, Johnny Chan Jong-herng and Anna Lai Yuen-kee) in the prosecution of the former leaders of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China. It records that Lee Cheuk-yan and Chow Hang-tung were convicted of incitement to subvert State power and that Albert Ho Chun-yan had pleaded guilty; that the court adopted a starting point of seven years and six months' imprisonment; and that Chow Hang-tung was sentenced to seven years and three months, Lee Cheuk-yan to seven years and Albert Ho to five years and two months, with the Alliance fined HK$1.5 million.

Relevance:

An official summary, issued by the Judiciary itself, of the outcome and principal reasoning of the case. It establishes, from a source the authorities cannot dispute, the identity of the judges, the conviction of the leaders of the organisation that for three decades organised the

commemoration of those killed on 4 June 1989, and the sentences of up to seven years and three months' imprisonment. Relevant to imprisonment under Article 7(1)(e) and persecution on political grounds under Article 7(1)(h).

Hyperlink:

https://legalref.judiciary.hk/doc/judg/html/vetted/other/ch/2022/HCCC000155E_2022_files/HCCC000155E_2022ES.htm

EXHIBIT E28

Title:

HKSAR v Lee Cheuk Yan and Others (HCCC 155/2022) – Judgment

Source:

Judiciary of the Hong Kong Special Administrative Region (Legal Reference System)

Date:

21 August 2026

Document Type:

Court Judgement

Summary:

This is the full judgment of the Hong Kong Alliance Case. The court accepted that the case involved no violence or threat of violence and that the defendants had proposed no specific means of implementation or timetable, but held the offence to be of a serious nature, relying on the dissemination of the Alliance's programme to end one-party rule through its organised activities, its Tiananmen commemorations and its social-media presence, and on the defendants' refusal to abandon that position after the HKNSL came into force.

Relevance:

Primary evidence that an organisation whose principal public activity for three decades was the commemoration of those killed on 4 June 1989 was prosecuted to conviction as a national-security threat, after more than 1,500 days of pre-trial detention, for non-violent political advocacy and commemoration. Relevant to Articles 7(1)(e) and 7(1)(h) of the Rome Statute.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=185291

EXHIBIT E29

Title:

HKSAR v WONG CHI-FUNG (黃之鋒) – Reasons for Sentence

Reference Number:

HCCC 181/2026 [2026] HKCFI 6133

Source:

Judiciary of the Hong Kong Special Administrative Region (Legal Reference System)

Date:

5 November 2026

Document Type:

Court Judgement

Summary:

This judgment sets out the reasons for sentencing Joshua Wong Chi-fung for conspiracy to commit collusion with foreign countries or with external elements to endanger national security under Article 29 of the HKNSL. The court treated his conduct before the HKNSL as context only. For the period charged, 1 July to 23 November 2020, it relied mainly on his sharing of Nathan Law's Facebook posts and online petition, together with articles and interviews in foreign media. The court held the offence to be "of a grave nature" and took a starting point of 13 years. After allowing for his guilty plea, it imposed the minimum term of 10 years' imprisonment. Only 2 months and 2 days of that term run concurrently with his sentence in the Hong Kong 47 case, from which he was due for release on 7 January 2027.

Relevance:

This judgment shows that sharing social-media posts and publishing commentary in support of advocacy abroad was punished with ten years' imprisonment, imposed on a prisoner who had been in custody since November 2020. It also shows the "collusion" offence being

applied to political speech, as in *EXHIBIT E10*. Relevant to imprisonment under Article 7(1)(e) and persecution under Article 7(1)(h) of the Rome Statute, and to the individual responsibility of TAM Yiu-ho, William.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=186855&TP=RS

EXHIBIT E30

Title:

Court of First Instance hands down sentence in "conspiracy to commit collusion" case of Wong Chi-fung

Source:

HKSAR Government

Date:

5 November 2026

Document Type:

Government Statement

Summary:

In this press release, Chief Executive John Lee responds to Wong's sentencing. He describes Wong Chi-fung, Law Kwun-chung and their accomplices as "among the primary culprits responsible for undermining Hong Kong's prosperity and stability", and says they "fuelled the 'black-clad violence' and the Hong Kong version of 'colour revolution' in 2019". A Government spokesman states that the Government "will forfeit Wong Chi-fung's offence-related property". The spokesman also says the sentence "completely shattered the illusion" that people endangering national security can escape liability under the guise of "international advocacy".

Relevance:

These statements were made at the highest level of the executive, within hours of the sentence. They endorse the result and condemn the defendant, and a person living in a State

Party, by name. Like *EXHIBIT E11*, this is relevant to judicial independence under Article 14 of the ICCPR, to the policy element, and to the individual responsibility of John Lee Ka-chiu.

Hyperlink:

https://www.info.gov.hk/gia/general/202611/05/P2026110500420.htm

Internet Archive Wayback Machine (6 November 2026):

https://web.archive.org/web/20261106185320/https://www.info.gov.hk/gia/general/202611/05/P2026110500420.htm

EXHIBIT F1

Title:

Persons wanted for alleged contravention of Hong Kong National Security Law

Source:

National Security Department, Hong Kong Police Force (info.gov.hk)

Date:

3 July 2023

Document Type:

Hong Kong Government Record

Summary:

This press release announces that the court had issued arrest warrants against eight persons who had absconded overseas, alleged to have committed offences under the Hong Kong National Security Law, and offered a reward of HK$1,000,000 in respect of each of them. Three of the eight – Christopher Mung (Mung Siu-tat), Finn Lau (Lau Cho-dik) and Nathan Law (Law Kwun-chung) – are resident in the United Kingdom. The release warns that providing pecuniary or other financial assistance to such persons is itself unlawful, and asserts extraterritorial application of the Law under Articles 37 and 38.

Relevance:

This is the originating instrument of the bounty-and-pursuit programme directed at persons resident in States Parties. It establishes that named individuals resident in the United Kingdom were, from July 2023, made the objects of arrest warrants and public bounties by reason of their political activity in exile, and that the scheme was, from inception, designed to reach persons and their supporters outside Hong Kong. Relevant to persecution under Article 7(1)(h) of the Rome Statute, and to the jurisdiction of the ICC under Article 12(2)(a) of the Rome Statute, the scheme being directed at persons on the territory of a State Party.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/03/P2023070300526.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714230909/https://www.info.gov.hk/gia/general/202307/03/P2023070300526.htm?fontSize=1

Related Material:

The press release is accompanied by an official annex, "The acts of the eight persons absconded overseas against whom arrest warrants were issued for allegedly committing the offences that endanger national security," available at: https://gia.info.gov.hk/general/202307/03/P2023070300526_424125_1_1688396853946.pdf.

EXHIBIT F2

Title:

Persons wanted and arrested for alleged contravention of the Hong Kong National Security Law

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

14 December 2023

Document Type:

Hong Kong Government Record

Summary:

This press release announces arrest warrants against five further persons who had absconded overseas, including Cheng Man-kit (Simon Cheng), Fok Ka-chi and Choi Ming-da, with a reward of HK$1,000,000 in respect of each. It further reports that, on 13 December 2023, four persons in Hong Kong, aged between 29 and 68, had been arrested on suspicion of providing pecuniary assistance through online crowdfunding to two wanted persons who had absconded overseas.

Relevance:

Extends the bounty programme to further named persons resident in a State Party to the Rome Statute (persecution under Article 7(1)(h); jurisdiction under Article 12(2)(a) of the Rome Statute). The contemporaneous arrest of four persons in Hong Kong for providing financial assistance to wanted persons evidences that the criminalisation of support for the exiled community was enforced in fact, and is relevant to the coercive effect of the scheme upon supporters of the named persons.

Hyperlink:

https://www.info.gov.hk/gia/general/202312/14/P2023121400617.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714232624/https://www.info.gov.hk/gia/general/202312/14/P2023121400617.htm?fontSize=1

Related Material:

The press release is accompanied by an official annex "The acts of the five persons absconded overseas against whom arrest warrants were issued for allegedly committing the offences that endanger national security under the Hong Kong National Security Law", available at: https://gia.info.gov.hk/general/202312/14/P2023121400617_442112_1_1702554754971.pdf.

EXHIBIT F3

Title:

Six persons wanted for alleged contravention of the Hong Kong National Security Law

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

24 December 2024

Document Type:

Hong Kong Government Record

Summary:

This press release announces arrest warrants against six further persons who had absconded overseas, including Lau Ka-man (Carmen Lau), Chung Hon-lam (Tony Chung), Chung Kim-wah and Cheung Hei-ching (Chloe Cheung), with a reward of HK$1,000,000 in respect of each, and separately records the specification of seven other, unrelated absconders under section 89 of the Safeguarding National Security Ordinance.

Relevance:

Extends the bounty programme to further named persons resident in a State Party, including Chloe Cheung, reported to have been fourteen years of age at the time of the pro-democracy demonstrations in respect of which she is pursued *(see EXHIBIT F39)*. Relevant to persecution under Article 7(1)(h), to the continuing and expanding character of the programme, and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.info.gov.hk/gia/general/202412/24/P2024122400514.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233303/https://www.info.gov.hk/gia/general/202412/24/P2024122400514.htm?fontSize=1

Related Material:

The press release is accompanied by an official annex "The acts of the six persons absconded overseas against whom arrest warrants were issued for allegedly committing the offences that endanger national security under the Hong Kong National Security Law", available at: https://gia.info.gov.hk/general/202412/24/P2024122400514_481615_1_1735039902998.pdf

EXHIBIT F4

Title:

Persons wanted for suspected contravention of Hong Kong National Security Law

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

25 July 2025

Document Type:

Hong Kong Government Record

Summary:

This press release announces that nineteen persons connected with the "Hong Kong Parliament" had been placed on the wanted list, including Chin Po-fun, in respect of whom a reward of HK$200,000 was offered, and Ka-chi Fok and Ming-da Choi, previously wanted and subject to a HK$1,000,000 reward. It repeats the assertion of extraterritorial application under Articles 37 and 38 of the Hong Kong National Security Law.

Relevance:

The most recent tranche of the bounty programme, extending it to a further group of persons resident in States Parties. It was issued on the same day as the joint statement of the United Kingdom's Foreign Secretary and Home Secretary describing such measures as "transnational repression" (*EXHIBIT F38*), and provides the factual foundation for the conduct directed at Chin Po-fun. Relevant to persecution under Article 7(1)(h) and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.info.gov.hk/gia/general/202507/25/P2025072500736.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233533/https://www.info.gov.hk/gia/general/202507/25/P2025072500736.htm?fontSize=1

EXHIBIT F5

Title:
行政長官於行政會議前會見傳媒開場發言及答問內容(附短片)

(Chief Executive's Remarks Before Executive Council Meeting and Media Q&A (with video))

Source:
info.gov.hk (Hong Kong Government Press-release Outlet)

Date:
4 July 2023

Document Type:
Hong Kong Government Record

Summary:

This official press release records the remarks of the Chief Executive, John Lee (Lee Ka-chiu), on 4 July 2023, the day after the wanted notice at *EXHIBIT F1*. Lee stated that he "fully support[ed] and endorse[d]" the action; that "no matter where they flee to, however far, we will pursue these criminals for life"; that unless they surrendered the wanted persons would remain "living in fear every day, in dread of arrest"; that eligibility for the reward extended to "the relatives and friends of the wanted persons"; and that the authorities would "continue to monitor the conduct of the wanted persons".

Relevance:

Primary evidence of the personal endorsement and promotion of the bounty programme by the most senior official of the Hong Kong Government, and of its extension, in terms, to the relatives of persons resident in a State Party. Relevant to persecution under Article 7(1)(h); to the policy element of the attack; to the individual responsibility of Ka-chiu Lee under Articles 25 and 28; and, through the express reference to monitoring and to relatives, to the components of the programme addressed in this section.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/04/P2023070400315.htm?fontSize=1

Video Recording:

https://isd.wecast.hk/vod/?id=15176

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714231204/https://www.info.gov.hk/gia/general/202307/04/P2023070400315.htm?fontSize=1

EXHIBIT F6

Title:

Transcript of remarks by CE at media session before ExCo (with video)

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

4 July 2023

Document Type:

Hong Kong Government Record

Summary:

The English-language portion of the same 4 July 2023 media session as *EXHIBIT F5*, in which the Chief Executive stated that "the only way to end their destiny of being an abscondee who will be pursued for life is to surrender", that "extraterritorial power exists in many countries' national security law", and that Hong Kong's National Security Law had "the same power of taking extraterritorial action against criminals".

Relevance:

Records, in the Chief Executive's own words and without translation, his understanding that the programme was designed to operate against persons outside Hong Kong. Relevant to the deliberate and extraterritorial character of the conduct, to the policy element, and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/04/P2023070400316.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714231509/https://www.info.gov.hk/gia/general/202307/04/P2023070400316.htm?fontSize=1

EXHIBIT F7

Title:

香港国安处悬红通缉8人 李家超：无论他们逃到天涯海角 都会被终身追捕

(Hong Kong National Security Department Offers Rewards for 8 Wanted Persons; John Lee: They Will Be Pursued for Life No Matter Where They Flee)

Source: China News Service (state media of the People's Republic of China); official recording at isd.wecast.hk (Hong Kong Government Website)

Date:

4 July 2023

Document Type:

Video Recording (secondary report of the remarks at *EXHIBIT F5*)

Summary:

A China News Service video clip of the same 4 July 2023 media session, carrying the Chief Executive's statement that the wanted persons would be "pursued for life" and that informants, including relatives and friends, were eligible for the reward.

Relevance:

Corroborates that the remarks at *EXHIBIT F5* were delivered publicly and carried by state media of the People's Republic of China, supporting the attribution of the programme to the Hong Kong and Chinese authorities and its dissemination as state policy. Relevant to the policy element and to attribution.

Hyperlink:

https://www.youtube.com/watch?v=E3hld3InepY **(**China News Service**)**

https://isd.wecast.hk/vod/?id=15176 (Official Recording)

EXHIBIT F8

Title:

保安局局長談警務處國家安全處依法通緝在逃人行動

(Secretary for Security speaks on National Security Department's lawful actions to put persons at large on wanted list)

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

4 July 2023

Document Type:

Hong Kong Government Record

Summary:

This official press release records the remarks of the Secretary for Security, Chris Tang (Tang Ping-keung), on 4 July 2023. Tang stated that the wanted persons, having "run off" overseas, "must be severely punished"; that the authorities would "identify their contacts, associates, and the financiers behind them in Hong Kong or overseas"; that "the law enforcement authorities of Hong Kong will devote their whole lives to bringing you back for arrest"; and that a wanted person retaining "use value" to a foreign power would, once that value was lost, "become a discarded pawn". With specific reference to Nathan Law, Tang described him as a "modern-day traitor of the Chinese nation" and called upon him to surrender.

Relevance:

Primary evidence of the personal endorsement and promotion of the bounty programme by the Secretary for Security, of the solicitation of information as to the contacts and location of persons resident in a State Party, and of the dehumanising characterisation of a named individual. Relevant to persecution under Article 7(1)(h); to the policy element; to the

individual responsibility of Chris Tang Ping-keung under Articles 25 and 28; and to the encouragement of hostile third-party conduct on the territory of a State Party.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/04/P2023070400672.htm

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714231730/https://www.info.gov.hk/gia/general/202307/04/P2023070400672.htm

EXHIBIT F9

Title:

S for S speaks on National Security Department's lawful actions to put persons at large on wanted list – English portion

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

4 July 2023

Document Type:

Hong Kong Government Record

Summary:

The English-language portion of the same 4 July 2023 media session as *EXHIBIT F8*. Asked whether the relatives of wanted persons could provide them with “any sort of financial support”, the Secretary for Security answered that “it is illegal for anyone to aid, abet or provide financial support for those offenders who have committed offences under the NSL”, and that “it doesn’t matter what background they have”.

Relevance:

Primary evidence, in the Secretary for Security's own words in the official English text, that the prohibition on providing financial support to wanted persons extends to their relatives, "it doesn't matter what background they have". Relevant to the coercive measures directed against family members under Articles 7(1)(h) and 7(1)(k); to the deterrence of support for persons resident in a State Party; to the policy element; and to the individual responsibility of Chris Tang Ping-keung under Articles 25 and 28.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/04/P2023070400675.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714231918/https://www.info.gov.hk/gia/general/202307/04/P2023070400675.htm?fontSize=1

EXHIBIT F10

Title:

鄧炳強:我們會窮盡一生精力將通緝人士拘捕

(Chris Tang: We will devote our entire lives to arresting wanted fugitives)

Source:

Hong Kong China News Agency (State Media of the People's Republic of China)

Date:

4 July 2023

Document Type:

Video recording (secondary report of the remarks at *EXHIBIT F8*)

Summary:

A video, published by the Hong Kong China News Agency, of the same 4 July 2023 media session, carrying the Secretary for Security's statements that persons who had "gone overseas" "must be severely punished", that each was subject to a HK$1,000,000 reward intended to elicit information from persons "whether in Hong Kong or overseas, or anyone connected to these people", and that such persons would become "a discarded pawn".

Relevance:

Corroborates the remarks at *EXHIBIT F8* and their dissemination by state media of the People's Republic of China. Relevant to the policy element and to attribution.

Hyperlink:

https://www.youtube.com/watch?v=t0qX7hhY1Ng

EXHIBIT F11

Title:

行政長官於行政會議前會見傳媒開場發言及答問內容(附短片)(Chief Executive's Remarks Before Executive Council Meeting and Media Q&A (with video))

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

11 July 2023

Document Type:

Hong Kong Government Record

Summary:

This official press release records the remarks of the Chief Executive on 11 July 2023, in which, in response to a question on the pursuit of the eight wanted persons, he stated that "this pursuit will be lifelong, and we will use every possible means to pursue them", including "holding accountable any person who provides them with financial assistance or other forms of assistance", and "those providing backing behind them, or even those who may be controlling them"; that "everyone should also regard them as 'rats crossing the street', to be shunned"; and that the authorities would "broaden [their] intelligence-gathering and striking network".

Relevance:

Evidence of the continuing and expanding character of the programme one week after *EXHIBIT F5*, the public call for the isolation of the named persons, and the extension of scrutiny to their supporters and associates. Relevant to persecution under Article 7(1)(h); to the policy element; and to the individual responsibility of Ka-chiu Lee.

Hyperlink:

https://www.info.gov.hk/gia/general/202307/11/P2023071100309.htm?fontSize=1

Video Recording:

https://isd.wecast.hk/vod/?id=15219

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714232029/https://www.info.gov.hk/gia/general/202307/11/P2023071100309.htm?fontSize=1

EXHIBIT F12

Title:

李家超:加大力度通缉8名违反香港国安法的外逃人员

(John Lee: Authorities Will Intensify the Pursuit of Eight Fugitives Who Violated the Hong Kong National Security Law)

Source:

China News Service (State Media of the People's Republic of China); Official Recording at isd.wecast.hk (Hong Kong Government Website)

Date:

11 July 2023

Document Type:

Video recording (secondary report of the remarks at *EXHIBIT F11*)

Summary:

A China News Service video clip of the same 11 July 2023 media session, carrying the Chief Executive's statements that the pursuit "will be lifelong", that the authorities would pursue "any person who provides them with financial assistance or other forms of assistance" and "those providing backing behind them", and that members of the public "should also regard them as 'rats crossing the street', to be shunned".

Relevance:

Corroborates the remarks at *EXHIBIT F11* and their dissemination by state media of the People's Republic of China. Relevant to the policy element and to attribution.

Hyperlink:

https://isd.wecast.hk/vod/?id=15219 (Official Recording)

https://www.youtube.com/watch?v=WBMDCk7IcVI (China News Service)

EXHIBIT F13

Title:

保安局局長啓程往越南前會見傳媒談話全文(只有中文)

(Full Transcript of Remarks by the Secretary for Security Before His Departure for Vietnam (Chinese Only))

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

27 August 2023

Document Type:

Hong Kong Government Record

Summary:

This official press release records remarks of the Secretary for Security on 27 August 2023. Referring to the eight wanted persons, "including Hui Chi-fung and Nathan Law", he stated that "people must under no circumstances contact them and must guard against them", and that assisting them could contravene Hong Kong law. Asked about a statement by the United States Government that the National Security Department had "harassed the family members of the eight wanted persons", the Secretary for Security did not deny the underlying allegation, characterising the making of it as an attempt to "demonise" Hong Kong's enforcement action.

Relevance:

Evidences the continuing public direction to the Hong Kong public to shun a named person resident in a State Party (persecution under Article 7(1)(h)), and records an early instance in which an allegation that the authorities had harassed the family members of the wanted

persons was put to the Secretary for Security and not denied – relevant to the reprisals-against-family component and to the intentional infliction of mental harm under Article 7(1)(k).

Hyperlink:
https://www.info.gov.hk/gia/general/202308/27/P2023082700550.htm

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714232321/https://www.info.gov.hk/gia/general/202308/27/P2023082700550.htm

EXHIBIT F14

Title:
保安局局長談警務處依法通緝涉嫌違反《香港國安法》的竄逃人及黎智英案（只有中文）

(Full Transcript of Remarks by the Secretary for Security on the Police's Lawful Pursuit of Fugitives Suspected of Violating the Hong Kong National Security Law, and the "Jimmy Lai Case" (Chinese Only))

Source:
info.gov.hk (Hong Kong Government Press-release Outlet)

Date:
15 December 2023

Document Type:
Hong Kong Government Record

Summary:

This official press release records remarks of the Secretary for Security on 15 December 2023 concerning the five persons newly named as wanted, including Simon Cheng, Fok Ka-chi and Choi Ming-da. He stated that "no matter where you violate the Hong Kong National Security Law, and no matter how long you wait, you remain a wanted person"; that a foreign power protecting them would discard them "once you lose your use value"; that they would remain "unable to see the light like a rat crossing the street"; and that they would "bring shame upon your family and leave them disgraced". He confirmed that four persons had been arrested in Hong Kong for providing crowdfunded assistance to Ted Hui and Nathan Law.

Relevance:

Primary evidence of the dehumanising characterisation of named persons resident in a State Party, of the express invocation of shame upon their families, and of the enforcement, against supporters in Hong Kong, of the prohibition on financial assistance to a named person.

Relevant to persecution under Article 7(1)(h); to other inhumane acts under Article 7(1)(k); to the reprisals-against-family component; and to the individual responsibility of Chris Tang Ping-keung.

Hyperlink:
https://www.info.gov.hk/gia/general/202312/15/P2023121500643.htm

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714232857/https://www.info.gov.hk/gia/general/202312/15/P2023121500643.htm

EXHIBIT F15

Title:
保安局局長在將被通緝的涉嫌干犯危害國家安全罪行的人指明為潛逃者及相關指明措施記者會開場發言(只有中文)(附短片)

(Opening Remarks at Press Conference on the Specification of Persons Suspected of Committing Offences Endangering National Security as Absconders, and Related Specified Measures (Chinese Only) (with video))

Source:
info.gov.hk (Hong Kong Government Press-release Outlet)

Date:
24 December 2024

Document Type:
Hong Kong Government Record

Summary:

This official press release records a press conference on 24 December 2024 at which the National Security Department placed six further persons on the wanted list, including Carmen Lau, Tony Chung, Kim-wah Chung and Chloe Cheung. In closing remarks the Secretary for Security stated that the targets included persons "unrepentant" in endangering national security who "wantonly collude with external forces"; that "no person who endangers national security should believe that, by being overseas, they can evade criminal responsibility and escape justice"; that the Government "will use every means available"; and that "violations of the law will always be pursued and punished – however far, they will certainly be struck down".

Relevance:

Primary evidence of the endorsement and promotion of the bounty programme against a further group of named persons resident in a State Party, and of the settled and continuing intention to pursue such persons "however far". Relevant to persecution under Article

7(1)(h); to the policy element; to jurisdiction under Article 12(2)(a) of the Rome Statute; and to the individual responsibility of Chris Tang Ping-keung.

Hyperlink:
https://www.info.gov.hk/gia/general/202412/24/P2024122400343.htm

Video Recording:
https://isd.wecast.hk/vod/?id=17305

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260629153730/https://www.info.gov.hk/gia/general/202412/24/P2024122400343.htm

EXHIBIT F16

Title:
保安局局長出席撲滅罪行委員會會議後會見傳媒談話內容(附短片)

(Remarks by the Secretary for Security After Attending the Fight Crime Committee Meeting (with video))

Source:
info.gov.hk (Hong Kong Government Press-release Outlet)

Date:
31 July 2025

Document Type:
Hong Kong Government Record

Summary:

This official press release records remarks of the Secretary for Security on 31 July 2025. In response to a question concerning the United Kingdom's consideration of restoring extradition arrangements, he stated that a wanted person overseas "may currently believe yourself safe… but we will use every means available to bring you back to Hong Kong to stand trial", and that such a person, once of no "use value", would "become a discarded pawn, or even a political bargaining chip". In answer to a further question concerning contact between the nineteen "Hong Kong Parliament" wanted persons, including Chin Po-fun, and their family members, he stated that the authorities would conduct investigations into any person providing them with funds "whether in Hong Kong or elsewhere".

Relevance:

Primary evidence of the continuing pursuit of persons resident in a State Party, and of the express extension of investigation to anyone who supports them "whether in Hong Kong or elsewhere". Relevant to persecution under Article 7(1)(h); to other inhumane acts under

Article 7(1)(k); to the reprisals-against-family component; to jurisdiction under Article 12(2)(a) of the Rome Statute; and to the individual responsibility of Chris Tang Ping-keung.

Hyperlink:

https://www.info.gov.hk/gia/general/202507/31/P2025073100836.htm

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233645/https://www.info.gov.hk/gia/general/202507/31/P2025073100836.htm

EXHIBIT F17

Title:
【獨家專訪｜鄧炳強:全力追捕「走佬」通緝犯 擇時研究修訂逃犯條例】

(Exclusive Interview: Chris Tang Fully Committed to Pursuing Fugitives Who Have Fled, Will Study Amendments to the Fugitive Offenders Ordinance at an Appropriate Time)

Source:
Hong Kong Commercial Daily (Hong Kong Local Media Outlet)

Date:
9 December 2021

Document Type:
Video Recording

Summary:

A December 2021 interview with the Secretary for Security, in which he stated that ordinary channels of inter-State legal cooperation had been "temporarily suspended" for political reasons; that the only beneficiaries were persons who had "broke[n] the law in Hong Kong, fled, and sought protection from foreign countries"; and that Hong Kong "will certainly use every possible means to arrest" such persons notwithstanding that it could not "extradite them back immediately".

Relevance:

Evidence that, from an early stage, the Secretary for Security understood the programme subsequently implemented as a means of achieving, through means other than extradition, the return of persons who had sought protection in foreign States. Relevant to the deliberate and considered character of the programme, and to the assessment of the measures as directed at coercion rather than at any ordinary law-enforcement purpose.

Hyperlink:

https://www.youtube.com/watch?v=u6Zj_ywjbZ0

EXHIBIT F18

Title:
國安處通緝8海外港人 李家超:親友提供消息可獲懸紅

(National Security Police Issue Wanted Notices for 8 Overseas Hong Kong Residents

Chief Executive John Lee Ka-chiu: Relatives and friends can receive rewards for providing information)

Source:
am730 (Hong Kong Local Media Outlet)

Date:
5 July 2023

Document Type:
News Report

Summary:

A media report of the 4 July 2023 remarks of the Chief Executive and the Secretary for Security, including the HK$1,000,000 reward scheme, the invitation to relatives and friends to provide information, and the remarks concerning Nathan Law.

Relevance:

Corroborates the contemporaneous public circulation of the remarks at *EXHIBITS F5 & F8*. Relevant to the policy element and to the dissemination of the programme.

Hyperlink:

https://www.am730.com.hk/%E6%9C%AC%E5%9C%B0/386312/%E5%9C%8B%E5%AE%89%E8%99%95%E9%80%9A%E7%B7%9D8%E6%B5%B7%E5%A4%96%E6%B8%AF%E4%BA%BA-%E6%9D%8E%E5%AE%B6%E8%B6%85-%E8%A6%AA%E5%8F%8B%E6%8F%90%E4%BE%9B%E6%B6%88%E6%81%AF%E5%8F%AF%E7%8D%B2%E6%87%B8%E7%B4%85

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714224130/https://www.am730.com.hk/%E6%9C%AC%E5%9C%B0/386312/%E5%9C%8B%E5%AE%89%E8%99%95%E9%80%9A%E7%B7%9D8%E6%B5%B7%E5%A4%96%E6%B8%AF%E4%BA%BA-%E6%9D%8E%E5%AE%B6%E8%B6%85-%E8%A6%AA%E5%8F%8B%E6%8F%90%E4%BE%9B%E6%B6%88%E6%81%AF%E5%8F%AF%E7%8D%B2%E6%87%B8%E7%B4%85

EXHIBIT F19

Title:
國安處通緝8人｜李家超:完全支持　稱盡一切方法終身追捕　會調查背後勢力

(National Security Police Issue Wanted Notices for 8 Individuals | John Lee: Fully Supports Action, Will Use All Means to Pursue Them for Life and Investigate Backing Forces)

Source:
i-Cable News (Hong Kong Local Media Outlet)

Date:
4 July 2023

Document Type:
News Report

Summary:

A media report of the 4 July 2023 remarks of the Chief Executive, including that the wanted persons would be pursued for life, that surrender was the only means of ending wanted status, and that the authorities would investigate the "forces behind" them.

Relevance:

Corroborates the contemporaneous public circulation of the remarks at *EXHIBIT F5*.
Relevant to the policy element and to the dissemination of the programme.

Hyperlink:

https://www.i-cable.com/%E6%96%B0%E8%81%9E%E8%B3%87%E8%A8%8A/141872/%E5%9C%8B%E5%AE%89%E8%99%95%E9%80%9A%E7%B7%9D8%E4%BA%BA-%E6%9D%8E%E5%AE%B6%E8%B6%85-%E5%AE%8C%E5%85%A8%E6%94%AF%E6%8C%81-%E7%A8%B1%E7%9B%A1%E4%B8%80%E5%88%87%E6%96%B9%E6%B3%95

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714224717/https://www.i-cable.com/%E6%96%B0%E8%81%9E%E8%B3%87%E8%A8%8A/141872/%E5%9C%8B%E5%AE%89%E8%99%95%E9%80%9A%E7%B7%9D8%E4%BA%BA-%E6%9D%8E%E5%AE%B6%E8%B6%85-%E5%AE%8C%E5%85%A8%E6%94%AF%E6%8C%81-%E7%A8%B1%E7%9B%A1%E4%B8%80%E5%88%87%E6%96%B9%E6%B3%95

EXHIBIT F20

Title:

保安局局長談根據《維護國家安全條例》指明危害國家安全罪行的潛逃者及針對他們指明施行的措施

(Remarks by the Secretary for Security on Specifying Absconders Who Have Committed Offences Endangering National Security Under the Safeguarding National Security Ordinance, and the Measures Specified Against Them)

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

12 June 2024

Document Type:

Hong Kong Government Record

Summary:

This official press release records that the Secretary for Security, exercising powers under sections 89(1) and 89(4) of the Safeguarding National Security Ordinance, specified six persons – Nathan Law, Christopher Mung, Finn Lau, Simon Cheng, Fok Ka-chi and Choi Ming-da – as "specified absconders", and imposed measures including prohibitions on providing or dealing with funds, on property dealings, and on joint ventures, together with cancellation of HKSAR passports, suspension of professional qualifications, and removal from directorships, on penalty of up to seven years' imprisonment. He stated that the six were selected because they were "hiding in the United Kingdom", and expressly linked the action to the United Kingdom's prosecution of an employee of the Hong Kong Economic and Trade Office in London. He confirmed that "any person" directly or indirectly providing funds to a specified absconder would be in violation of the law.

Relevance:

Primary evidence of the imposition, by the Secretary for Security personally, of comprehensive financial and civil disability upon named persons resident in a State Party, and of the criminalisation of any person, without geographic limitation, who provides them with financial support. Relevant to persecution under Article 7(1)(h); to other inhumane acts under Article 7(1)(k); to jurisdiction under Article 12(2)(a) of the Rome Statute, the measures being directed at persons and conduct on the territory of a State Party to the Rome Statute; and to the individual responsibility of Chris Tang Ping-keung. The express linkage of the measure to a bilateral dispute with the United Kingdom is further relevant to the character of the conduct as directed at that State Party rather than at the ordinary domestic administration of justice.

Hyperlink:
https://www.info.gov.hk/gia/general/202406/12/P2024061200423.htm

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233001/https://www.info.gov.hk/gia/general/202406/12/P2024061200423.htm

EXHIBIT F21

Title:

S for S speaks on specification of absconders in respect of offences endangering national security and specification of measures applicable against relevant absconders under Safeguarding National Security Ordinance – English portion

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

12 June 2024

Document Type:

Hong Kong Government Record

Summary:

The English-language portion of the same 12 June 2024 media session as *EXHIBIT F20*. Asked whether the subscribers of a specified absconder's Patreon account would face legal consequences, and noting that "some of them only have BNO passports, and are currently residing in the UK", the Secretary for Security answered that "it is an offence to provide funds or to handle funds for those specified absconders, no matter what platform it is", and that "as long as they are providing funding or assisting them to handle the funding, (they) will be subject to criminal sanction".

Relevance:

Records, in the Secretary for Security's own words and without translation, the confirmation that the financial-support prohibition reaches ordinary supporters resident in the United Kingdom, including holders of British National (Overseas) status. Relevant to persecution under Article 7(1)(h), to other inhumane acts under Article 7(1)(k), and, of particular significance, to jurisdiction under Article 12(2)(a) of the Rome Statute, the measure being confirmed to operate upon persons present on the territory of a State Party to the Rome Statute.

Hyperlink:

https://www.info.gov.hk/gia/general/202406/12/P2024061200424.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233115/https://www.info.gov.hk/gia/general/202406/12/P2024061200424.htm?fontSize=1

EXHIBIT F22

Title:

Specification of absconders in respect of offences endangering national security and specification of measures applicable against relevant absconders under Safeguarding National Security Ordinance

Source:

info.gov.hk (Hong Kong Government Press-release Outlet)

Date:

4 August 2025

Document Type:

Hong Kong Government Record

Summary:

This official bilingual press release records that the Secretary for Security, exercising powers under sections 89(1) and 89(4) of the Safeguarding National Security Ordinance, specified sixteen persons, including Chin Po-fun, as "specified absconders", imposing prohibitions on providing or dealing with funds, on property dealings, and on joint ventures, together with cancellation of HKSAR passports, on penalty of up to seven years' imprisonment. A Government spokesperson stated that those persons were "hiding in the United Kingdom, the United States, Canada, Germany, Australia, Thailand, China's Taiwan region", and continued to "blatantly engage in activities that endanger national security".

Relevance:

Primary evidence of the imposition of the specified-absconder measures upon Chin Po-fun, and of the Government's own identification of the United Kingdom, Canada, Germany and Australia – each a State Party to the Rome Statute – as jurisdictions in which the persons targeted reside. Relevant to persecution under Article 7(1)(h); to other inhumane acts under Article 7(1)(k); to jurisdiction under Article 12(2)(a) of the Rome Statute; and to the individual responsibility of Chris Tang Ping-keung.

Hyperlink:

https://www.info.gov.hk/gia/general/202508/04/P2025080400303.htm?fontSize=1

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233822/https://www.info.gov.hk/gia/general/202508/04/P2025080400303.htm?fontSize=1

EXHIBIT F23

Title:

Family of Hong Kong pro-democracy activist Nathan Law taken in for questioning by police

Source:

CNN (International Media Outlet)

Date:

11 July 2023

Document Type:

News Report

Summary:

Reports that Hong Kong police took Nathan Law's family members in Hong Kong in for questioning shortly after the 3 July 2023 wanted notice and reward announcement against him.

Relevance:

Evidence that, within days of the announcement, the stated intention to involve the "relatives and friends" of a person resident in a State Party was followed by real enforcement action against that person's family in Hong Kong. Relevant to the reprisals-against-family component, to persecution under Article 7(1)(h), and to the intentional infliction of mental harm under Article 7(1)(k), both upon the family in Hong Kong and upon the exiled person in the State Party.

Hyperlink:

https://edition.cnn.com/2023/07/11/china/hong-kong-nsl-nathan-law-family-questioned-intl-hnk

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714224925/https://edition.cnn.com/2023/07/11/china/hong-kong-nsl-nathan-law-family-questioned-intl-hnk

EXHIBIT F24

Title:

Hong Kong police raid homes of relatives of two exiled activists

Source:

The Guardian (International Media Outlet)

Date:

20 July 2023

Document Type:

News Report

Summary:

Reports that Hong Kong police searched the homes of relatives of two of the wanted overseas activists named in the 3 July 2023 notice, escalating from the questioning reported at *EXHIBIT F23*.

Relevance:

Corroborates and escalates *EXHIBIT F23*: within a further nine days, the programme was followed by physical searches of the family homes of persons resident in a State Party. Relevant to the reprisals-against-family component, to persecution under Article 7(1)(h), and to other inhumane acts under Article 7(1)(k).

Hyperlink:

https://www.theguardian.com/world/2023/jul/20/hong-kong-police-raid-homes-relatives-two-exiled-activists

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714225104/https://www.theguardian.com/world/2023/jul/20/hong-kong-police-raid-homes-relatives-two-exiled-activists

EXHIBIT F25

Title:

Hong Kong police arrest family of pro-democracy activist, reports say

Source:

BBC News (International Media Outlet)

Date:

2 May 2025

Document Type:

News Report

Summary:

Reports the arrest by Hong Kong police of a family member of an overseas pro-democracy activist, in connection with alleged national-security offences.

Relevance:

Evidence that, nearly two years after the programme began, the pattern of reprisal against the families of persons resident in States Parties had escalated from questioning and searches to arrest. Relevant to the reprisals-against-family component, to persecution under Article 7(1)(h), and to other inhumane acts under Article 7(1)(k).

Hyperlink:

https://www.bbc.com/news/articles/cy48zwkz2n0o

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714225221/https://www.bbc.com/news/articles/cy48zwkz2n0o

EXHIBIT F26

Title:

Father of Hong Kong activist sentenced to 8 months in jail under national security law

Source:

Reuters (International Media Outlet)

Date:

26 February 2026

Document Type:

News Report

Summary:

Reports that a Hong Kong court sentenced Kwok Yin-sang, aged 69 and the father of the overseas pro-democracy activist Anna Kwok, to eight months' imprisonment, following his conviction – the first of its kind – for attempting to deal with funds belonging to his daughter, a wanted "absconder", contrary to the Safeguarding National Security Ordinance.

Relevance:

Evidence that the apparatus of financial prohibition and reprisal directed at the exiled community has been enforced through criminal conviction and imprisonment against a family member with no political role of his own, by reason only of his family connection to a person resident in a State Party. Relevant to persecution under Article 7(1)(h) and to other inhumane acts under Article 7(1)(k), and demonstrates that the financial measures described in this section are not rhetorical but carry real penal consequences reaching the families of the exiled.

Hyperlink:

https://www.reuters.com/world/china/father-hong-kong-activist-sentenced-8-months-jail-under-national-security-law-2026-02-26/

EXHIBIT F27

Title:

消息：警國安處帶走錢寶芬妹妹到警署助查

("Sources: National Security Department officers take CHIN Po-fun's sister to police station to assist with enquiries")

Source:

HK01 (Hong Kong Local Media Outlet)

Date:

19 August 2025

Document Type:

News report

Summary:

This report states that, on the morning of 19 August 2025, officers of the National Security Department took the sister of Chin Po-fun to Tuen Mun Police Station.

Relevance:

This report is relevant to the reprisals-against-family component and to the intentional infliction of mental harm under Article 7(1)(k) upon a person resident in a State Party.

Hyperlink:

https://www.hk01.com/突發/60267899/消息-警國安處帶走錢寶芬妹妹到警署助查

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714233948/https://www.hk01.com/%E7%AA%81%E7%99%BC/60267899/%E6%B6%88%E6%81%AF-%E8%AD%A6%E5%9C%8B%E5%AE%89%E8%99%95%E5%B8%B6%E8%B5%B0%E9%8C%A2%E5%AF%B6%E8%8A%AC%E5%A6%B9%E5%A6%B9%E5%88%B0%E8%AD%A6%E7%BD%B2%E5%8A%A9%E6%9F%A5

EXHIBIT F28

Title:
IN THE WESTMINSTER MAGISTRATES COURT – REGINA -V- (1) Chung Biu YUEN (2) Chi Leung WAI aka Peter WAI (3) Matthew Peter TRICKETT – INITIAL DETAILS OF THE PROSECUTION CASE

Case Number:

T20247045

Source:
Kashif Malik, Reviewing Lawyer, Counter Terrorism Division, Crown Prosecution Service, United Kingdom

Date:
12 May 2024

Document Type:
United Kingdom Government Record

Summary:

The CPS Initial Details of the Prosecution Case concerning three men charged in connection with foreign-intelligence activity in the United Kingdom. It sets out that Chung Biu Yuen, office manager of the Hong Kong Economic and Trade Office in London, tasked Chi Leung Wai – a serving United Kingdom Border Force officer – to conduct surveillance and information-gathering, and records, among other matters, a surveillance-tasking note dated 16 August 2023 naming Finn Lau and Christopher Mung as subjects, shortly after the July 2023 bounties, together with payments of £95,500 from an HKETO bank account to Wai's company between June 2023 and January 2024.

Relevance:

Evidence that the bounty programme was accompanied by covert surveillance, funded through the Hong Kong Economic and Trade Office, of named persons resident in the United Kingdom who are among those targeted by the programme. Relevant to persecution under Article 7(1)(h); to other inhumane acts under Article 7(1)(k); to jurisdiction under Article 12(2)(a) of the Rome Statute, the surveillance being conducted on the territory of a State Party to the Rome Statute; and to the attribution of the conduct to the Hong Kong and Chinese authorities.

Hyperlink:

EXHIBIT F29

Title:

2 men on trial on charges they spied on Hong Kong diaspora in the UK

Source:

AP News (International Media Outlet)

Date:

4 March 2026

Document Type:

News Report

Summary:

Reports the opening of the trial of Chung Biu Yuen and Chi Leung Wai at the Central Criminal Court on charges of assisting a foreign intelligence service. The prosecution stated that the defendants "engaged in shadow policing operations on behalf of the Hong Kong Special Administrative Region, and thereby the People's Republic of China", conducting surveillance of persons deemed "persons of interest", including the surveillance of Nathan Law, and referring to activists as "cockroaches".

Relevance:

Corroborates that the surveillance apparatus in the United Kingdom targeted a named person among those pursued by the bounty programme, and carried forward the same dehumanising rhetoric. Relevant to persecution under Article 7(1)(h), to jurisdiction under Article 12(2)(a) of the Rome Statute, and to attribution to the Hong Kong and Chinese authorities.

Hyperlink:

https://apnews.com/article/uk-hong-kong-spying-trial-3555bb4708cb92ebe56c502d9749d7d7

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714235624/https://apnews.com/article/uk-hong-kong-spying-trial-3555bb4708cb92ebe56c502d9749d7d7

EXHIBIT F30

Title:

Two men spied on Hong Kong dissidents in UK for China, London court told

Source:

Reuters (International Media Outlet)

Date:

4 March 2026

Document Type:

News Report

Summary:

Further reports the opening of the same trial. The prosecution stated that the defendants had been tasked to carry out “shadow policing operations” on behalf of the HKSAR and thereby the PRC, targeting dissidents resident in Britain for whom the Hong Kong Government had issued bounties of about HK$1 million, and that surveillance of Nathan Law had been ongoing since 2021.

Relevance:

Records the prosecution’s own characterisation, in a criminal trial, of the causal link between the Hong Kong Government’s reward scheme and the surveillance of dissidents resident in the United Kingdom, a State Party to the Rome Statute. Relevant to persecution under Article 7(1)(h), and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.reuters.com/world/uk/two-men-go-trial-london-accused-spying-hong-kong-china-2026-03-04/

EXHIBIT F31

Title:

Two men convicted of National Security Act offences

Source:

Counter Terrorism Policing, United Kingdom

Date:

13 May 2026

Document Type:

Government Record

Summary:

This official statement reports that Chi Leung Wai and Chung Biu Yuen were found guilty of assisting a foreign intelligence service contrary to the National Security Act 2023, with Wai additionally convicted of misconduct in public office for misuse of Home Office systems. It records that requests originating from Hong Kong were passed to Yuen as HKETO office manager and onward-tasked to Wai, and that the investigation involved over 20 terabytes of data.

Relevance:

Official confirmation of the existence, scale, and organisation of a Hong Kong-linked information-gathering apparatus operating on the territory of a State Party to the Rome Statute and reaching into that State's government systems. Relevant to persecution under Article 7(1)(h), to jurisdiction under Article 12(2)(a) of the Rome Statute, and to attribution to the Hong Kong and Chinese authorities.

Hyperlink:

https://www.counterterrorism.police.uk/news/two-men-convicted-of-national-security-act-offences/

Internet Archive Wayback Machine (14 July 2026):

https://web.archive.org/web/20260714235939/https://www.counterterrorism.police.uk/news/two-men-convicted-of-national-security-act-offences/

EXHIBIT F32

Title:

UK national security trial involving Hong Kong trade office employee set to begin

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

3 March 2026

Document Type:

News Report

Summary:

Reports that, days before trial, the HKSAR Secretary for Commerce and Economic Development stated that the HKSAR Government would pay Yuen's legal fees, and that Yuen continued to serve as HKETO's office manager notwithstanding the pending charges.

Relevance:

Evidences that the HKSAR Government treated the conduct of the HKETO office manager as sufficiently connected to his official role, or to the interests of the HKSAR, as to warrant public funding of his defence and his continued employment – relevant to the attribution of the surveillance operation to the Hong Kong and Chinese authorities, and thus to the policy element of the attack.

Hyperlink:

https://hongkongfp.com/2026/03/03/uk-national-security-trial-involving-hong-kong-trade-office-employee-set-to-begin/

EXHIBIT F33

Title:

UK case needs to be handled fairly

Source:

news.gov.hk (Hong Kong Government State-media Outlet)

Date:

14 May 2024

Document Type:

News Report

Summary:

This official statement records the Chief Executive, John Lee, responding to the charging of the HKETO office manager, stating that "the Chinese side firmly rejects and strongly condemns the UK's fabrication", and demanding that the United Kingdom "effectively protect the legitimate rights and interests" of the office manager and ensure that "the normal work of the ETO is not affected".

Relevance:

Evidence that the Chief Executive personally identified with and defended the HKETO office manager following his being charged with intelligence-related offences on the territory of a State Party. Relevant to the attribution of the surveillance operation to the Hong Kong and Chinese authorities, to the policy element, and to the individual position of Ka-chiu Lee.

Hyperlink:

https://www.news.gov.hk/eng/2024/05/20240514/20240514_102433_799.html?type=ticker#

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715000310/https://www.news.gov.hk/eng/2024/05/20240514/20240514_102433_799.html?type=ticker

EXHIBIT F34

Title:

葉劉淑儀：港經貿辦性質改變 需留意流亡港人活動

(Regina Ip: The Role of Hong Kong's London ETO Has Changed and Must Monitor Exiled Hong Kong Activists)

Source:

Central News Agency (Public News Agency of Taiwan)

Date:

19 May 2024

Document Type:

News Report

Summary:

Reports remarks by Regina Ip Lau Suk-yee, Convenor of the Executive Council of the HKSAR, that the role of the Hong Kong Economic and Trade Office in London had "changed", and that it was necessary for the office to monitor the activities of Hong Kong individuals residing overseas, including in the United Kingdom, describing this as "intelligence gathering".

Relevance:

Evidence, from a senior member of the HKSAR executive, of an acknowledged policy of monitoring the overseas activities of exiled Hong Kong persons, including those resident in a State Party. Relevant to the attribution of the surveillance operation to the Hong Kong authorities and to the policy element of the attack.

Hyperlink:

https://www.cna.com.tw/news/acn/202405190123.aspx

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715000508/https://www.cna.com.tw/news/acn/202405190123.aspx

EXHIBIT F35

Title:

UPDATED WITH SENTENCE: CPS secures convictions in Hong Kong unlawful surveillance case

Source:

Crown Prosecution Service, United Kingdom

Date:

18 June 2026

Document Type:

United Kingdom Government Record

Summary:

This CPS press release reports that the two defendants were convicted of assisting a foreign intelligence service through unlawful surveillance conducted within the United Kingdom, a State Party to the Rome Statute; that the HKETO was used as a base through which the activities were organised and funded; that the activities included researching UK-resident dissidents and identifying their addresses, vehicles and social-media accounts; and that bounties of up to £100,000 had been issued by Hong Kong authorities. It characterises the conduct as “transnational repression”, “foreign interference”, and “unauthorised surveillance” on British soil.

Relevance:

Official confirmation that a bounty-funded, HKETO-based surveillance operation targeting UK-resident pro-democracy campaigners was prosecuted as national-security offending on the territory of a State Party, and that the CPS linked that operation to the wider system of overseas bounties. Relevant to persecution under Article 7(1)(h), and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.cps.gov.uk/cps/news/updated-sentence-cps-secures-convictions-hong-kong-unlawful-surveillance-case

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715000636/https://www.cps.gov.uk/cps/news/updated-sentence-cps-secures-convictions-hong-kong-unlawful-surveillance-case

EXHIBIT F36

Title:

Security Minister statement on national security and threat level

Source:

United Kingdom Home Office and Dan Jarvis MBE MP

Date:

14 May 2026

Document Type:

United Kingdom Government Record

Summary:

An oral statement to Parliament in which the Security Minister stated that the foreign intelligence service assisted was “the Hong Kong Police Force”; described the conduct as “a shadow policing operation in the United Kingdom”; stated that the Chinese Ambassador had been summoned and that the Foreign Secretary would make clear to Hong Kong’s Chief Executive that such activity was unacceptable; and stated that the Foreign Office had made clear that the office manager’s employment at HKETO must be terminated.

Relevance:

A ministerial statement of a State Party characterising Hong Kong-linked conduct on its territory as a “shadow policing operation” attributable to the Hong Kong Police Force, and treating the matter as requiring engagement at the highest level of the HKSAR administration. Relevant to the attribution of the conduct to the Hong Kong authorities, to the policy element, and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.gov.uk/government/speeches/security-minister-statement-on-national-security-and-threat-level

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715000834/https://www.gov.uk/government/speeches/security-minister-statement-on-national-security-and-threat-level

EXHIBIT F37

Title:

R v Chung Biu (Bill) Yuen and Chi Leung (Peter) Wai – Sentencing Remarks

Source:

Central Criminal Court, United Kingdom

Date:

18 June 2026

Document Type:

United Kingdom Court Record (Sentencing Remarks)

Reference Number:

T20247045

Summary:

The sentencing remarks following the conviction of the two men. The remarks record, at paragraph 29, that Wai's misuse of the Home Office database extended to surveillance of Nathan Law while Law was speaking at a public event at the Oxford Union, and that Wai testified that he believed activists such as Law deserved to be described as "cockroaches" – language the judge described as dehumanising terminology used by the Chinese regime toward pro-democracy protesters. The remarks record that Yuen, HKETO's office manager, acted as the "conduit, organiser and facilitator" through whom requests from Hong Kong were received and transmitted, and describe the conduct as "shadow policing operations".

Relevance:

A judicial record, following a full trial, of Hong Kong-linked surveillance of a named person among those pursued by the bounty programme, carried out on the territory of a State Party, together with the personally held and acted-upon dehumanising characterisation of that person. Relevant to persecution under Article 7(1)(h); and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.judiciary.uk/judgments/r-v-yuen-and-wai/

EXHIBIT F38

Title:

Joint Foreign Secretary-Home Secretary statement on Hong Kong announcing new arrest warrants for overseas activists

Source:

Foreign, Commonwealth & Development Office, Home Office, The Rt Hon Yvette Cooper MP and The Rt Hon David Lammy MP, United Kingdom

Date:

25 July 2025

Document Type:

United Kingdom Government Record

Summary:

Issued on the same day as the wanted notice at *EXHIBIT F4*, this joint statement describes the Hong Kong Police Force's "issuing of further arrest warrants and bounties on individuals living in the UK" as "another example of transnational repression", states that it "encourages reckless behaviour on UK soil", and calls on the Chinese and Hong Kong authorities to "end the deliberate targeting of opposition voices in the UK and elsewhere".

Relevance:

The contemporaneous public response of the executive of a State Party, at the highest level, to the very announcement targeting Chin Po-fun, characterising the bounty programme as transnational repression that encourages reckless behaviour on the territory of that State Party. Relevant to persecution under Article 7(1)(h); to jurisdiction under Article 12(2)(a) of the Rome Statute; and to the effects of the programme upon the territory of a State Party of the Rome Statute.

Hyperlink:

https://www.gov.uk/government/news/joint-foreign-secretary-home-secretary-statement-on-hong-kong-announcing-new-arrest-warrants-for-overseas-activists

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715001059/https://www.gov.uk/government/news/joint-foreign-secretary-home-secretary-statement-on-hong-kong-announcing-new-arrest-warrants-for-overseas-activists

EXHIBIT F39

Title:

Amendment 1

National Security (State Threats) Bill - Committee – in the House of Lords at 3:32 pm on 30 June 2026.

Source:

Baroness Hayter of Kentish Town, Chair, Industry and Regulators Committee;

Lord Alton of Liverpool, Chair, Human Rights (Joint Committee);

Baroness Foster of Aghadrumsee;

Lord Hanson of Flint (Minister of State, Home Department), United Kingdom

Date:

30 June 2026

Document Type:

United Kingdom Government Record

Citation:

Citation: HL Deb, 30 June 2026, cc953-973

Summary:

In debate in the House of Lords, members stated that the Hong Kong Economic and Trade Office's conduct "has involved surveillance of some of our own citizens and of Hong Kong dissidents resident in the UK"; referred to "the case of Chloe Cheung, who was 14 when she took part in pro-democracy demonstrations in Hong Kong and now has a 1 million Hong Kong dollar bounty on her head"; and stated that "activists such as Christopher Mung, Ted Hui, Finn Lau and Nathan Law have all been targeted by the Hong Kong Economic and Trade Office".

Relevance:

Records that the surveillance and targeting of named persons among those pursued by the bounty programme, resident in a State Party, was the subject of direct parliamentary scrutiny in that State Party, and records that a person subjected to a bounty was a child of fourteen at the time of the conduct for which she is pursued. Relevant to persecution under Article 7(1)(h) and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.theyworkforyou.com/lords/?id=2026-06-30a.953.6

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715001154/https://www.theyworkforyou.com/lords/?id=2026-06-30a.953.6

EXHIBIT F40

Title:

HKETO spy row: Pro-Beijing party stages demo outside Hong Kong's British consulate, as UK parliamentarians urge review of trade office

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

24 June 2026 (reporting a demonstration on 23 June 2026)

Document Type:

News Report

Summary:

Reports that a pro-Beijing political organisation staged a demonstration outside the British Consulate-General in Hong Kong protesting the office manager's imprisonment, and records the response of United Kingdom Ministers that the Hong Kong Police Force's "use of arrest warrants and bounties… encourage[s] illegal behaviour on UK soil", and that the Foreign Secretary had made clear "directly to the HKETO that these activities are unacceptable".

Relevance:

Corroborates the executive characterisation of the bounty programme as encouraging illegal behaviour on the territory of a State Party to the Rome Statute, and records continued pro-Beijing solidarity with the convicted office manager. Relevant to persecution under Article 7(1)(h), and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://hongkongfp.com/2026/06/24/hketo-spy-row-pro-beijing-party-stages-demo-outside-hong-kongs-british-consulate-as-uk-parliamentarians-urge-review-of-trade-office/

EXHIBIT F41

Title:

HKSAR Government disapproves of and opposes untrue and biased remarks by UK

Source:

info.gov.hk (Hong Kong Government press-release outlet)

Date:

26 July 2025

Document Type:

Press Release

Summary:

Issued the day after the joint statement of the United Kingdom's Foreign Secretary and Home Secretary (*EXHIBIT F38*), this press release names both Secretaries of State, characterises their remarks as "untrue and biased", and reaffirms the programme: it asserts that "those absconders hiding in the UK and other Western countries are wanted because they continue to blatantly engage in activities endangering national security"; that "any individuals who endanger national security should not believe that being outside Hong Kong will allow them to evade criminal responsibility"; that the Government "will exhaust all means to pursue and combat" such persons "regardless of the distance"; and demands that the United Kingdom "immediately stop interfering in Hong Kong matters".

Relevance:

Evidence that the Hong Kong Government, on the day after a State Party to the Rome Statute publicly characterised the bounty programme as transnational repression, reaffirmed rather than withdrew the programme, and expressly identified the United Kingdom and other Western countries as jurisdictions in which the persons targeted reside. Relevant to persecution under Article 7(1)(h); to the policy element; and to jurisdiction under Article 12(2)(a) of the Rome Statute.

Hyperlink:

https://www.info.gov.hk/gia/general/202507/26/P2025072600445.htm?fontSize=1

Internet Archive Wayback Machine (15 July 2026):

https://web.archive.org/web/20260715042025/https://www.info.gov.hk/gia/general/202507/26/P2025072600445.htm?fontSize=1

EXHIBIT G1

Title:

BRIEF FOR THE LEGISLATIVE COUNCIL.

Reference Number:

CSO/ADM/CR8/4/3222/85(00)

Source:

Legislative Council of the Hong Kong Special Administrative Region

Date:

17 June 2000

Document Type:

Hong Kong Government Record

Summary:

This Legislative Council document informs the judicial appointment of Roberto Alexandre Vieira RIBEIRO and Patrick CHAN Siu-oi outlining their background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.legco.gov.hk/yr99-00/english/panels/ajls/papers/2387e04.pdf

EXHIBIT G2

Title:

Hong Kong tycoon Jimmy Lai arrested under security law, bearing out “worst fears.”

Source:

Reuters (International Media Outlet)

Date:

10 August 2020

Document Type:

News Report

Summary:

This report documents the arrest of media tycoon Jimmy Lai under the Hong Kong National Security Law on 10 August 2020. It outlines that Lai, founder of the pro-democracy newspaper Apple Daily, was accused by authorities of collusion with foreign forces, marking one of the most high-profile applications of the new law and raising significant international concern.

Relevance:

This exhibit establishes the factual background of the charges against Jimmy Lai. It demonstrates the politically sensitive nature of the case and the use of broadly defined “collusion with foreign forces” allegations, providing context for assessing the judicial handling of his bail appeal.

Hyperlink:

https://www.reuters.com/article/world/hong-kong-tycoon-jimmy-lai-arrested-under-security-law-bearing-out-worst-fears-idUSKCN25600K/

EXHIBIT G3

Title:

Apple Daily: Hong Kong pro-democracy paper announces closure

Source:

BBC News (International Media Outlet)

Date:

23 June 2021

Document Type:

News Report

Summary:

This report covers the closure of Apple Daily in June 2021 after Hong Kong authorities froze its assets under the National Security Law, effectively forcing the pro-democracy newspaper to cease operations.

Relevance:

This exhibit shows the broader context of state action against Jimmy Lai and his media organisation, highlighting the political sensitivity of his case and reinforcing the significance of judicial decisions.

Hyperlink:

https://www.bbc.com/news/world-asia-china-57578926

EXHIBIT G4

Title:

FINAL APPEAL NO. 1 OF 2021 (CRIMINAL) (ON APPEAL FROM HCCP NOS. 727 AND 738 OF 2020)

Reference Number:

FACC No. 1 of 2021 [2021] HKCFA 3

Source:

Court of Final Appeal of Hong Kong

Date:

9 February 2021

Document Type:

Court Judgement

Summary:

This Court of Final Appeal judgment in HKSAR v. Lai Chee-Ying [2021] HKCFA 3 interprets Article 42(2) of the Hong Kong National Security Law, holding that bail should not be granted unless the judge has sufficient grounds to believe the accused will not continue to endanger national security, thereby imposing a stricter threshold than the common law presumption of bail.

Relevance:

This exhibit is central to Jimmy Lai's bail proceedings and demonstrates the legal basis for reversing the common law presumption in favour of bail, directly affecting the outcome of the case.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=133491

EXHIBIT G5

Title:

FINAL APPEAL NOS. 2, 3, 4, 5 AND 6 OF 2024 (CRIMINAL) (ON APPEAL FROM CACC NO. 84 OF 2021)

Reference Number:

FACC Nos. 2, 3, 4, 5 and 6 of 2024 [2024] HKCFA 24

Source:

Court of Final Appeal of Hong Kong

Date:

12 August 2024

Document Type:

Court Judgement

Summary:

This Court of Final Appeal judgment [2024] HKCFA 24 concerns appeals by multiple pro-democracy figures convicted for organising and participating in an unauthorised assembly on 18 August 2019. The CFA unanimously dismissed the appeals and upheld the convictions for knowingly taking part in an unauthorised assembly. The joint judgment addressed the approach to common law authorities in Hong Kong.

Relevance:

This exhibit demonstrates Justice Ribeiro's participation in appellate decisions involving politically sensitive cases affecting multiple individuals. It also reflects a judicial approach that limits reliance on external common law precedents, providing broader context for assessing the handling of cases linked to public order and political expression.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=161919

EXHIBIT G6

Title:

FINAL APPEAL NO 9 OF 2023 (CRIMINAL) (ON APPEAL FROM HCMA NO 51 OF 2022)

Reference Number:

FACC No 9 of 2023 [2024] HKCFA 2

Source:

Court of Final Appeal of Hong Kong

Date:

25 January 2024

Document Type:

Court Judgement

Summary:

This Court of Final Appeal judgment [2024] HKCFA 2 concerns the case of Chow Hang-tung, who was charged with inciting others to participate in an unauthorised assembly related to the annual Tiananmen vigil. The CFA reinstated her conviction. A majority held that a defendant may challenge the lawfulness of a police prohibition in criminal proceedings, but found the challenge failed on its merits.

Relevance:

This exhibit shows judicial involvement in appellate decisions concerning public assemblies and multiple participants. It illustrates the judicial approach of limiting procedural challenges in such cases, providing broader context for how courts have handled issues of assembly and expression.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=157714

EXHIBIT G7

Title:

FINAL APPEAL NO. 7 OF 2023 (CRIMINAL) (ON APPEAL FROM CACC NO. 61 OF 2022)

Reference Number:

FACC No. 7 of 2023 [2023] HKCFA 26

Source:

Court of Final Appeal of Hong Kong

Date:

22 August 2023

Document Type:

Court Judgement

Summary:

This Court of Final Appeal judgment [2023] HKCFA 26 concerns the sentencing of Lui Sai-yu under the National Security Law. The CFA held that the prescribed terms for "serious" offences constitute mandatory minimum sentences, and dismissed the appeal, upholding a five-year sentence despite the defendant's guilty plea.

Relevance:

This exhibit shows judicial involvement in decisions confirming that the NSL overrides common law mitigation principles in sentencing. It illustrates the broader impact on judicial discretion across cases involving multiple defendants under the NSL framework.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=154516

EXHIBIT G8

Title:

Senior Judicial Appointments

Reference Number:

CSO/ADM CR 8/4/3222/85

Source:

Legislative Council of the Hong Kong Special Administrative Region

Date:

8 April 2013

Document Type:

Hong Kong Government Record

Summary:

This Legislative Council document informs the judicial appointment of Joseph Paul FOK, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.legco.gov.hk/yr12-13/english/hc/papers/hc0412let-da130408-e.pdf

EXHIBIT G9

Title:

Judicial Appointment [Press release]

Source:

HKSAR Government

Date:

25 June 2009

Document Type:

Government Record

Summary:

This government press release informs the judicial appointment of Frank STOCK, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/200906/25/P200906250209.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192657/https://www.info.gov.hk/gia/general/200906/25/P200906250209.htm

EXHIBIT G10

Title:

Nationality Law of the People's Republic of China

Source:

National Immigration Administration of China

Date:

10 September 1980

Document Type:

Law

Relevant Article(s):

4, 5

Summary:

This law sets out the rules governing nationality of the People's Republic of China, including provisions on acquisition, loss, and recognition of nationality, and the principle that China does not recognise dual nationality.

Relevance:

This exhibit is relevant to determining the nationality status of judges serving in Hong Kong, including non-Chinese judges, and provides context for assessing nationality-based jurisdictional considerations.

Hyperlink:

https://en.nia.gov.cn/n147418/n147458/c155976/content.html

EXHIBIT G11

Title:

Judicial appointments [Press release]

Source:

HKSAR Government

Date:

14 September 2012

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of Amanda Jane WOODCOCK and KWOK Wai-kin outlining their background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/201209/14/P201209140292.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192527/https://www.info.gov.hk/gia/general/201209/14/P201209140292.htm

EXHIBIT G12

Title:

CRIMINAL CASE NO 401 OF 2021

Reference Number:

DCCC 401/2021 [2022] HKDC 384

Source:

District Court of Hong Kong

Date:

29 April 2022

Document Type:

Court Verdict

Summary:

This District Court judgment [2022] HKDC 384 concerns the sentencing of Lui Sai-yu, who pleaded guilty to inciting secession through content on a Telegram channel. The court imposed a five-year sentence under the National Security Law, applying its minimum sentencing requirements despite the guilty plea.

Relevance:

This exhibit provides a lower court example of sentencing under the NSL, illustrating the application of mandatory minimum penalties and limited mitigation, which is relevant to understanding the broader judicial approach later affirmed on appeal.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=143861

EXHIBIT G13

Title:

(REASONS FOR SENTENCE) CRIMINAL CASE NO 534 OF 2020

Reference Number:

DCCC 534/2020 [2021] HKDC 645

Source:

District Court of Hong Kong

Date:

28 May 2021

Document Type:

Court Verdict

Summary:

This District Court sentencing judgment [2021] HKDC 645, delivered by Judge Amanda Woodcock, concerns multiple defendants involved in organising and participating in large-scale protests in 2019. The court imposed custodial sentences of up to 18 months and emphasised deterrent and punitive objectives. The judgment rejected arguments based on the right to peaceful assembly and held organisers liable for potential risks of violence, despite calls for peaceful participation.

Relevance:

This exhibit highlights the deprivation of the right to peaceful assembly affecting multiple defendants, including elderly and prominent individuals. It demonstrates a judicial approach that prioritises deterrence and attributes liability beyond actual conduct, providing broader context for the treatment of protest-related cases.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=136087&TP=RS

EXHIBIT G14

Title:

Case Summary (English Translation)

HKSAR v 王逸戰 (Wong Yat Chin) and Others

DCCC 984/2021; [2022] HKDC 1210 (District Court)

Source:

District Court of Hong Kong

Date:

22 October 2022

Document Type:

Judiciary Press Summary

Summary:

This District Court case [2022] HKDC 1210 concerns four members of the student group "Student Politicism," convicted of conspiracy to incite subversion based on activities such as setting up street booths and expressing political views. The court imposed custodial sentences of up to three years, treating the group's public engagement and influence as aggravating factors.

Relevance:

This exhibit demonstrates the criminalisation of peaceful political expression and advocacy affecting multiple individuals. It highlights a judicial approach that treats effective public engagement as a national security threat, contributing to the broader context of restrictions on political participation and expression.

Hyperlink:

https://www.hknslannot.gov.hk/en/home/pdf/DCCC_984_2021_2022_HKDC_1210_en.pdf

EXHIBIT G15

Title:

(REASONS FOR SENTENCE) CRIMINAL CASE NO 265 OF 2022

Reference Number:

DCCC 265/2022 [2024] HKDC 1609

Source:

District Court of Hong Kong

Date:

26 September 2024

Document Type:

Court Verdict

Summary:

This District Court judgment [2024] HKDC 1609 concerns the conviction of two editors of Stand News for conspiracy to publish seditious publications. The court imposed custodial sentences and held that recklessness, rather than intent, was sufficient to establish the offence.

Relevance:

This exhibit shows the lowering of the mental element for serious offences and its impact on multiple individuals, highlighting broader restrictions on press freedom and expression.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=163596

EXHIBIT G16

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

30 March 2007

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of CHAN Kwong-chi, Stanley, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/200703/30/P200703300210.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192743/https://www.info.gov.hk/gia/general/200703/30/P200703300210.htm

EXHIBIT G17

Title:

Hong Kong jails pro-democracy activist and former DJ for ‘uttering seditious words.’

Source:

The Guardian (International Media Outlet)

Date:

20 April 2022

Document Type:

News Report

Summary:

This Guardian report covers the conviction of pro-democracy activist and former radio host Tam Tak-chi, who was found guilty of multiple counts of “uttering seditious words” and sentenced to 40 months’ imprisonment.

Relevance:

This exhibit illustrates the prosecution and punishment of speech-related offences, highlighting restrictions on expression and the use of sedition laws against individuals for political speech.

Hyperlink:

https://www.theguardian.com/world/2022/apr/20/hong-kong-jails-pro-democracy-activist-and-former-dj-for-uttering-seditious-words

EXHIBIT G18

Title:

(RULING ON THE STAY APPLICATION) CRIMINAL CASE NO 927, 928 & 930 OF 2020

Reference Number:

DCCC 927, 928 & 930/2020 (Consolidated) [2021] HKDC 505

Source:

District Court of Hong Kong

Date:

26 April 2021

Document Type:

Court Judgement

Summary:

This District Court ruling [2021] HKDC 505 concerns a stay application in consolidated criminal cases involving sedition-related charges. The court held that proof of an intention to incite violence was not a necessary element for establishing the offence of sedition.

Relevance:

This exhibit demonstrates a judicial approach that lowers the threshold for sedition offences, contributing to broader restrictions on expression and expanding liability across multiple defendants.

Hyperlink:

https://legalref.judiciary.hk/lrs/common/ju/ju_frame.jsp?DIS=135251

EXHIBIT G19

Title:

PRESS SUMMARY

HKSAR V MA Chun-man

District Court Criminal Case No. 122 of 2021

Source:

District Court of Hong Kong

Date:

11 November 2021

Document Type:

Judiciary Press Summary

Summary:

This press summary concerns the case of Ma Chun-man, who was convicted of inciting secession based on slogans advocating Hong Kong independence.

Relevance:

This exhibit illustrates the criminalisation of political slogans and expression, highlighting restrictions on speech affecting individuals in the broader context of protest-related prosecutions.

Hyperlink:

https://legalref.judiciary.hk/doc/judg/html/vetted/other/ch/2021/DCCC000122A_2021_files/DCCC000122A_2021ES.htm

EXHIBIT G20

Title:

Hong Kong jails “Captain America” protester for almost 6 years

Source:

NBC News (International Media Outlet)

Date:

11 November 2021

Document Type:

News Report

Summary:

This report covers the conviction of Ma Chun-man, known as the “Captain America” protester, who was sentenced to five years and nine months’ imprisonment for inciting secession despite lacking intent to incite violence.

Relevance:

This exhibit highlights the punishment of political expression and the limited role of intent in such cases, illustrating broader restrictions on speech and the treatment of individuals under national security-related offences.

Hyperlink:

https://www.nbcnews.com/news/world/hong-kong-s-captain-america-protester-jailed-almost-6-years-n1283773

EXHIBIT G21

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

15 August 2012

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of CHAN Hing Wai, Andrew, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/201208/15/P201208150268.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192517/https://www.info.gov.hk/gia/general/201208/15/P201208150268.htm

EXHIBIT G22

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

25 November 2021

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of Johnny CHAN Jong-herng and Anna LAI Yuen-kee, outlining their background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/202111/25/P2021112500514.htm

Internet Archive Wayback Machine (12 March 2026):

https://web.archive.org/web/20260312165244/https://www.info.gov.hk/gia/general/202111/25/P2021112500514.htm

EXHIBIT G23

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

11 April 2013

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of LAW Tak Chuen, Peter and SO Wai-tak, Victor, outlining their background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/201304/11/P201304110241.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192712/https://www.info.gov.hk/gia/general/201304/11/P201304110241.htm

EXHIBIT G24

Title:

Hong Kong civil servant jailed for 6 months over “seditious” online posts

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

26 October 2022

Document Type:

News Report

Summary:

This report covers the conviction of former civil servant Luk Ting-fung, who was sentenced to six months’ imprisonment for publishing seditious messages on social media platforms.

Relevance:

This exhibit demonstrates the criminalisation of online speech, including speech-only offences, and highlights broader restrictions on expression affecting individuals under sedition laws.

Hyperlink:

https://hongkongfp.com/2022/10/26/hong-kong-civil-servant-jailed-for-6-months-over-seditious-online-posts/

EXHIBIT G25

Title:

1 year, 2 months jail for first person convicted under Hong Kong's new security law for "seditious" T-shirt

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

19 September 2024

Document Type:

News Report

Summary:

This report covers the conviction of Chu Kai-pong, the first person sentenced under Hong Kong's Article 23 security law, who received 14 months' imprisonment for wearing a T-shirt displaying protest slogans.

Relevance:

This exhibit illustrates the criminalisation of symbolic and non-violent expression, highlighting the continued expansion of speech-related offences affecting individuals under national security laws.

Hyperlink:

https://hongkongfp.com/2024/09/19/breaking-1-year-2-months-jail-for-first-person-convicted-under-hong-kongs-new-security-law/

EXHIBIT G26

Title:

Hong Kong man jailed for 10 months under new security law over “seditious” graffiti left on back of bus seats

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

19 September 2024

Document Type:

News Report

Summary:

This report covers the conviction of Chung Man-kit, who was sentenced to 10 months’ imprisonment after pleading guilty to writing pro-independence slogans on bus seats.

Relevance:

This exhibit demonstrates the punishment of minor, non-violent acts of expression, highlighting the broad application of sedition laws to individuals.

Hyperlink:

https://hongkongfp.com/2024/09/19/hong-kong-man-pleads-guilty-to-sedition-under-new-security-law-over-graffiti-left-on-back-of-bus-seats/

EXHIBIT G27

Title:

Hong Kong man jailed 14 months under new security law for “seditious” online statements

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

20 September 2024

Document Type:

News Report

Summary:

This report covers the conviction of Au Kin-wai, a 58-year-old man who was sentenced to 14 months’ imprisonment after pleading guilty to publishing online statements critical of authorities and calling for revolution.

Relevance:

This exhibit highlights the criminalisation of online political speech affecting individuals, including older persons, and demonstrates the continued use of deterrent sentencing under security laws.

Hyperlink:

https://hongkongfp.com/2024/09/20/hong-kong-man-jailed-14-months-under-new-security-law-for-seditious-online-statements/

EXHIBIT G28

Title:

Hong Kong man jailed for 1 year over “seditious” online posts targeting police, judges, gov’t

Source:

Hong Kong Free Press (Hong Kong Local Media Outlet)

Date:

8 May 2025

Document Type:

News Report

Summary:

This report covers the conviction of Li Chun-kit, who was sentenced to one year’s imprisonment for publishing online posts deemed seditious and inciting hatred against public authorities.

Relevance:

This exhibit demonstrates the criminalisation of critical speech directed at state institutions, highlighting the broad scope of sedition laws and their application to individuals for online expression.

Hyperlink:

https://hongkongfp.com/2025/05/08/hong-kong-man-jailed-for-1-year-over-seditious-online-posts-targeting-police-judges-govt/

EXHIBIT G29

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

3 January 2017

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of Susana Maria D'ALMADA REMEDIOS, outlining her background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/201701/03/P2017010300342.htm

Internet Archive Wayback Machine (25 August 2026):

https://web.archive.org/web/20260825151405/https://www.info.gov.hk/gia/general/201701/03/P2017010300342.htm

EXHIBIT G30

Title:

Judicial Appointment [Press release]

Source:

HKSAR Government

Date:

4 January 2013

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of LEE Wan Tang, Alex, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/201301/04/P201301040253.htm

Internet Archive Wayback Machine (15 December 2024):

https://web.archive.org/web/20241215192716/https://www.info.gov.hk/gia/general/201301/04/P201301040253.htm

EXHIBIT G31

Title:

Judicial appointment [Press release]

Source:

HKSAR Government

Date:

30 August 2024

Document Type:

Hong Kong Government Record

Summary:

This government press release informs the judicial appointment of TAM Yiu-ho, William, outlining his background and role within the Hong Kong judiciary.

Relevance:

This exhibit provides background information relevant to identifying the nationality and official capacity of judicial figures, which may be considered in assessing potential jurisdictional links.

Hyperlink:

https://www.info.gov.hk/gia/general/202408/30/P2024083000267.htm

Internet Archive Wayback Machine (6 November 2026):

https://web.archive.org/web/20261106185942/https://www.info.gov.hk/gia/general/202408/30/P2024083000267.htm